

The Petroleum Rules, 2002

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Union of India - Act

The Petroleum Rules, 2002

UNION OF INDIA

India

The Petroleum Rules, 2002

Rule THE-PETROLEUM-RULES-2002 of 2002

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The Petroleum Rules, 2002

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19.

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In exercise of the powers conferred by sections 4, 5, 14, 21 and 22 and sub-section (1) of section 29 of the Petroleum Act, 1934 (30 of 1934), the Central Government hereby makes the following rules, namely:-

Chapter I

Preliminary

Part I ? Short Title And Definitions

1.

Short title and commencement

-(1) These rules may be called The Petroleum Rules, 2002.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions

-(1) In these rules, unless the context otherwise requires,-

(i)

"Act" means the Petroleum Act, 1934 (30 of 1934);

(ii)

"adequate",-

(a)

in relation to ventilation, means where the concentration of the inflammable gas in a gas-air mixture does not reach the lower inflammable limit, or

(b)

where applied to provision of facilities for fire-fighting, means the facilities so provided are in accordance with the prevalent recognised standards or codes of safety;

(iii)

"approved",-

(a)

where applied to a specification, means that the specification authorised by the Chief Controller, including the following Oil Industry Safety Directorates Standards: OISD-105, OISD-116, OISD-117, OISD-118, OISD-141 and OISD-156;

(b)

where applied to an appliance or fitting, means that the appliance or fitting bears a label of a designated test organisation certifying conformity with a specification approved by the Chief Controller or with a laboratory test report accepted by the Chief Controller; or

(c)

where applied to any facility for petroleum, means that it conforms to these rules;

(iv)

"Chief Controller" means the Chief Controller of Explosives;

(v)

"Controller" means Controller of Explosives and includes Joint Chief Controller of Explosives, Deputy Chief Controller of Explosives and Deputy Controller of Explosives;

(vi)

"competent person" means a person recognised by the Chief Controller to be a competent person, or a person who holds a certificate of competency for the job in respect of which competency is required from an institution recognised by the Chief Controller in this behalf;

(vii)

"Conservator" includes any person acting under the authority of the officer or body of persons appointed to be Conservator of a Port under section 7 of the Indian Ports Act, 1908 (15 of 1908);

(viii)

"container" means a receptacle for petroleum not exceeding 1,000 litres in capacity;

(ix)

"Defence Forces of the Union" includes General Reserve Engineering Forces under the Director-General, Border Roads, Assam Rifles, Central Reserve Police Force, Border Security Force and National Security Guard under the Ministry of Home Affairs and Special Security Bureau under the Cabinet Secretariat;

(x)

"District Authority" means-

(a)

in towns having a Commissioner of Police, the Commissioner or a Deputy Commissioner of Police;

(b)

in any other place, the District Magistrate;

(xi)

"District Magistrate" means and includes an Additional District Magistrate and in the States of Punjab and Haryana and in the Karaikal, Mahe and Yenam areas of the Union territory of Pondicherry, also includes a Sub-Divisional Magistrate;

(xii)

"electric apparatus" includes motors, starters, lamps, switches, junction boxes, fuses, cut-outs or any other appliance, equipment or fitting which operates on electricity;

(xiii)

"Form" means a Form in the First Schedule;

(xiv)

"hot work" means any work which involves welding, burning, soldering, brazing sand blasting, chipping by spark-producing tools, use of certain power driven tools, non-flame proof electrical equipment or equipment with internal combustion engines and including any other work which is likely to produce sufficient heat, capable of igniting inflammable gases;

(xv)

"Inspector" means an officer authorised by the Central Government under sub-section (1) of section 13 of the Act;

(xvi)

"installation" means any premises wherein any place has been specially prepared for the storage of petroleum in bulk, but does not include a well-head tank or a service station;

(xvii)

"OISD" means "Oil Industry Safety Directorate" a technical body assisting the Safety Council constituted under the Ministry of Petroleum and Natural Gas;

(xviii)

"OISD Standard" means technical standards formulated by OISD and approved by Safety Council constituted under the Ministry of Petroleum and Natural Gas to ensure safety in Oil and Gas Industry, as amended from time to time;

(xix)

"petroleum in bulk" means petroleum contained in a tank irrespective of the quantity of petroleum contained therein;

(xx)

"Protected Area" means the area necessary for the maintenance of the distance required under the conditions of the license to be kept clear between any installation, service station or storage shed and any protected works;

(xxi)

"Protected works" include-

(a)

buildings in which persons dwell or assemble, docks, wharves, timber and coal yards, furnace, kiln or chimney and buildings or places used for storing petroleum or for any other purpose but does not include buildings or places forming part of an installation;

(b)

any public road or a railway line which is used exclusively as an oil siding; and

(c)

overhead high-tension power lines;

(xxii)

"Sampling officer" means an officer authorised by the Central Government under sub-section (1) of section 14 of the Act;

(xxiii)

"Schedule" means a Schedule annexed to these rules;

(xxiv)

"service station" means any premises specially prepared for the fuelling of motor vehicles and includes such places within the premises which have been specially approved by the licensing authority for the servicing of motor vehicles and for other purposes;

(xxv)

"Storage Shed" means a building used for the storage of petroleum otherwise than in bulk, whether forming part of an installation or not, but does not include a building used for the storage of petroleum exempt from license under section 7,

8 or 9 of the Act;

(xxvi)

"tank" means a receptacle for petroleum exceeding 1,000 litres in capacity;

(xxvii)

"tank cart" means a hand-drawn or animal-drawn vehicle equipped with a tank;

(xxviii)

"tank semi-trailer" means a tank trailer constructed in such a manner that when it is drawn by a tractor by means of fifth wheel connection, some part of the load rests on the towing vehicle;

(xxix)

"tank trailer" means a vehicle with a tank mounted thereon or built as integral part thereof and constructed in such a manner that it has at least two axles and all its load rests on its own wheels;

(xxx)

"tank truck" means a single self-propelled vehicle with a tank mounted thereon;

(xxxi)

"tank vehicle" means any vehicle, including a tank wagon with a tank of a capacity exceeding 1,000 litres mounted thereon and also includes refueller used for refuelling of air crafts or onsite fuelling of heavy vehicles/ machineries/stationery equipments;

(xxxii)

"tank wagon" means a railway carriage with a tank mounted thereon;

(xxxiii)

"Testing officer" means an officer authorised by the Central Government to test petroleum under section 17 of the Act;

(xxxiv)

"vehicle" means all carriages, including animal-drawn carriages for the transportation of petroleum either in bulk or otherwise than in bulk;

(xxxv)

"well-head tank" means a tank into which crude petroleum flowing or being pumped from an oil well is first discharged.

(2)

The words and expressions used in these rules but not defined in sub-rule (1), shall have the respective meanings assigned to them in the Act.

Part II ? General Provisions

3.

Restriction on delivery and dispatch of petroleum

-(1) No person shall deliver or dispatch any petroleum to anyone in India other than the holder of a storage license issued under these rules or his authorised agent or a port authority or railway administration or a person who is authorised under the Act to store petroleum without a license.

(2)

The petroleum delivered or dispatched under sub-rule (1) shall be of the class, and shall not exceed the quantity, which the person to whom it is delivered or dispatched is authorised to store with or without a license under the Act.

(3)

Notwithstanding anything contained in sub-rule (2), petroleum Class B not exceeding 15,000 litres in quantity packed in sealed airtight approved containers may be dispatched to a person not holding a storage license provided that the person dispatching the petroleum has satisfied himself that prior arrangements have been made by the person to whom the petroleum is dispatched for the immediate disposal in the original sealed packages or such quantity as in excess of 2,500 litres:

Provided that a dry chemical powder fire extinguisher as a means of fighting fire in emergency shall be carried in the case of the containers with more than 2,500 litres.

(4)

Nothing in sub-rules (1) and (2) shall apply to the delivery or dispatch of petroleum to the Defence Forces of the Union and to the delivery or dispatch of kerosene (petroleum Class B) to the person holding license in Form XVIII for decantation into containers from tank vehicle:

Provided that the person dispatching the kerosene has satisfied himself that prior arrangements have been made by the

person to whom the kerosene is dispatched for the immediate disposal into containers in lots of 2,500 litres or less.

4.

Approval of containers

-(1) Containers exceeding one litre in capacity for petroleum Class A and five litres in capacity for petroleum Class B or petroleum Class C, shall be of a type approved by the Chief Controller.

(2)

Where the approval of the Chief Controller is sought to a type of container not previously approved, an application together with copies of drawings thereof to scale showing the design, materials to be used, the method of construction and capacity of the container together with two sample containers and a fee of rupees one thousand for scrutiny shall be submitted to the Chief Controller.

(3)

Nothing in sub-rules (1) and (2) shall apply to containers in the possession of the Defence Forces of the Union.

5.

Containers for petroleum Class A

-(1) Containers for petroleum Class A shall be constructed of tinned, galvanised or externally rust proofed sheet iron or steel and be of a type approved by the Chief Controller:

Provided that glass bottles of a capacity not exceeding 2.5 litres and of a type approved by Chief Controller can be used as a container for laboratory chemicals classified as petroleum Class A.

(2)

The containers shall be so constructed and secured as not to be liable except under circumstances of gross negligence or extraordinary accident to become defective, leaky or insecure in transit and they shall be kept in proper repair.

(3)

The containers shall have well-made filling aperture which shall be fitted with well-fitting and secure airtight screw plugs or screw caps or other caps.

(4)

Containers made of sheet iron or steel shall have the following thickness of metal, namely:-

Capacity of Container exclusive of the free space prescribed in sub-rule (6)

Minimum thickness in mm. of sheet iron or steel

Not exceeding 10 litres

0.443 (28 BG)

Exceeding 10 but not exceeding 25 litres

0.63 (24 BG)

Exceeding 25 but not exceeding 50 litres

0.80 (22 BG)

Exceeding 50 but not exceeding 200 litres

1.25 (18 BG)

Exceeding 200 but not exceeding 300 litres

1.59 (16 BG)

(5)

The capacity of any container, other than those approved by the Chief Controller for specified purposes, shall not exceed 300 litres"> (5) The capacity of any container, other than those approved by the Chief Controller for specified purposes, shall not exceed 300 litres.

(6)

An air space of not less than 5 per cent. of its capacity shall be kept in each container.

(7)

The container shall bear a stamped, embossed or painted warning exhibiting in conspicuous characters the words "Petrol" or "Motor Spirit" or an equivalent warning of the highly inflammable nature of the petroleum.

(8)

Nothing in sub-rules (1), (3), (4), (5), (6) and (7), shall apply to containers in the possession of the Defence Forces of the Union.

6.

Containers for petroleum Class B and Class C

-(1) Containers for petroleum Class B or petroleum Class C shall be constructed of steel or iron and be of a type approved by the Chief Controller.

(2)

An air space of not less than 5 per cent. of its capacity shall be kept in each container for petroleum Class B and not less than 3 per cent. of its capacity in each container for petroleum Class C.

(3)

Nothing in this rule shall apply to containers in the possession of the Defence Forces of the Union.

7.

Empty receptacles

.-All empty tanks which had petroleum Class A or petroleum Class B and empty containers which had petroleum Class A shall, except when they are opened for the purpose of filling or cleaning and rendering them free from petroleum vapour, be kept securely closed until they have been thoroughly cleaned and freed from petroleum vapour.

8.

Repairs to receptacles

-(1) No person shall cause to be repaired or repair by the use of hot work any tank or container which had petroleum unless it has been thoroughly cleaned and freed from petroleum and petroleum vapour or otherwise prepared for safely carrying out such hot repair and certified, in writing, by a competent person to have been so repaired.

(2)

The certificate required under sub-rule (1) shall be preserved by the repairer for a period of at least three months and produced to an inspector on demand.

9.

Prevention of escape of petroleum

.-All due precautions shall be taken at all times to prevent escape of petroleum into any drain, sewer, and harbour, river or watercourse or over any public road or railway line.

10.

Prohibition of employment of children and intoxicated persons

.-No child under the age of eighteen years and no person who is in a state of intoxication shall be employed on the loading, unloading or transport of petroleum or in any premises licensed under these rules.

11.

Prohibition of smoking, fires, lights, etc

.-Unless expressly provided in these rules, no person shall smoke and no matches, fires, lights or articles or substances capable of causing ignition of petroleum shall be allowed, at any time in proximity to a place where petroleum is refined, stored or handled or in a vehicle's carriage or vessel in which petroleum is transported.

12.

Special precautions against accident

-(1) No person shall commit or attempt to commit any act, which may tend to cause a fire or explosion in or about any place where petroleum is refined, stored or handled, or any vehicle's carriage or vessel in which petroleum is transported.

(2)

Every person storing petroleum and every person in charge of or engaged in the storage, handling or transport of petroleum shall at all times-

(a)

comply with the provisions of these rules and conditions of any license relating thereto;

(b)

observe all precautions for prevention of accident by fire or explosion; and

(c)

prevent any person from committing any act referred to in sub-rule (1).

13.

Payment of fees

-(1) All fees payable under these rules to the Chief Controller shall be paid by a crossed bank draft drawn in favour of

the Chief Controller of Explosives, Nagpur. The bank draft shall be drawn on any nationalised bank, payable at Nagpur. Fees upto rupees one hundred in each case may be paid in cash at the office of the Chief Controller.

(2)

Fees payable to a Controller shall be paid by a crossed bank draft drawn in favour of the Controller of Explosives to whom the payment is made. The bank draft shall be drawn on any nationalised bank payable at the station where the office of the Controller to whom payment is to be made is located. Fees upto rupees one hundred in each case may also be paid in cash at the office of the Controller concerned.

(3)

Fees payable to district authority or any other authority under these rules shall be paid in such a manner as may be specified by that authority.

(4)

(i)

If an application for the grant, renewal or amendment of the license is rejected, the fees paid by the applicant shall be refunded to him-

(a)

by the licensing authority, if the fee has been paid in cash or by bank draft; or

(b)

if the fee has been paid into a treasury, by that treasury on the production of signed order from the licensing authority directing such refund;

(ii)

The fees shall be refunded by the licensing authority preferably within six months of the realisation.

(5)

Fees payable under these rules for purposes other than the grant, renewal, or amendment of licenses shall not be refundable.

Chapter II

Importation Of Petroleum

Part I ? General

14.

License for import of petroleum

.-Petroleum, other than petroleum which may be stored without a license under sections 7, 8 and 9 of the Act, shall not be imported into India except under the license granted under these rules:

Provided that, such petroleum products may also be imported by a person not having a license if adequate advance arrangements are made by such person to receive and store the imported petroleum product in licensed premises.

15.

Petroleum exempted

.- (1) Nothing in this chapter applies to petroleum Class B or petroleum Class C comprising in a ship's stores and manifested as such;

(2)

Nothing in rules 14, 19 and 26 shall apply to petroleum imported by the Defence Forces of the Union.

Part II ? Importation By Sea

16.

Ports into which petroleum may be imported

.- (1) Petroleum shall not be imported into India by sea except through the ports which are duly approved for this purpose by the Ministry of Shipping, Government of India, in consultation with the Chief Controller and declared as Custom's ports by the Commissioner of Customs.

(2)

Notwithstanding anything contained in sub-rule (1), the Commissioner of Customs may, on the recommendation of the Chief Controller, allow import of petroleum Class B or petroleum Class C, otherwise than in bulk, through any other port.

(3)

Adequate fire fighting facilities as per OISD Standard-156 shall be provided at the ports handling petroleum.

(4)

Person(s) desirous of seeking approval in respect of proposed facilities for unloading of petroleum for the purpose of import under sub-rule (1) or of making modifications in the existing facilities shall submit to the Chief Controller an application alongwith-

(a)

specifications and plans drawn to scale in quadruplicate, clearly indicating-

(i)

surroundings and all protected works within 500 metres of the unloading facilities on all sides showing therein the location, available draft, navigation channel, turning circle, route of transfer pipeline(s);

(ii)

mooring or berthing facilities, service platform/berth, mode of unloading, fire fighting facilities, illumination arrangements, navigational facilities, control room, spill collection/containment arrangements, etc.; and

(iii)

pipings and instrumentation diagram of the petroleum pipeline(s) at the unloading area;

(b)

comprehensive project report elaborating the scheme and methodology of import, safety and security features including those mentioned in (a) (i), (ii) and (iii) of this sub-rule;

(c)

Environment Impact Assessment and Risk Analysis Report indicating qualitative and quantitative risks, probable failure scenarios, Lower Flammability Limit (LFL) distances and consequent hazards and damages with damage distances and remedies recommended;

(d)

scrutiny fee of rupees two thousand; and

(e)

copies of clearances obtained from the following authorities:-

(i)

Ministry of Shipping or State Maritime Board, as the case may be,

(ii)

Ministry of Environment and Forests or State Pollution Control Board, as the case may be, and

(iii)

Commissioner of Customs.

(5)

Unloading of petroleum in bulk shall be either by mechanised arm or by armoured hose as approved by the Chief Controller. All hoses, pipes and other appliances used in unloading of petroleum shall be electrically and mechanically continuous and duly tested as per codes/standards.

17.

Declaration by the master of the ship carrying petroleum or by the ship's agent

-(1) The master of every ship carrying petroleum shall deliver to the pilot before entering any port approved under sub-rule (1) of rule 16, a written declaration in Form I under his signature:

Provided that no such declaration is necessary if the agent of the ship delivers such a declaration signed by him to the Conservator before the arrival of such ship.

(2)

The pilot shall make over the said declaration to the Conservator without delay and the Conservator shall forward the declaration to the Commissioner of Customs of the port with all convenient despatch.

18.

Anchorage of ships carrying petroleum

-(1) Every ship having petroleum on board shall be anchored at such anchorage as the Conservator shall specify in this behalf and shall not leave such anchorage without the general or special order of the Conservator and subject to such conditions as may be specified in such order.

(2)

The anchorage shall in no case be the same as that for vessel laden with explosives and shall be at such distance from the anchorage for vessels laden with explosives as to render it impossible for a fire originating at the former anchorage

to affect vessels at the latter:

Provided that nothing in this rule shall apply to ships having on board petroleum Class C.

19. Production of certificate and license for import

-(1) Every person desiring to import petroleum shall furnish personally or through his agent to the Commissioner of Customs-

- (a) certificate of storage accommodation in Form II signed by such person or his agent; and
- (b) the license or an authenticated copy of the license for the import and storage of such petroleum:

Provided that nothing in this rule shall apply to the importation, otherwise than in bulk of petroleum exempted under sections 7, 8, 9 and 10 of the Act:

Provided further that the furnishing of a license under clause (b) shall not be necessary for the importation of petroleum Class C in bulk in quantity exempted under section 7 of the Act.

(2) Notwithstanding anything contained in sub-rule (1), a person may import petroleum Class A in bulk, even if-

- (i) he is not holding a license for storage at the port of importation; or
- (ii) the storage accommodation in the premises licensed in his name is not sufficient to hold the quantity of petroleum intended to be imported:

Provided in both cases adequate advance arrangements to the satisfaction of the Conservator are made by the importer to distribute the petroleum from the port of import to premises licensed to store such petroleum.

20. Permission of Commissioner of Customs to land petroleum

-(1) No imported petroleum shall be landed except with the permission of the Commissioner of Customs.

(2) If the Commissioner of Customs after receiving-

- (a) of the testing officer's report on the petroleum;
- (b) the certificate of storage accommodation in Form II if required under rule 19; and
- (c) the license or an authenticated copy of the license if required under rule 19, and after making such further inquiries, as he deems necessary, is satisfied that the petroleum can be lawfully imported and that there is suitable accommodation for it, he shall permit it to be landed.

(3) If the Commissioner of Customs is satisfied that any petroleum imported otherwise than in bulk is not intended to be stored in India but is intended to be dispatched immediately after landing to any place outside India, he may waive the requirements of rules 14 and 19 and by written order permit subject to such conditions as he may specify such petroleum to be landed for the purpose of immediate dispatch to that place. The Commissioner of Customs shall ensure that the goods are immediately moved to the destination country. In the event of road breaches, etc., occurring maximum time of 30 days may be allowed from the date of landing of the goods upto the date of dispatch to the destinations outside of India.

(4) Nothing in this rule shall affect the power of the Commissioner of Customs to detain the petroleum under any other law or rule for the time being in force.

21. Landing of petroleum Class B or petroleum Class C in anticipation of the testing officer's report

-(1) Notwithstanding anything contained in rule 20 where the consignee furnishes a guarantee to re-ship the petroleum if the testing officer's report proves unfavourable, the Commissioner of Customs may in anticipation of the testing officer's report permit any petroleum which he believes to be petroleum Class B or petroleum Class C to be discharged

into boats or to be landed.

(2)

The permission granted under sub-rule (1) shall be subject to the conditions that the boats into which the petroleum is discharged shall remain at such place as the Conservator may specify or that the petroleum shall be landed at a landing place duly specified for the purpose by him and stored in an installation licensed under these rules.

22.

Unloading of petroleum in bulk

.-Subject to the provisions of Part II of Chapter III, petroleum imported in bulk shall be discharged into storage tanks on shore either directly or by means of barges or lighters specially constructed for carrying petroleum in bulk and only at such places as the Conservator may by general or special order direct.

23.

Unloading of petroleum otherwise than in bulk

.- (1) Subject to the provisions of Part II of Chapter III, petroleum imported otherwise than in bulk shall be landed either at jetties provided for the purpose, or in barges or lighters and only at such places as the Conservator shall direct.

(2)

No petroleum contained in containers shall be landed unless such containers are free from leakage and are of such strength of construction as not to be liable to be broken or to leak except in cases of gross negligence or extraordinary accident:

Provided that petroleum contained in containers, which do not satisfy the requirements of this sub-rule, may, subject to provisions of Part II of Chapter III and to such conditions as the Conservator may impose, be landed at separate landing place approved for the purpose.

24.

Transshipment of petroleum

.-Petroleum may be transhipped from one ship to another for conveyance to any other port, whether within or beyond the territory of India subject to the provisions of Part II of Chapter III.

Part III ? Importation By Land

25.

Petroleum to be imported by land only at authorised places

.-No petroleum shall be imported into India by land except at places specially authorised for the purpose by the Central Government.

26.

Declaration and certificate to be furnished and license to be produced before importing petroleum by land

.-Every person desiring to import petroleum by land shall furnish to the Commissioner of Customs-

(a)

a declaration in Form I signed by him or his agent;

(b)

a certificate of storage accommodation in Form II signed by him or his agent; and

(c)

the license or an authenticated copy of the license held for the importation and storage of such petroleum:

Provided that nothing in this rule shall apply to the importation of petroleum exempted under sections 7, 8 and 9 of the Act:

Provided further that the furnishing of license under clause (c) shall not be necessary for the importation of petroleum Class C, in bulk, in quantity exempted under section 7 of the Act.

27.

Permission of the Commissioner of Customs to unload petroleum

.- (1) No petroleum shall be unloaded except with the permission of the Commissioner of Customs.

(2)

If the Commissioner of Customs, after receiving-

(a)

the testing officer's report on the petroleum;

(b)

the certificate in Form II, if required by rule 26; and

(c)

the license, if required by rule 26, and after making such further inquiries as he deems necessary, is satisfied that the petroleum can be lawfully imported and that there is suitable accommodation for it, he shall permit it to be unloaded.

(3)

If the Commissioner of Customs is satisfied that any petroleum imported is not intended to be stored in India but is intended to be dispatched immediately after unloading to any place outside India, he may waive the requirements of rules 14 and 26 and by written order permit, subject to such conditions as he may specify, such petroleum to be unloaded for the purpose of immediate dispatch to that place.

(4)

Nothing in this rule shall affect the power of the Commissioner of Customs to detain petroleum under any other law or rule for the time being in force.

Chapter III

Transport Of Petroleum

Part I ? General

28.

Restriction on leaky receptacles

.-No leaky tank or container containing petroleum shall be tendered for transport.

29.

Loading of containers

.-Barrels, drums and other containers filled with petroleum shall be loaded with bung upwards.

30.

Restriction on passengers, combustible and inflammable cargo

.-Save as provided in rules 38, 39 and 52 and clause (b) of rule 60, no ship, vessel or vehicle shall carry petroleum Class A or petroleum Class B and Class C in bulk if it is carrying passengers or any combustible cargo other than petroleum:

Provided that nothing in this rule shall prohibit the use of dunnage for packing purposes in the case of coastwise transport of petroleum Class A otherwise than in bulk.

31.

Prohibition of smoking, fires, lights

.-No person while engaged in loading or unloading or transporting shall smoke or carry matches, lighters or other appliances capable of producing ignition or explosion.

32.

Restriction on loading and unloading by night

.- (1) Petroleum shall not be loaded into, or unloaded from, any ship, vessel or vehicle between the hours of sunset and sunrise, unless-

(a)

adequate electric lighting is provided at the place of loading or unloading and the provisions of Chapter IV are complied with; and

(b)

adequate fire-fighting facilities with personnel are kept ready at the place of loading for immediate use in the event of a fire.

(2)

Nothing in this rule shall apply to the refuelling of an aircraft by vessels or vehicles licensed under these rules in accordance with the provisions of the Indian Aircraft Rules, 1937, or to the refuelling of an aircraft by the Defence Forces of the Union.

Explanation .-For the purposes of this rule, the Chief Controller shall determine the adequacy or otherwise of the electric lighting and fire-fighting facilities.

Part II ? Transport By Water

33.

Conditions of carriage of petroleum in bulk by water

.(1) Petroleum in bulk shall not be carried by water, except in a ship or other vessel licensed for the carriage of petroleum in bulk by an officer appointed by the Central Government in this behalf (hereinafter in this Part referred to as the licensing authority) and the petroleum shall be stored in such part of the ship or other vessel and in such manner as may be approved by general or special order by the licensing authority after consultation with the Chief Controller:

Provided that-

(a)

nothing in this rule shall apply to vessels registered in a country other than India importing petroleum;

(b)

petroleum in tank vehicles may, with the permission, in writing, of the Chief Controller and subject to such conditions as he may specify, be transported across a river by a ferry.

(2)

The license referred to in sub-rule (1) shall be granted in Form III, and shall remain in force for a period of one year from the date of its issue.

34.

Requirement as to the construction of vessels

.-Every ship or other vessel carrying petroleum in bulk, other than a ferry permitted to transport tank vehicles under clause (b) of the proviso of sub-rule (1) of rule 33, shall be made of iron or steel well and substantially constructed with scantlings of ample dimensions in proportion to the size of the vessel:

Provided that the licensing authority may, in special circumstances, allow use of such ships or other vessels constructed of materials other than iron or steel under such conditions as it may, in consultation with the Chief Controller, specify.

35.

Tank fittings on ships or vessels

.-The following provisions shall apply for the transport of petroleum other than petroleum Class C in ships or other vessels, namely:-

(a)

all tanks shall be fitted with independent approved filling and suction pipes and valves, or with stand pipes with blank flanges, all pipes being carried down nearly to the bottom of the tanks, and no petroleum in bulk shall be taken on board or discharged except through such pipes and valves, unless otherwise permitted by the Chief Controller in writing;

(b)

all tanks shall be fitted with manholes having screw-down cover with petroleum-tight joints and, in the case of tanks intended for use with petroleum Class A, with ventilators or relief valves of approved pattern properly protected with wire gauge of a mesh not less than 11 meshes to linear centimetre; and

(c)

ventilators similarly protected shall be fitted to all spaces, around tanks.

36.

Self propelled barges

.-The following conditions shall be observed in self propelled barges transporting petroleum other than petroleum Class C, namely:-

(a)

the whole of the machinery shall be at the stern of the barge and shall be entirely separated from the cargo by a cofferdam consisting of two transverse petroleum-proof bulkheads separated by a space of atleast 15 centimetres;

(b)

each exhaust outlet from the machinery shall be fitted with an approved type of spark arrester;

(c)

no petrol-driven engine shall be used either as main engine or for the purpose of driving any auxiliary machinery or pumps;

(d)

a quick-action closing valve which can be operated from outside the machinery space, shall be fitted to each fuel feed pipe at its junctions with the fuel service tank;

(e)

the barge shall be provided with a heavy wood belting; and

(f)
suitable ventilators shall be fitted to the cargo space.

37.

Petroleum in bulk on barges and flats

.-Petroleum in bulk shall not be transported in a barge or flat unless the barge or flat is self propelled or is in tow of or otherwise, attended by, a steamer or tug and carrier-

(a)
at least four fire extinguishers suitable for extinguishing oil fires and a covered sand box, on deck, containing at least 0.20 cubic metres of dry sand;

(b)
a suitable hammer of non-sparking metal; and

(c)
a red flag.

38.

Restriction on cargo or passengers

.- (1) No ship or other vessel shall carry petroleum in bulk if it is carrying passengers, or any inflammable cargo other than petroleum or coal.

(2)
This rule shall not apply to petroleum Class C used as fuel and carried in cellular double bottoms under engine and boiler compartment and under ordinary holds; such fuel oil tanks and installations connected therewith shall comply with the provisions of the Indian Merchant Shipping (Construction and Survey of Passenger Steamers) Rules, 1956.

39.

Petroleum carried as cargo in unberthed passenger ships

.-Petroleum Class A shall not be transported as cargo by an unberthed passenger ship as defined in the Merchant Shipping Act, 1958 (

44 of 1958

):

Provided that the certifying officer referred to in section 243 of the Merchant Shipping Act, 1958 (

44 of 1958

), may in cases where he is satisfied that no other means of transporting the petroleum are available, permit petroleum Class A in quantity not exceeding 1,250 litres to be transported otherwise than in bulk by an unberthed passenger ship subject to-

(a)
the condition that no more persons shall be carried in the ship than can with safety be accommodated in the ship's life-boats in case of an accident; and

(b)
such other conditions as the certifying officer may, after consultation with the Chief Controller, impose:
Provided further that clause (a) of the first proviso shall not apply in the case of unberthed passenger ships engaged on voyages in the course of which they do not go beyond 32 kilometres from land.

40.

Prohibition of transport of petroleum Class A by country craft

.-No country craft shall carry petroleum Class A if it is carrying passengers.

41.

Restrictions on steamers or tugs employed in towing or attending a petroleum vessel

.- (1) No steamer or tug employed in towing or otherwise attending a barge, flat or lighter carrying petroleum, other than petroleum Class C in bulk, shall at the same time tow or otherwise attend any other vessel carrying on inflammable cargo other than petroleum or coal.

(2)
No such steamer or tug shall carry any inflammable cargo other than petroleum or coal.

(3)
All such steamers or tugs shall be fitted with efficient spark arrestors.

42.

Ventilations and cleaning of holds and tanks

-(1) Before any petroleum is discharged from a ship or vessel, the holds of such vessels shall be thoroughly ventilated: Provided that nothing in this sub-rule shall apply to any vessel carrying petroleum Class A not exceeding 30 litres or petroleum Class B not exceeding 2,500 litres or petroleum Class C.

(2)

After all petroleum has been discharged from any such vessel, the holds, tanks and bilge's of the vessel shall be rendered free from inflammable vapour.

(3)

Sub-rule (2) shall not apply to the tanks of a ship importing petroleum which leaves the port without delay after unloading of cargo or remains only for the purpose of taking on board bunkers, stores or ballast or for such other purpose as may be approved by the Conservator, if the tanks of every such ship are securely fastened down immediately after the discharge of the cargo.

(4)

Sub-rule (2) shall not apply to barges or lighters continuously engaged in the transport of petroleum in bulk, if-

(a)

an interval of not more than 72 hours is likely to elapse between an operation of unloading and the next loading operation; and

(b)

the tanks are securely fastened down immediately after unloading.

(5)

Sub-rule (2) shall not apply to specially constructed steel tank motor vessel approved by the Chief Controller which are engaged in the transport of petroleum in bulk on such rivers and on such ports thereof as may be approved by him in areas outside port limits, or by the Conservator within port limits, if the tanks of such vessels are securely fastened down immediately after unloading and the vessels depart not later than 12 hours after completion of unloading for their next place of loading.

(6)

All ships or other vessels which by sub-rule (3) or sub-rule (4) or sub-rule (5) are exempted from the application of sub-rule (2) shall until their holds and tanks have been rendered free from inflammable vapour, comply with all the rules applicable to ships or other vessels when carrying petroleum in bulk.

43.

Master of vessels specially responsible

-.The master or other officer-in-charge of any vessel which had carried petroleum on board whether as a cargo or as a fuel, or any vessel licensed under rule 33 shall be responsible to see that-

(a)

all due precautions are taken for the prevention of accidents due to ignition of petroleum or petroleum vapour;

(b)

so long as there is petroleum or petroleum vapour in a tank, all openings from the tank to the atmosphere except the gas escape line are kept closed and locked or otherwise securely fastened; and when it is necessary to take dips or samples, the sludge plugs or sighting ports are closed immediately after such dips or samples are taken:

Provided that subject to the provisions of clause (c), the master or officer-in-charge may cause the necessary openings to be opened or unlocked for the purpose of taking on board or unloading petroleum Class B or petroleum Class C for cleaning the tanks or for other sufficient reason;

(c)

no person enters a tank or an enclosed space which had, or is suspected to have contained petroleum without wearing a breathing apparatus of a type approved by the Chief Controller unless an officer appointed by the Central Government in this behalf has examined the tank or space with the aid of an approved petroleum vapour-testing instrument and has been certified by him in writing that the said tank or space is free from petroleum vapour;

(d)

the vessel does not undergo repair by hot work to any of its tanks, part of fittings which are likely to contain petroleum vapour or petroleum unless each such tank, part of fittings, as the case may be, has been examined by an officer

appointed under clause (c) with the aid of an approved petroleum vapour-test instrument and has been certified by him in writing that the tank, part or fittings is free from petroleum vapour or petroleum;

(e)

the vessel used for the carriage of petroleum in bulk as a cargo is not taken among other ships or to a dry dock unless-

(i)

the vessel is proceeding to an oil berth, or

(ii)

a certificate from an officer appointed under clause (c); to the effect that he has examined all the tanks, cofferdams, pump rooms and such other parts as are deemed necessary with the aid of an approved petroleum vapour-testing instrument, and that such tanks, cofferdams, pump rooms and other parts are free from petroleum vapour; and declaration from the Master that to the best of his knowledge there is no petroleum vapour present in other parts of the vessel not covered by the above certificate are produced;

(f)

the officer granting certificate under clause (c) or clause (d) or clause (e) may specify such conditions and make such recommendations as are necessary to maintain gas-free conditions of tanks, space or parts certified;

(g)

the certificate referred to in clauses (c), (d) and (e) shall be granted only on receipt of fee fixed by the Central Government from time to time;

(h)

the vessel or any steamer or tug towing or otherwise attending on such vessel exhibits conspicuously-

(i)

from sunrise to sunset a red flag not less than 90 centimetres square with a white circular centre 15 centimetres in diameter if petroleum Class A is carried and a red flag not less than 90 centimetres square if petroleum Class B is carried; and

(ii)

from sunset to sunrise such warning lights as may be required by the Conservator.

Note .-The port authority concerned shall be the authority for the issue of final permission for the purpose of clauses (c), (d) and (e) even though Gas Free Certificates have been obtained from the officer concerned under clause (c) of this rule.

[43-A. Agency undertaking ship breaking specially responsible

[Inserted by G.S.R. 61(E), dated 2.2.2007 (w.e.f. 2.2.2007).]

.-The Agency, which owns vessels meant for breaking or beaching, before undertaking breaking of such vessels, called ship breaking, shall be responsible to see that--

(a)

all due precautions are taken for the prevention of accidents due to ignition of petroleum or petroleum vapour;

(b)

so long as there is petroleum vapour in a tank, all openings from the tank to the atmosphere except the gas escape line are kept closed and locked or otherwise securely fastened; and subject the provisions of clause (c), the agency undertaking the ship breaking activities may cause the necessary openings to be opened or unlocked for cleaning the tanks or for making the tank free from petroleum vapour or for other sufficient reason;

(c)

no person enters a tank or an enclosed space which had, or is suspected to have contained petroleum without wearing a breathing apparatus of a type approved by the Chief Controller unless an officer appointed by the Central Government in this behalf has examined the tank or space with the aid of an approved petroleum vapour-testing instrument and has been certified by him in writing that the said tank or space is free from petroleum vapour;

(d)

the vessel does not undergo breaking by hot work to any of its tanks, part of fittings which are likely to contain petroleum vapour or petroleum unless each such tank, part of fittings, as the case may be, has been examined by an officer appointed under clause (c) with the aid of an approved petroleum vapour-test instrument and has been certified by him in writing that the tank, part of fittings are free from petroleum vapour or petroleum;

(e)

the vessel is not taken to ship breaking yard unless a certificate from an officer appointed under clause (c); to the effect that he has examined all the tanks, cofferdams, pump rooms and such other parts as are deemed necessary with the aid of an approved petroleum vapour-testing instrument, and that such tanks, cofferdams, pump room and other parts are free from petroleum vapour; and declaration from the agency undertaking the ship breaking activities that to the best of its knowledge there is no petroleum vapour, present in other parts of the vessel not covered by the above certificate are produced;

(f)
the officer granting certificate under clause (c) or clause (d) or clause (e) may specify such conditions and make such recommendations as are necessary to maintain gas free conditions of tanks, space or parts certified;

(g)
the certificate referred to in clauses (c), (d) and (e) shall be granted only on receipt of fee fixed by Central Government from time to time.

Note .-The port authority concerned shall be the authority for the issue of final permission for the purpose of clauses (c), (d) and (e) even though Gas Free Certificates have been obtained from the officer concerned under clause (c) of this rule.]

44.

Loading and unloading of bulk petroleum

.- (1) Petroleum in bulk shall not be loaded or unloaded into or from any ship/barge at any place unless-

(a)
the location is notified or permitted by the Central Government and the facilities are approved by Chief Controller under rule 16, in case of import, or

(b)
the location and facilities for loading or unloading are approved by the Chief Controller, in cases other than import.

(2)
Person(s) seeking approval under sub-rule (1)(b) of this rule shall submit to Chief Controller-

(a)
specification and plans drawn to scale in quadruplicate, indicating-

(i)
surroundings and all protected works within 500 metres of the loading or unloading facilities on all sides showing therein the location, size of the ship, available draft, navigation channel, turning circle, route of transfer pipeline(s),

(ii)
mooring or berthing facilities, service platform/berth, mode of loading or unloading, fire fighting facilities, illumination arrangements, control room, spill collection/containment arrangements, etc., and

(iii)
piping and instrumentation diagram of the petroleum pipeline(s) at the loading or unloading area:

(b)
comprehensive project report elaborating the scheme and methodology of loading or unloading of petroleum, safety and security features including those mentioned in (a)(i), (ii) and (iii) of this sub-rule;

(c)
Risk Analysis Report indicating qualitative and quantitative risks, probable failure scenarios and consequent hazards and damages with damage distances, etc., and remedies recommended;

(d)
scrutiny fee of rupees two thousand; and

(e)
copies of clearances obtained from the following authorities:-

(i)
Ministry of Shipping or State Maritime Board, as the case may be,

(ii)
Ministry of Environment and Forests or State Pollution Control Board, as the case may be.

(3)
Loading or unloading of petroleum in bulk shall be either by merchandised arm, or armoured hose metal pipe as

approved by Chief Controller.

(4)

All hoses, pipes and other appliances used in loading or unloading of petroleum shall be electrically and mechanically continuous and duly tested as per codes/standards.

(5)

The hose and metal pipes used for loading and unloading of petroleum in bulk shall be subjected to periodic testing.

45.

Precautions on suspension of loading or unloading

.-When the loading or unloading of petroleum has commenced, such loading or unloading shall proceed with due diligence and, if it is discontinued, the tanks, and holds of the ships or other vessels concerned and all loading or unloading valves shall be closed immediately.

46.

Prohibition of naked lights, fire and smoking on board a vessel

.-No fire, naked light, fuses, matches or other appliances for producing ignition or explosion and no smoking shall be allowed on board any barge, flat or lighter carrying petroleum in bulk or on board any vessel used for the transport of petroleum Class A otherwise than in bulk or for the transshipment of petroleum to or from any vessel within the limits of any port:

Provided that nothing in this rule shall prevent the use on a self-propelled barge of the machinery or propulsion.

47.

Prohibition of smoking, fire and lights, during loading or unloading

.-At all times during loading or unloading of a ship or other vessel and until such time as all petroleum shall have been loaded into or unloaded from the holds or tanks and the holds or tanks shall have been securely closed down and, in the case of unloading rendered free from inflammable vapour, there shall be no fire or artificial light or smoking on board such ship or other vessel or within 30 metres of the place where the petroleum is being loaded or unloaded:

Provided that nothing in this rule shall apply-

(i)

to the use of lamps, cookers or other similar apparatus, electric or otherwise so designed, constructed and maintained as to be incapable of igniting inflammable vapour or in the case of petroleum Class C the use of gally fires;

(ii)

to the unloading or loading of a ship under conditions approved by the Conservator by means of steam from her own boilers or power generated by electric motors or internal combustion engines placed in a position away from cargo holds and pump rooms or by means of electric motors, so designed, constructed and maintained as to be incapable of igniting inflammable vapour and maintained in accordance with the requirements specified by Lloyds or other ship surveyors approved by the Central Government.

48.

Fire-extinguishing appliances to be ready for use

.-Vessels unloading or loading petroleum shall have adequate fire-extinguishing appliances so disposed that they can be put into immediate use.

49.

Restriction on the simultaneous conveyance of different classes of petroleum

.- (1) Petroleum Class A shall not be conveyed to the shore from, or loaded into the same vessel simultaneously with petroleum Class B or petroleum Class C.

(2)

The Chief Controller may, by written order, exempt specially any particular operation from the provisions of sub-rule (1) if separate and distinct pipelines and pumps are provided for loading or unloading of petroleum Class A simultaneously with petroleum Class B or petroleum Class C.

50.

Transport by sea of petroleum which has not been tested

.-Petroleum which has been imported into any port approved under sub-rules (1) and (2) of rule 16 and which has not been tested at such port in accordance with the rules contained in Chapter X, shall not be transported to any port other than a port at which importation is permitted under sub-rule (1) of rule 16 and in accordance with the provisions of all the

rules in Chapter II.

Part III ? Coastwise Transport Of Petroleum Class A Otherwise Than In Bulk

51.

Application

-(1) The rules in this Part apply only to the transport coastwise of Petroleum Class A otherwise than in bulk.

(2)

Unless otherwise expressly provided in this Part, nothing contained in Part II of this Chapter shall apply to any petroleum transported in accordance with this Part.

52.

Conditions of transport by unberthed passenger ships

.-Petroleum Class A may be transported otherwise than in bulk by an unberthed passenger ship as defined in the Merchant Shipping Act, 1958 (

44 of 1958

), in accordance with the provisions of rules 29, 30, 39 and 54 to 60 (both inclusive).

53.

Maximum quantity allowed to be carried

.-Petroleum Class A may be transported otherwise in bulk by a country craft or steam or motor vessel other than unberthed passenger ship as defined in the Merchant Shipping Act, 1958 (

44 of 1958

) subject to the provisions of rules 29, 30, 39 and 54 to 60 (both inclusive), if the quantity of petroleum does not exceed-

(a)

in the case of country craft, the licensed carrying capacity of the vessel after taking into account the weight of barrels or tins in which the petroleum is carried; or

(b)

in the case of steam or motor vessel, 15 tonnes.

54.

Carriage below decks

-(1) Petroleum Class A shall not be carried below deck in decked vessels unless there are efficient ventilators in the hold.

(2)

Half of the ventilators referred to in sub-rule (1) shall be carried down nearly to the bottom of the holds and the other half of such ventilators terminated only a short distance below the deck, the short ventilators shall be labelled "Outlet or to Leeward" and the long ventilators shall be labelled "Inlet or to Windward", such ventilators shall have large cowl heads, the openings being covered with double copper or non-corroding metal gauze not less than 11 meshes per linear centimetre.

55.

Provisions of bulkhead

.-In all vessels other than country craft, a solid gas-tight bulkhead without openings, and in country craft a solid bulkhead without openings, shall be between the hold and the afterdeck where the crew are accommodated, and in vessels fitted with a poop the bulkhead shall be placed immediately in front of the poop. In decked vessels the bulkhead shall reach up to the deck, in all other vessels it shall reach to within 15 centimetres of the gunwale.

56.

Prohibition of fire, lights and smoking

-(1) No fire, naked light of any description and no smoking shall be allowed on any part of the vessel transporting petroleum Class A except abaft the solid bulkhead.

(2)

The navigational lights on any such vessel shall be carried abaft the bulkhead.

57.

Provisions of fire extinguishers.

-Fire extinguishers suitable for fighting oil fires shall be placed at convenient points on any vessel transporting petroleum Class A. Not less than two such fire-extinguishers shall be placed on the afterdeck.

58.

Construction of steam or motor-vessels

.-Steam or motor-vessels not specially constructed for the carriage of petroleum shall not carry petroleum unless they are constructed of iron or steel or any other material approved by the Chief Controller.

59.

Transport in steam or motor-vessels

.-On steam or motor vessels not specially constructed for the carriage of petroleum-

(a)

any petroleum shall either be carried in separate compartments which shall be gas-tight and shall be effectively sealed, or in a hold in which there are efficient ventilators in accordance with sub-rule (2) of rule 54 or on deck in accordance with rule 60;

(b)

petroleum Class A shall be packed in containers complying with the provisions of rules 4 and 5;

(c)

special precautions shall be taken against smoking and the use of lights or fire of any kind while cargo is being loaded or unloaded or while the hatches are off, or any deck openings are uncovered, before any lights are used in compartment which contains petroleum. Precautions shall also be taken to ensure that the space is clear of vapour and all empty containers which have contained petroleum Class A are kept securely closed.

60.

Transport of deck

.-Petroleum may be carried in deck in steamer or motor-vessels not specially built for the carriage of petroleum, subject to the following conditions, namely:-

(a)

in cargo ships petroleum Class A shall not occupy more than 50 per cent. of the open deck area and shall be so stowed as not to interfere with the navigation of the ship or make it unseaworthy;

(b)

in passenger ships a limited quantity of petroleum Class A may be carried provided that proper precautions are taken regarding stowage and keeping the packages away from passengers, promenade or deck space;

(c)

the petroleum shall be protected from the direct rays of the sun by the use of canvas awnings or otherwise; and

(d)

conspicuous notices shall be posted up, drawing attention to the danger arising from smoking or striking matches near the deck cargo.

61.

Conditions of transport by country craft

.-No petroleum Class A shall be transported in a country craft unless the following conditions are satisfied, namely:-

(a)

the petroleum shall be carried-

(i)

in 200 litres capacity steel barrels, the screw bungs of such barrels being well fitting and sealed; or

(ii)

in 200 litres capacity sealed steel drums, not more than three tiers of which may be carried on any single vessel; or

(iii)

in 10 litres capacity sealed tins, not more than six tiers of which may be carried on any single vessel; or

(b)

all barrels or tins shall be carefully examined and no leaky barrel or tin shall be taken on board the craft;

(c)

no barrels, drums or tins shall be placed within 1.2 metres of afterdeck where the crew are accommodated in the case of an undecked vessel or on deck in the case of a decked vessel; and

(d)

no passengers shall be carried on board the craft.

Part IV ? Transport On Land By Vehicles

62.

Application

.-The provisions of this Part shall apply to the transport of petroleum on land by vehicles except transport of-

(a)

petroleum Class A in quantity not exceeding 100 litres and petroleum of any other class, otherwise than in bulk, subject to the provisions of rule 67;

(b)

petroleum of any class transported by the Defence Forces of the Union.

63.

Tank vehicles

.- (1) Every tank vehicle used for the transport of petroleum, in bulk on land shall be built, tested and maintained in accordance with the requirements laid down in the Third Schedule and be of a type approved in writing by the Chief Controller:

Provided that the Chief Controller may under exceptional circumstances to be recorded in writing, waive any of the requirements of the Third Schedule. This will, inter alia, include approvals for trials of better quality vehicles that will contribute to enhancement of safety of petroleum transportation by road under Indian conditions.

(2)

The tank shall be fabricated and mounted on the vehicle chassis by a manufacturer approved by the Chief Controller. Such a manufacturer shall apply to the Chief Controller for approval with particulars of facilities and competent persons available with him and a scrutiny fee of rupees five hundred. The tank fabrication and mounting drawings in quadruplicate for each type of tank vehicle, alongwith scrutiny fee of rupees one hundred for each type of tank vehicles shall be submitted to the Chief Controller for approval. Such approval shall be valid for three years from the date of issue of approval and renewable for further period of 3 years on payment of fee of rupees five hundred.

(3)

If the Chief Controller, after receipt of the drawing under sub-rule (2) and after making such further inquiries as he deems necessary, is satisfied that the tank vehicle or the special safety fittings, as the case may be, meet with the requirements laid down in the Third Schedule, he shall approve the drawing and return to the applicant one copy thereof duly endorsed.

(4)

Nothing in this rule shall apply to tank wagons for the carriage of petroleum by rail.

64.

Tank capacity

.- (1) In this Part, "the tank forming part of a tank vehicle" shall be deemed to include any number of tanks on the same chassis and any limitation herein specified on the capacity of a tank shall be construed so as to permit the tank containing the quantity specified under varying degrees of temperature.

(2)

The net carrying capacity of a tank shall be 97 per cent. of its gross carrying capacity in the case of petroleum Class A and petroleum Class B and 98 per cent. in the case of petroleum Class C.

(3)

The net carrying capacity of a tank truck or a tank semi-trailer shall not exceed 25 kilolitres of petroleum except in case of air-craft refueller in which case it should not exceed 50 kilolitres and the net carrying capacity of any tank trailer should not exceed 5 kilolitres of petroleum.

(4)

The maximum safe carrying capacity in weight of petroleum that can be carried in a tank vehicle shall not exceed the difference between the unladen weight of the vehicle and the maximum gross weight permitted for the class of vehicle under the appropriate transport regulations.

65.

Restriction on other use

.-Tank vehicle meant for the carriage of petroleum in bulk shall not be used for any other purpose except when so authorised by the Chief Controller in writing.

66.

Trailers

-(1) A tank trailer not exclusively used for transporting petroleum shall not be attached to any vehicle for transporting petroleum.

(2)

A tank trailer transporting petroleum shall not be attached to any vehicle other than a vehicle used exclusively for transporting petroleum and not more than one trailer shall be so attached.

(3)

A tank trailer shall not be attached to a tank semi-trailer or a trailer.

(4)

A tank trailer or tank semi-trailer shall have reliable brakes on all wheels which shall be capable of efficient operation from driver's seat of the vehicle towing the trailer.

(5)

The width of the tank trailer or a tank semi-trailer shall be less than the overall width of the towing vehicle.

(6)

A tank trailer shall be so connected to the towing vehicle as to cause the trailer to follow substantially the path of the towing vehicle and to prevent the tank trailer from whipping or swerving side to side dangerously.

(7)

If a tank trailer carrying petroleum Class A is attached to a vehicle carrying petroleum Class B or petroleum Class C, the towing vehicle shall comply with all the provisions of these rules relating to a vehicle for the transportation of petroleum Class A.

(8)

A trailer other than a tank trailer shall not be attached to any tank truck.

(9)

Where a tank trailer is attached to a tank truck, the total quantity of petroleum transported in the tank trailer and the tank truck shall not exceed 15 kilolitres.

(10)

No tank trailer shall be attached to a tank truck having a net carrying capacity exceeding 12 kilolitres of petroleum.

(11)

No tank trailer attached to a tank truck shall be operated within a thickly populated area without the written permission of the district authority.

67.

Vehicle for transport otherwise than in bulk

-(1) Every vehicle on which petroleum otherwise than in bulk is transported shall be strongly constructed and with sides and back of adequate height, and shall be maintained in good condition.

(2)

In the case of animal-drawn vehicles, push carts and pedal carts, the requirements of sub-rule (1) regarding the sides and back of the vehicle shall not apply if the load is securely fastened to the vehicle.

(3)

All containers shall be so packed as not to project beyond the sides or back of the vehicle.

(4)

Petroleum Class A otherwise than in bulk shall not be transported in a trailer, attached to any vehicle.

68.

Composite vehicle

-.Petroleum in cans or in other containers shall not be transported by road on any tank vehicle used for transport of petroleum unless the vehicle is so constructed as to comply with the rules applicable to the transport of petroleum otherwise than in bulk as well as with the rules applicable to the transport of petroleum in bulk.

69.

Carriage of other articles prohibited

-.No vehicle shall carry any other article while it is carrying petroleum except when specially authorised in writing by the Chief Controller.

70.

Engines of mechanically propelled vehicles

-(1) In every mechanically propelled vehicle used for the transport by road of petroleum other than petroleum Class B otherwise than in bulk or petroleum Class C-

(i)

the engine shall be diesel engine or an internal combustion engine;

(ii)

the exhaust shall be wholly in front of the tank or the load, as the case may be and shall have ample clearance from fuel-system and combustible materials and shall not be exposed to leakage or spillage of the fuel or product or accumulations of grease or oil;

(iii)

the exhaust pipe shall be fitted with an approved spark arrestor;

(iv)

the muffler or silencer shall not be cut off from the exhaust system;

(v)

the engine air intake shall be fitted with an effective flame-arrestor, or an air cleaner having effective flame-arrestor, characteristics, substantially installed and capable of preventing emission of flame from the side of the engine in the event of backfiring;

(vi)

the cab of the vehicle shall be of all-metal construction and its rear window, if provided, shall be fully covered with wired glass; alternatively, the cab and the engine shall be separated from the tank or the load, as the case may be, by a fire-resisting shield which shall fully cover the tank or load.

(2)

The fuel tanks of every such vehicle, if installed behind the cab of vehicle, shall be-

(a)

so designed, constructed and installed as to present no unusual hazard, and shall be so arranged as to permit drainage without removal from their mountings; and

(b)

protected against blows by stout steel guards and provided with a lock in the filling caps.

(3)

In every engine running on petroleum Class A, quick action cut-off valve shall be fitted to the fuel feed pipe in an easily accessible position which shall be clearly marked.

(4)

Notwithstanding anything contained in this rule, provisions of sub-rules (1) to (3) except clauses (i) and (iii) of sub-rule (1), shall not apply for transportation of petroleum Class A otherwise than in bulk exclusively used by helicopters and aeroplanes for aerial crops-spraying purposes only.

71.

Electrical installation

.-If electric light or instrument or any other electrically-operated equipment is employed on any vehicle including a trailer used in the transportation by road of petroleum other than petroleum Class C-

(i)

the pressure of the electric circuit shall not exceed 24 volts;

(ii)

electric wiring shall-

(a)

be heavily insulated and be adequate for maximum loads to be carried;

(b)

be provided with suitable over-current protection in the form of fuses or automatic circuit breakers and installed so as to be protected from physical damage and contact with possible product spill either by location or by being encased in metal conduct or other oil resistant protective covering; and

(c)

have all junction boxes sealed;

(iii)

the generator, battery, switches, fuses and circuit brackets shall be carried in the cab of the vehicle or in the engine compartment and the battery shall be in an easily accessible position with a heavy-duty switch close by to cut-off the battery;

(iv)

generators and motors and switches thereof which are not installed within the engine compartment shall be of the approved flame-proof type:

Provided that where such generators or motors or switches thereof are installed in an enclosed space, adequate provision shall be made for air circulation to prevent overheating and possible accumulation of inflammable vapours:

Provided further that the provisions of this rule except clause (i) and sub-clause (a) of clause (ii) shall not apply for transportation of petroleum Class A otherwise than in bulk exclusively used by helicopters and aeroplanes for aerial crop spraying purposes only.

72.

Means of extinguishing fire to be carried

.-A portable fire extinguisher (10 kg. dry chemical powder or equivalent) suitable for extinguishing petroleum fire shall be carried in an easily accessible and detachable position and away from the discharge faucets on every vehicle transporting petroleum by road. Additionally, one dry chemical powder type fire extinguisher of 1 kg. capacity shall be carried in the driver's cabin of the vehicle.

73.

Vehicles to be constantly attended

.- (1) Every vehicle which is engaged in the transport of petroleum by road shall be constantly attended to by at least one person who shall be familiar with the rules in this Part:

Provided that such a vehicle, if its tanks or compartments are empty, but not free from petroleum vapour, may be left unattended in places previously approved for the purpose in writing by the Chief Controller.

(2)

Every vehicle in which more than 5 kilolitres of petroleum, other than petroleum Class C, is being transported by road, or which, while transporting petroleum, other than petroleum Class C by road, is being trailed by another vehicle, shall, so long as it is in motion, be attended to, by the driver and at least one more person both of whom shall be familiar with the rules in this Part.

74.

Prohibition as to parking

.-No vehicle carrying petroleum by road shall be parked on a public road or in any congested area or at a place within 9 metres of any source of fire.

75.

License necessary for the transport in bulk of petroleum Classes A and B

.- (1) No person shall transport petroleum Class A or petroleum Class B in bulk, by road except under and in accordance with the condition of a license granted under these rules.

(2)

Nothing in this rule shall apply to the transport by railway administration of petroleum which is in its possession in its capacity as a carrier or to the transport of petroleum in the refueller, licensed under these rules between places within the same aerodrome.

76.

Restriction against loading and unloading of tank vehicles

.- (1) No person shall load or unload a tank vehicle with any class of petroleum except at a place which is situated within premises licensed under these rules and is approved in writing, for loading or unloading of such class of petroleum, by the Chief Controller:

Provided that petroleum Class C may be loaded or unloaded at a place where such petroleum is allowed to be stored without license under sections 7 and 10 of the Act:

Provided further that-

(a)

a tank wagon may be loaded or unloaded at railway sidings earmarked for the purpose; and

(b)

a tank vehicle may be unloaded at any other place with all due precautions against fire and under adequate supervision if such unloading is necessitated by an accident or breakdown.

(2)

Every tank vehicle, while it is being loaded or unloaded and until its valves have been shut and filling pipe and discharge faucets closed, shall be attended to by a person who is familiar with the rules in this Part.

(3)

No person shall under any circumstances allow filling or replenishment of the fuel tank of any motor vehicle or internal combustion engine directly from a tank vehicle:

Provided that nothing in this sub-rule shall restrict filling or replenishment of the fuel tank of an aircraft in accordance with the rule framed under Aircraft Act, 1934 (22 of 1934).

77.

Prohibition of loading of leaky or defective tank vehicles or unlicensed tank vehicles

.-No person shall load-

(i)

any class of petroleum in tank vehicle if any tank, compartment, valve, pipes or any safety fitting thereof becomes leaky or defective and until such leaks are repaired and defects rectified and, in the case of any leak in a tank or a compartment until all the tanks or compartment are re-tested in the manner laid down in para 5 of the Third Schedule and pass the test;

(ii)

petroleum Class A or petroleum Class B in any tank vehicle other than a tank wagon which is not licensed under these rules.

78.

Precautions against static charges

.- (1) All petroleum pipelines entering any tank vehicle loading or unloading area shall be electrically continuous and be efficiently earthed.

(2)

An earth boss with a flexible cable having robust clamping device shall be provided adjacent to the loading point.

(3)

Sound and electrically continuous hoses or metal pipes shall only be used for loading or unloading of a tank vehicle. Where stand pipes or metallic loading arms are provided, swivel joints shall be electrically continuous.

(4)

The tank, filling pipe and the chassis of the tank vehicle shall, during loading of a tank vehicle, be efficiently bonded and connected with the earth boss referred to in sub-rule (2) by means of a flexible metal wire or tape.

(5)

The bonding and earthing connections shall not be broken until loading of the tank vehicle has been completed and the filling and dip pipes thereof have been securely closed.

(6)

Dip rod, if used, shall be lowered into the tank or compartment before loading of petroleum starts; such a rod shall not be completely raised above the liquid level during or within one minute of the completion of such loading.

(7)

No tank vehicle shall be loaded at a rate exceeding one metre per second at the delivery end of the filling pipe until the filling pipe is completely submerged in petroleum and thereafter the loading rate may be gradually increased but it shall at no time exceed six metres per second at the delivery end of the filling pipe:

Provided that the Chief Controller may specify a faster loading rate in respect of crude petroleum and petroleum products which have a relative higher conductivity rate.

(8)

No tank or compartment of any tank vehicle which has last carried petroleum Class A, shall be filled with petroleum of any other class if the interior thereof has any floating non-conducting loose object or water. No tank vehicle shall be subjected to splash loading.

79.

Precautions against electrical hazards and hazard of a running engine

.-No mechanically propelled vehicle for the petroleum shall be loaded or unloaded until its engine has been stopped and battery is isolated from the electrical circuit. The engine shall not be restarted and the battery shall not be connected to the electrical circuit until tanks and valves have been securely closed:

Provided that this rule shall not apply in the case of unloading of a tank vehicle into the fuel tank of aircraft in accordance with the rules framed under the Aircraft Act, 1934 (22 of 1934) or in any other case as may be authorised, in writing, by the Chief Controller subject to such conditions as he may specify in that behalf.

80.

Precautions against movements of vehicles during loading or unloading

.-Petroleum shall not be loaded into or unloaded from a vehicle until its wheels have been secured by efficient brakes or by scotching and in the case of animal-drawn vehicle until the animals have been unhitched and removed.

81.

Precaution against product contamination

.- (1) No person shall load or unload any tank vehicle unless he has selected the correct filling hose and otherwise satisfied himself that such loading or unloading will not result in any dangerous contamination of one class of petroleum with another class of petroleum.

(2)

A tank or compartment which carried petroleum Class A shall not be filled with any other class of petroleum until such tank or compartment has been completely drained of residual oil and its discharge faucet and emergency control valve have been closed firmly.

82.

Filling discharge faucet and dip pipes to be kept closed

.-Except during the operation of loading or emptying a tank vehicle, the filling pipe, discharge faucet and dip pipe shall be kept securely closed. Where the filling pipes are not provided with a liquid seal, the covers shall be locked or sealed except during the operation of loading a tank vehicle and the keys shall not be carried on the vehicle or the trailer.

83.

Restrictions on loading and unloading of petroleum at night

.-Except where approved electric lights as specified in Chapter IV are exclusively used, the loading or unloading of tank vehicles carrying petroleum shall be performed between the hours of sunrise and sunset.

84.

Prohibition of fires and smoking

.- (1) No fire or other artificial light capable of igniting inflammable vapour shall be allowed on any vehicle containing petroleum Class A or petroleum Class B and Class C in bulk.

(2)

No person shall smoke while on or attending such a vehicle.

(3)

No article or substance capable of causing fire or explosion shall be carried on such a vehicle.

85.

Repair of tank

.- (1) No tank which has carried petroleum shall be repaired by welding, brazing, soldering or hot-riveting unless it has been examined by a competent responsible person and certified in writing by such person to be free from inflammable vapours or oil.

(2)

The certificate issued by the competent and responsible person under sub-rule (1) shall be preserved by the repairer for a period of at least three months and shall be produced for examination on demand by an Inspector.

(3)

All repairs to tanks which have contained petroleum shall be carried out by qualified and experienced persons.

(4)

All the compartments of the tank shall be tested after each repair in the manner laid down in para 5 of the Third Schedule.

86.

Special provisions for motor conveyances

-(1) No motor conveyance carrying passengers on hire shall carry petroleum other than-

(a)

petroleum in the tank incorporated in the conveyance, and

(b)

petroleum not exceeding 100 litres in quantity intended to be used to generate motive power for the conveyance of that vehicle and kept in the manner provided in sub-section (2) of section 8 of the Act.

(2)

During the filling or replenishment of the fuel tank of a motor conveyance licensed for the carriage of more than six passengers on hire, the driver or other person in charge of such conveyance shall not allow any passenger to remain therein.

(3)

All petroleum containers carried in a motor conveyance carrying passengers on hire shall be free from leaks and be securely closed and shall be placed in a specially prepared receptacle which is not accessible to passengers in such conveyance and is not on the roof.

Part V ? Transport By Pipelines

87.

Application

.-The rules in this Part apply only to the transport of petroleum by means of pipelines other than those in any area in which operation for the winning of natural petroleum or natural gas or both are carried on or within the limits of refineries and installations.

88.

Right of way to be acquired

.-No pipeline and installation connected with a pipeline, shall be constructed without acquiring the necessary land, leaseholds and right for the construction thereof and for the unhindered access thereto for inspection, maintenance, repairs, replacements and patrolling.

89.

Approval of the design and route of the pipeline

-(1) No pipeline shall be laid without the prior written approval of the Chief Controller of the route of the pipeline, and of the design, construction and working thereof.

(2)

Where the approval of the Chief Controller is sought for the laying of a pipeline, the person desirous of laying the pipeline shall submit to the Chief Controller-

(i)

a comprehensive project report, accompanied by all necessary drawings, calculations giving references to recognised code or codes followed, giving full details of the design, construction and testing of the pipeline and its components, the route along which the pipeline will be laid and the manner of laying, the class or classes of petroleum proposed to be transported in the pipeline and provisions proposed to be made for the maintenance and patrolling of the pipeline;

(ii)

a scrutiny fee of rupees five hundred.

90.

Design of pipeline and attachments

-(1) The pipeline shall be constructed of suitable steel which is safe for the conditions under which it is to be used.

(2)

The pipeline and its components shall be designed and constructed in accordance with a code recognised by the Chief Controller or OISD Standard-141 regarding design and construction requirements for cross country hydrocarbon pipelines and shall be capable of withstanding a pressure which shall not be less than the maximum working pressure thereof plus an allowance for surge pressure, as anticipated.

(3)

Provision shall be made for thermal expansion or contraction of the pipeline and for the prevention of excessive stresses

on the pipeline or its anchorages, guides and connections.

(4)

The pipeline shall be protected by a casing of steel pipe or by increasing the thickness of its wall or in any other manner approved by the Chief Controller and any other authority having jurisdiction to prevent damage to the pipeline from usual external conditions which may be encountered in railway crossings, road crossings, river or water course crossings, bridges, long self supported spans, unstable ground, vibrations, weight of special attachments or thermal forces.

(5)

By-pass relief valves, pressure limiting stations or automatic shut down equipment of approved design shall be provided in the pipeline to prevent rising at any time of the pressure, in the pipeline to a pressure which exceeds the designed internal pressure by more than ten per cent.

(6)

Isolation valves shall be installed at each of the following locations:-

(a)

on the suction end and the discharge end of the pump station in a manner that permits isolation of the pump station equipment in the event of an emergency;

(b)

on each line entering or leaving the installation in a manner that permits isolation of the installation from other facilities;

(c)

on each main line at locations along the pipeline system that will minimise damage from accidental product discharge, as appropriate for the terrain in open country or for the location near cities or other populated areas;

(d)

on each lateral take off from a trunk line in a manner that permits shutting off the lateral without interrupting the flow in the trunk line;

(e)

on each side of a water crossing that is more than 30 m wide from high-water mark to high-water mark;

(f)

on each side of a reservoir holding water for human consumption.

91.

Laying of pipeline

-(1) Pipeline shall be laid in the most favourable route, avoiding as far as possible, known obstructions and areas in which unusual external conditions prevail.

(2)

Pipeline shall be laid below the ground level except where laying thereof above the ground level is desirable for topographical, economic or other special reasons.

(3)

Where an underground pipeline has to cross any existing underground water or gas line, cable, drain or other services, the pipeline shall be laid at least thirty centimetres below such services in a manner that will not obstruct access to such services for inspection, repair, or maintenance.

(4)

The number of bends in the pipeline shall be kept to the minimum by proper grading of trenches or supports at crossing and other obstacles.

(5)

The route of underground sections of a pipeline shall be indicated by markers and not less than two such markers shall be visible from any point along the route.

92.

Protection against corrosion

-.The pipeline shall be protected against corrosion by suitable coating, strapping and where necessary by cathodic protection.

93.

Hydrostatic testing of pipeline

-(1) Before transporting petroleum for the first time, each pipeline or completed sections thereof shall be filled with water

and the pressure in the line or section, as the case may be, raised to 1.1 times the design internal pressure and maintained for a period of at least 24 hours or as per procedure laid down in the relevant pipelines design code recognised by Chief Controller. A pipeline or a section thereof showing any significant drop of pressure during the period of testing shall not be used for transporting petroleum until necessary repairs have been carried out and satisfactory retest done.

(2)

The test specified in sub-rule (1) shall be carried out atleast once every 12 months in each completed pipeline section which crosses an area where there is danger of water pollution by any leakage:

Provided that the Chief Controller may, subject to such conditions as may be specified by him in this behalf, allow retesting of such sections of the pipelines as are protected by sleeves or otherwise-

(i)

to contain or prevent leakage at longer intervals, and

(ii)

by filling them with petroleum in place of water for the purposes of test.

(3)

The provisions of sub-rule (2) shall not apply to cross-country pipelines, for which new technologies are available.

94.

Shut down of pipelines

.-Except when shut down for maintenance work, a pipeline when not in operation shall be shut down under pressure and a careful record made of the pressure during the shut down period. Any significant drop in pressure shall be deemed to render the pipeline unfit for transport of petroleum until it is repaired and tested in accordance with rule 98 and on significant drop in shut down pressure is observed and it passes the test specified in rule 93.

95.

Patrolling of pipeline

.- (1) The whole of every pipeline shall be efficiently patrolled by the company owning the pipeline.

(2)

Telegraph or telephone or radio communication facilities shall be provided at frequent intervals along the pipeline:

Provided that one such communication channel shall suffice for a series of parallel pipelines laid close to each other:

Provided further that nothing in this sub-rule shall apply to a pipeline if the length thereof does not exceed two kilometres.

96.

Checking of gauges

.-Tank gauges or gauges at intermediate or booster pump stations shall be checked atleast once a year.

97.

Additions and alterations in the pipeline

.- (1) No addition or alteration to a pipeline shall be carried out without the previous approval of the Chief Controller in writing.

(2)

Every person desirous of carrying out any additions or alterations in any pipeline shall submit to the Chief Controller an application alongwith-

(a)

three copies of a drawing to scale and a full descriptive note of the proposed additions and alterations and the purpose thereof, and

(b)

a scrutiny fee of rupees five hundred.

(3)

On receipt of the drawings and fee under sub-rule (2) and after eliciting such additional information as may be required, the Chief Controller shall, if he is satisfied, approve the proposed additions or alterations subject to such conditions as he may deem fit.

98.

Repair and maintenance of pipeline

.-No maintenance or repair involving cutting or rewelding of any pipeline shall be carried out except under following conditions, namely:-

- (i)
an experienced engineer shall inspect the section requiring maintenance or repair before the work is undertaken and issue a written permit specifying therein the precautions to be observed and the procedure to be followed for carrying out the work. The permit so issued shall be preserved by the owner of the pipeline for a period of six months;
- (ii)
all work involving cutting or welding shall be carried out by an experienced person in accordance with the permit referred to in clause (i);
- (iii)
the section of the pipeline shall be isolated and drained before starting repairs or maintenance;
- (iv)
only mechanical cutters shall be used for cutting the pipeline or any connection thereof unless the section of the pipeline and its connections have been purged with an inert gas;
- (v)
no hot work shall be carried out on any pipeline until the section thereof requiring repair has been isolated, drained and purged with inert gas or steam or kept filled with water or until such section has been prepared in a manner approved in writing by the experienced engineer;
- (vi)
the section of the pipeline in which repairs or maintenance work has been carried out shall be used for transporting petroleum until such sections are replaced with hydrostatically pretested sections and the repaired weld joints pass the radiography test;
- (vii)
no section of any pipeline and no valve fitted to it shall be separated until an efficient electrical bond has been established between the parts to be so separated which shall not be broken until the separated parts have been rejoined.

99.

Relaying or repairs to a pipeline in public interest

.-Where the Chief Controller is of the opinion that it is in the interest of public safety to do so, he may, by a notice in writing given to the owner of the pipeline, require such owner, to relay, renew or repair such pipeline in accordance with such requirements as may be specified in such notice.

100.

Power of inspection and examination

.-The Chief Controller or Controller may at any time inspect and examine any pipeline, and the owner thereof or persons operating or using the pipeline and the person on whose land such pipeline is situated or his representative shall facilitate such inspection and examination and answer all inquiries put by the Chief Controller or Controller in regard to such pipeline.

101.

Reports of fire or major leakage

.-The occurrence of any fire or major leakage in a pipeline and connected facilities thereof shall be reported immediately by the person for the time being incharge of the pipeline to the nearest Magistrate or officer-in-charge of the nearest police station and to the Chief Controller by telephone/fax and also by telegram at his telegraphic address, namely "Explosives Nagpur".

Chapter IV

Electric Installation

102.

Restriction on electric installation and apparatus

.-Save as provided in this Chapter, no electric wiring shall be installed and no electric apparatus shall be used in any refinery, installation, storage shed, service station or in any other place where petroleum is refined, blended, stored, loaded or unloaded.

103.

Hazardous area

.-For the purpose of this Chapter, an area shall be deemed to be a hazardous area, where-

- (i)
petroleum having flash point below 650C or any inflammable gas or vapour in a concentration capable of ignitions is likely to be present;
- (ii)
petroleum or any inflammable liquid having flash point above 650C is likely to be refined, blended, handled or stored at above its flash point.

104.

Classification of hazardous area

.- (1) A hazardous area shall be deemed to be-

- (i)
a zone "0" area, if inflammable gases or vapours are expected to be continuously present in the area; or
- (ii)
a zone "1" area, if inflammable gases or vapours are likely to be present in the area under normal operating conditions; or
- (iii)
a zone "2" area, if inflammable gases or vapours are likely to be present in the area only under abnormal operating conditions or failure or rupture of an equipment.

(2)

If any question arises as to whether hazardous area is a zone "0" area or a zone "1" or a zone "2" area, the decisions thereon of the Chief Controller shall be final.

105.

Extent of hazardous area

.-The extent of hazardous area shall be as laid down in the Fourth Schedule:

Provided that the Chief Controller may, increase or reduce the extent of hazardous area where there are special circumstances which, in his opinion, warrant such increase or reduction, and the persons affected shall be informed of his decision.

106.

Fixed electric apparatus

.- (1) No electric apparatus shall be allowed in a zone "0" area:

Provided that this sub-rule shall not prohibit the use in a zone "0" area of an intrinsically safe apparatus of a type approved in writing by the Chief Controller and in connection with an intrinsically safe circuit, where use of such apparatus cannot be completely excluded.

(2)

All electric apparatus installed or used in a zone "1" area shall be either-

- (i)
a flame proof or intrinsically safe apparatus of a type or types approved in writing by the Chief Controller, or
- (ii)
an industrial-type apparatus housed in an enclosure or a room which has been made safe by pressurising or purging with a plenum of atmosphere free from significant concentration of any inflammable gas or vapour and so arranged and inter-locked that in case of failure of the pressurising or purging agent, the electricity supply is automatically cut off or a warning is automatically given to a person in attendance who shall take suitable measures to prevent a hazard.

(3)

All electric apparatus installed or used in a zone "2" area shall be either-

- (i)
a non-sparking apparatus of a type approved by the Chief Controller; or
- (ii)
an apparatus of any of the types permitted under sub-rule (2).

(4)

Where the approval of the Chief Controller is sought for any type of electric apparatus for use in hazardous area, the

person desirous of manufacturing the apparatus shall submit to the Chief Controller-

(i)
a comprehensive report accompanied by all necessary drawings, calculations giving references to recognised code or codes followed, full details of design and construction and necessary test certificates from the recognised bodies in respect of the apparatus and its components;

(ii)
a scrutiny fee of rupees five hundred.

107.

Fixed electric wiring

-(1) All conductors of an intrinsically safe circuit in connection with an intrinsically safe apparatus installed in any hazardous area shall be so laid as to prevent invasion of such circuit by current arising from contact or electrostatic or electromagnetic induction from any other circuit. Conductors of intrinsically safe circuits shall be effectively protected against mechanical damage.

(2)
All electric wiring in a hazardous area, other than the conductors of an intrinsically safe circuit, shall be effectively sealed at all joints, mechanically protected and adequately supported throughout its length and shall consist of-

(i)
approved armoured cable with correctly designed terminations, complete with armour clamps, the armouring being carried and electrical clamps to provide mechanical support to the cable and electrical continuity; or

(ii)
approved metal sheathed cable with correctly designed and installed terminations; or

(iii)
single or multicored insulated cables accommodated in solid drawn heavy gauge screwed galvanised conduits used in conjunction with approved flame-proof fittings, the conduit being sealed at both ends and installed in such a manner as to permit internal condensation to drain to a point or points from which it may be removed; where a conduit runs from a zone "1" area to zone "2" area or an area which is not hazardous area, an adequate seal shall be provided outside the boundary of zone "1" area;

(iv)
single or multicored mineral insulated cable of approved type in conjunction with approved flame-proof type glands at all joints and terminations;

(v)
bare conductors contained in an approved flame-proof or forming part of an intrinsically safe circuit.

(3)
Insulated cables without metallic sheathing or armouring but accommodated in a conduit shall not be buried in the open ground in any hazardous area.

(4)
The electric supply circuits of each electric pump in a hazardous area shall be-

(i)
separately protected by a fuse or circuit breaker set to operate when the current in the circuit so exceeds the rated current for such a period of time as to involve danger; and

(ii)
provided with an individual isolating switch at the main supply point for each electric pump including its integral lighting system, if any.

(5)
If the Chief Controller is satisfied that the requirements of sub-rules (1) and (2) may be modified or relaxed in any class of electric wiring, he may authorise such modification or relaxation for such period and subject to such conditions as he may think fit.

108.

Earthing and bonding

-(1) All electrical systems and equipments and all structures, plants and other non-current-carrying metallic parts of major electric apparatus or any major metallic object in any place where petroleum is refined, blended, stored, loaded or

unloaded shall be efficiently earthed; the resistance value of and earthing system of the general mass of the earth, shall not be more than-

(a)

4 ohms in the case of electrical systems and equipment or a valve that ensures the operation of the protective device in the electrical circuit, whichever is lower, and

(b)

10 ohms in the case of all non-current-carrying metallic parts of major electric apparatus or any major metallic object.

(2)

All joints in pipeline, valves, plants, storage tanks and associated facilities and equipments for petroleum shall be made electrically continuous by bonding or otherwise; the resistance value between each joint shall not exceed 1 ohm.

(3)

A piping which is not in electrical contact with the associated tank or vessel shall be efficiently connected to such tank or vessel by a flexible conductor and earthed.

109.

Cathodic protection

-(1) Cathodic protection system where employed shall be designed and installed in accordance with the current recognised practice and so maintained as-

(a)

not to affect adversely metallic bodies in the zone of protection; and

(b)

to eliminate the danger of sparking in a hazardous area.

(2)

The metallic structures, pipelines, valves, plants and associated equipments under cathodic protection shall not be broken for repair or maintenance unless a heavy gauge conducting cable is clamped to each side of the intended break for establishing between them an electrical bond and the cable shall remain clamped until repair or maintenance work is completed and the break rejoined.

110.

Protection against stray current

-(1) Where high values of stray currents are likely to exist, both the rails of spur lines shall be insulated from a railway siding which is used for the loading or unloading of tank wagons.

(2)

On electrified railway systems, live-contact rails and overhead electric lines shall be terminated outside the area where tank wagons are loaded or unloaded, such rails or overhead lines shall not be allowed within a refinery or an installation.

(3)

No joint in a pipeline or associated equipments shall be broken save as provided in sub-rule (2) of rule 109.

111.

Portable electric apparatus

-(1) No person shall instal or use in a hazardous area any portable electric lamp or apparatus other than a portable lamp or apparatus of a type approved by the Chief Controller after such examination and test and for such application as he may specify.

(2)

No mains operated portable lamp shall be operated at a voltage exceeding 25 volts above the earth:

Provided that the Chief Controller may, at his discretion, allow higher operating voltage not exceeding 55 volts above earth.

(3)

All portable lamps or apparatus other than a self-contained lamp or apparatus shall be connected to the mains in such a manner and used under such conditions as the Chief Controller may specify.

112.

Maintenance of approved electric apparatus and wiring

.-All electric apparatus and wiring in a hazardous area shall at all times be so maintained as to retain the characteristic on which their approval has been granted.

113.

Repair and test work

-(1) No flame-proof or intrinsically safe apparatus shall be opened and no work likely to impair the safety characteristics of such apparatus or electric wiring connected thereto shall be carried out until all voltage has been cut off from the said apparatus or wiring. The voltage shall not be restored thereto until the work has been completed and the safety characteristics provided in connection with the apparatus and wiring have been fully restored.

(2)

Notwithstanding anything contained in this rule, use of soldering apparatus or other means involving flame, fire or heat or use of industrial type apparatus in a zone "1" area shall be permitted for the purposes of effecting repairs and testing and alterations, provided that the area in which such apparatus or wiring has been installed, has first been made safe and certified by a competent person after testing with an approved gas-testing apparatus to be safe and free from inflammable vapours, gases or liquids and is maintained in such conditions, so long as the work is in progress.

114.

Certificate of electric installation

-(1) Before engineering any electric circuit and any electric apparatus in hazardous area for the first time and after each repair, maintenance or alteration work carried out in such circuit or apparatus, a competent person shall issue a certificate under his signature to the effect that the circuit and the apparatus have the safety characteristics upon which their use in such area has been approved.

(2)

The certificate referred to in sub-rule (1) shall be preserved by the occupier of the premises and shall be produced to the Inspector on demand:

Provided that the certificate issued for each repair and maintenance work need not be preserved for a period exceeding six months.

115.

Precautions against corrosion

-(1) Where necessary, all electric apparatus and equipments and conduits carrying electric wiring in a hazardous area shall be regularly treated with a suitable protective paint.

(2)

The certification label indicating the flame-proof or intrinsically safe nature of the apparatus or equipment shall not be painted over or treated in any manner to impair the legibility of the particulars written, stamped or embossed on such label.

Chapter V

Storage Of Petroleum Requiring License

116.

License for storage

.-Save as provided in sections 7, 8 and 9 of the Act, no person shall store petroleum except under and in accordance with a license granted under these rules:

Provided that no license shall be necessary-

(i)

for the storage of petroleum in well-head tanks; or

(ii)

for the storage of petroleum as transit cargo within the limits of a port subject to such conditions as may be specified by the Conservator.

117.

Precautions against fire

-(1) No person shall smoke in any installation, storage shed or service station save in places specifically authorised by the licensing authority for the purpose.

(2)

No person shall carry matches, fuses or other appliances capable of producing ignition or explosion in any installation or storage shed which is used for storage of petroleum.

(3)

No fire, furnace or other source of heat or light capable of igniting inflammable vapour shall be allowed in any installation, storage shed or service station save in places specially authorised by the licensing authority for the purpose.

(4)

(i)

An adequate number of portable dry chemical powder or any other fire extinguisher capable of extinguishing oil fires shall always be kept in every storage shed and small Class B or C installations at strategic points and all persons employed at such locations shall be conversant with the use of such fire extinguishers.

(ii)

Scale of fire fighting provided in other areas of installation should be as per the requirement given to OISD Standard-117 for all installations approved by the Chief Controller after publication of the original standard OISD-117. For installations existing prior to the publication of the standard the fire fighting facilities shall be improved to the extent feasible (keeping this standard in mind) and approved by the Chief Controller.

118.

Supervision of operations within an installation, service station or storage shed

.-All operations within an installation, service station or storage shed shall be conducted under supervision of an experienced responsible agent or supervisor who is conversant with the terms and conditions of the license held for the installation, service station or storage shed, as the case may be, and those persons should have proper safety training.

119.

Cleanliness of installation, service station or storage shed

.-The ground in the interior of an installation or service station and the protected areas surrounding any installation, service station or storage shed shall be kept clean and free from all vegetation, waste material and rubbish.

120.

Drainage

.- (1) All enclosures surrounding above ground tanks in an installation shall be provided with proper drainage facilities in such a way that no water is allowed to accumulate in the enclosure.

(2)

No part of the enclosure referred to in sub-rule (1) shall be below the level of the surrounding ground within the protected area.

(3)

Where drainage is effected by means of a pipe, the pipe shall be fitted with a valve which is capable of being operated from the outside of the enclosure or with any other arrangements approved in writing by the Chief Controller.

(4)

All valves and other opening for draining off water shall be kept closed except when water is being drained off.

(5)

The nature of the drainage arrangements and the position of all openings and valves therein shall be shown in the plan submitted with the application for a license.

121.

Exclusion of unauthorised persons

.- (1) The protected area surrounding every installation and storage shed shall be surrounded by a wall or fence of at least 1.8 metres in height.

(2)

In case of service station 1.2 metre high boundary wall or fence on sides other than the drive way shall be provided.

(3)

Precautions shall be taken to prevent unauthorised persons from having access to any storage shed or installation.

122.

Petroleum only to be stored

.-No installation, service station or storage shed shall, without permission in writing from the Chief Controller be used for any purpose other than the storage and distribution of petroleum and for purpose directly connected therewith.

123.

Marking of capacity of tanks

.-The capacity in litres/kilolitres of every above ground tank in an installation shall be conspicuously marked on the tank.

124.

Construction of tanks

-(1) Every tank or receptacle for the storage of petroleum in bulk other than a well-head tank shall be constructed of iron or steel in accordance with the codes or specifications approved by the Indian Standards Institution or any other code or specification approved in writing by the Chief Controller:

Provided that if the properties of petroleum to be stored, so required or for any other reason it is necessary to do so, tanks or other receptacles may be built of materials other than iron or steel.

(2)

The tanks or other receptacles shall be erected on firm foundations or supports of non-combustible material in accordance with sound engineering practice.

(3)

The height of a storage tank shall not exceed one and a half times its diameter or twenty-metres, whichever is less.

Explanation .-For the purpose of this sub-rule, the height of a tank shall be the height from its bottom to top curb angles.

(4)

An air space of not less than five per cent. of the total capacity of the tank or the space prescribed in the code or specification referred to in sub-rule (1), whichever is less, shall be kept in each tank.

125.

Protection against corrosion

.-All tanks or other receptacles for the storage of petroleum in bulk, other than well-head tanks installed on the ground or below the ground, shall be protected against corrosion by the use of protective coatings or cathodic protection or by any other means approved by the licensing authority.

126.

Testing of tanks

-(1) Storage tanks or other receptacles for the storage of petroleum in bulk, other than well-head tanks, after being installed and secured in the final position or after undergoing re-installation or any major repair, shall, before being put into use, be tested by water pressure by a competent person.

(2)

The water used for testing shall be free from petroleum and shall not be passed through any pipe or pump ordinarily used for the conveyance of petroleum:

Provided that where the licensing authority is satisfied that it is not reasonably possible to convey water by pipes or pumps other than those ordinarily used for conveyance of petroleum, he may permit use of a petroleum pipe or pump for the conveyance of water subject to such conditions as he may impose.

(3)

The competent person carrying out the test as required under sub-rule (1) shall issue a certificate in the proforma given below; the certificate so issued shall be submitted to the licensing authority alongwith the application for the grant or amendment of a license, or, in the case of any major repair, after each such repair.

Proforma of Certificate of Tank Testing

(See rule 126)

In respect ofof size.....

(number of tanks) (diameter and height or length of each tank).....

and capacity.....respectively, installed within the installation/service station of.....(delete words not applicable).....

(full name of occupier of installation/service station as the case may be).....

at.....

(Name of place, police station, District, State) covered by license No.....

(To be filled in the case of amendment of license or repair of tank)

Certified that I have in accordance with rule 126 of the Petroleum Rules, 2002, tested the tanks described above by water pressure after they had been installed and secured in the final position/repared and found them free from leak and suitable for the storage of petroleum (delete words not applicable).

Date of test.....

.....

Full signature of the competent person issuing the certificate

His recognised qualification.....

His full name and postal address.....

127.

Earthing of tank

-(1) Every tank or other receptacle for the storage of petroleum in bulk, other than a well head tank or tanks of less than 50,000 litres capacity containing petroleum Class C shall be electrically connected with the earth in an efficient manner by not less than two separate and distinct connections placed at the opposite extremities of such tank or receptacle. The roof and all metal connections of such tank or receptacle shall be in efficient electrical contact with the body of such tank or receptacle.

(2)

The connections and contacts required under sub-rule (1) shall have a few joints as possible. All joints shall be riveted, welded or bolted and also soldered to ensure both mechanical and electrical soundness.

(3)

The resistance to earth shall not exceed 7 ohms and the resistance to any part of the fitting to the earth plate or to any other part of fitting shall not exceed 2 ohms.

128.

Testing of earth connections

-(1) The connections and contacts of the tank or receptacle required under rule 127 shall be inspected and tested by a competent person at least once in every twelve months by means of a direct reading instrument, such as, a Megar.

(2)

The testing instrument referred to in sub-rule (1), if capable of producing a spark, shall be so shielded as to be incapable of igniting petroleum vapour.

(3)

A record of such inspections and test shall be maintained by the licensee in the licensed premises and shall be produced on demand by any Inspector.

129.

Night working

.-No installation storage shed shall be open and no work in any installation or storage shed shall be permitted between sunset and sunrise except where approved electric lights conforming to the provisions of Chapter IV are exclusively used.

130.

Certificate of safety

-(1) A certificate of safety in proforma given below this rule and signed by a competent person shall be furnished to the licensing authority before any petroleum is stored in an installation or a service station for the first time or whenever any additions or alterations to the enclosure walls and embankments are carried out or when any tank is installed or its position shifted.

Proforma of Certificate of Safety

(See rule 130)

I,.....hereby certify that I have inspected the petroleum service station/installation described below on.....(date) and it has been constructed as per plan approved by Chief Controller/Controller vide letter No.....dated.....and the service station/installation, in my opinion is safe for storage of petroleum.

1. Name and Address of occupier.....

2. Location of the service station/installation.....

(Plot No., village/Town, District, State)

3. Description of facilities of the service station/installation.

(A)

Tanks:

(i)

Aboveground tanks:

(a)

Identification No., size, capacity, product, class of petroleum

(b)

Whether enclosure walls provided, if so, nature of enclosure walls, its capacity, provisions of drain pipe and valve

(c)

Nature and description of fittings provided

(ii)

Underground tanks:

(a)

Identification No., size, capacity, product, class of petroleum

(b)

Nature of pit, soil cover, fastening arrangement

(c)

Nature of top cover (whether soil/RCC)

(d)

Nature and description of fittings provided

(B)

Filling/storage shed:

Whether provided as per approved plan

(C)

Tank lorry and/or Tank wagon loading/unloading:

(i)

Number of bays and points provided

(ii)

Type of loading and unloading facilities

(D)

Pipelines:

(i)

Size and specification of pipeline(s)

(ii)

Test pressure of pipeline.....kg/cm²

(Tested by.....on.....)

(E)

Electrical fittings/equipments:

(i)

Pumps (specification, make and CEE approval reference for each)

(ii)

Starters

(iii)

Junction Box,

(iv)

Switches

(v)

Light fittings

(vi)

Others

(F)

Earthing, bonding and electrical continuity:

(i)

Earthing of tanks, pumps, bulk loading/unloading facilities

(ii)

Bonding of pipeline joints

(iii)

Earthing resistance at each point

(G)

Nature of Fencing/boundary wall:

(H)

Description of fire fighting facilities provided:

4. Remarks:

Place.....

Date.....

.....

Signature of the competent person

Particulars of recognition by Chief Controller

(2)

(i)

Anybody intending to be recognised as competent person shall possess the qualification and experience prescribed in para (A) of Form XX and shall submit to the Chief Controller an application in the form prescribed in para (B) of the same Form. Every application shall be accompanied by a scrutiny fee of rupees five hundred. The Chief Controller shall register such application and within a period of sixty days of the date of receipt of the application, and after having satisfied himself with regard to competence and professional ethics either recognise the applicant as a competent person or reject the application specifying the reason therefor.

(ii)

The Chief Controller may after giving an opportunity to such person to be heard revoke the recognition-

(a)

if he has reason to believe that such person has violated any condition stipulated in the letter of recognition or has carried out a test, examination and inspection or has acted, in a manner inconsistent with the intent or the purpose of these rules; or

(b)

for any other person to be recovered in writing.

131.

Prior approval of specifications and plans of premises proposed to be licensed

-(1) Every person desiring to obtain a license to import and store petroleum in Form XIV, Form XV, Form XVI or in Special Form, as the case may be, shall submit to the licensing authority an application alongwith-

(a)

specifications and plans drawn to scale, in duplicate, clearly indicating-

(i)

the manner in which the provisions prescribed in these rules will be complied with;

(ii)

the premises proposed to be licensed, the area of which shall be distinctly coloured or otherwise marked;

(iii)

the surroundings and all protected works lying within 100 metres of the edge of all facilities which are proposed to be licensed;

(iv)

the position, capacity, materials of construction and ground and elevation view of all storage tanks, enclosures around tanks, all valves, filling and discharge points, vent pipes, dip pipes, storage and filling sheds, pumps, fire-fighting facilities and all other building and facilities forming part of the premises proposed to be licensed;

(v)

the areas reserved for different classes of petroleum including petroleum exempted under section 11 of the Act; and

(b)

a scrutiny fee of rupees four hundred paid in the manner specified in rule 13.

(2)

If the Chief Controller, after scrutiny of the specification and plans and after making such enquiries as he deems fit, is

satisfied that petroleum may be stored in the premises proposed to be licensed, he shall return to the applicant one copy each of the specifications and plans signed by him conveying his sanction subject to such conditions as he may specify.

132.

Pumping

.-No internal combustion engine or electric motor in an installation shall be used for driving pumps for pumping petroleum save in a pump house or pumping area specially constructed for the purpose and approved by the Chief Controller.

133.

Identification mark on licensed premises

.-Every installation, storage shed or service station under these rules shall have prominently marked thereon the number of the license held for it.

134.

Posting up of rules and conditions

.-An extract of rules 3 to 12, 102 to 115, 116 to 134, 146 to 148 and 152 to 160 and of the conditions of the license shall be exhibited in a conspicuous place in every licensed installation, service station or storage shed.

135.

Petroleum in the possession of Defence Forces of the Union

.-Nothing in rules 116, 121, 122, 125, 126, 127, 128, 130, 131, 133 and 134 shall apply to petroleum in the possession of the Defence Forces of the Union.

Chapter VI

Storage Of Petroleum Class C Not Requiring A License

136.

Application

.- (1) The provisions of this Chapter shall apply to petroleum Class C stored otherwise than under a license as provided in section 7 of the Act but shall not apply to petroleum Class C in the possession of the Defence Forces of the Union.

(2)

The provisions of Chapter V shall not apply to petroleum Class C permitted to be stored without a license under section 7 of the Act.

137.

Restriction of storage

.-Petroleum Class C shall not be stored together with any other class of petroleum except under and in accordance with a license granted under these rules.

138.

Storage of exempted petroleum Class C in bulk

.- (1) Petroleum Class C in bulk shall be stored in a tank constructed of iron or steel or any other material approved in writing by the Chief Controller.

(2)

The tank referred to in sub-rule (1) shall be properly designed and erected and the tank with all its fittings shall be so constructed and maintained as to prevent any leakage of petroleum.

(3)

All tanks of capacity exceeding 5,000 litres for the storage of petroleum Class C shall be surrounded by an enclosure wall or placed inside a pit, so constructed and maintained as to be able to contain without leakage the maximum quantity of petroleum capable of being contained in the largest tank within such enclosure or pit.

(4)

A drainage pipe with a valve capable of being actuated from outside the enclosure wall shall be provided in the enclosure or pit referred to in sub-rule (3) and the valve shall be kept closed.

(5)

A distance of not less than 1.5 metres shall be kept clear between protected works and the edge of such enclosure wall or pit.

139.

Storage of petroleum Class C in non-bulk

.-Petroleum Class C which is not in bulk shall, if the quantity at any one time exceeds 2,500 litres be stored in a storage shed of which either-

- (a)
the doorways and openings shall be built up to a height of 30 centimetres above the floor, or
- (b)
the floor shall be sunk to a depth of 30 centimetres.

140.

Prior report of storage of petroleum Class C

.-Every person intending to store petroleum Class C in quantity exceeding 5,000 litres otherwise than under a license shall submit the following to the Chief Controller before commencing storage-

- (i)
plans drawn to scale of the storage facilities showing compliance of rule 138 and site plan of the storage premises and surroundings upto 100 metres identifying the locations of premises; and
- (ii)
a scrutiny fee of rupees five hundred.

Chapter VII

Licenses

141.

Grant of license

.-Licenses under these rules may be granted by the licensing authorities set forth in the First Schedule in the forms specified for the purpose and on payment of a fee specified therein.

142.

Period for which licenses may be granted or renewed

.(1) A license in Form III or Form XVII may be granted for such period as the licensing authority may deem necessary subject to a maximum of one year.

(2)

Every other license granted or renewed under these rules will remain in force until the 31st day of December of the year up to which the license is granted or renewed subject to a maximum of three years.

(3)

Notwithstanding anything contained in sub-rule (1) or sub-rule (2), the licensing authority where it is satisfied that a license is required for a specific work or festival which is not likely to last up to the 31st day of December of the year up to which the license is granted or renewed, may grant or renew a license for such period as is actually necessary.

143.

Application for license

.(1) A person wishing to obtain or renew a license under these rules shall submit an application in writing to the authority empowered to grant such a license.

(2)

An application for the grant of a license to transport petroleum in bulk by road in mechanically propelled vehicles shall be in Form VII and to transport petroleum Class A/B in bulk on land for onsite fuelling of aircrafts, heavy vehicles/machineries and stationary equipment by a mechanically propelled vehicle, viz., refueller shall be in Form VIII. An application for license to import and store petroleum shall be in Form IX and to decant Kerosene (Petroleum Class B) from mechanically propelled vehicles containers shall be in Form X.

144.

No objection certificate

.(1) Where the licensing authority is the Chief Controller or the Controller, as the case may be, an applicant for a new license other than a license in Form III, XI, XVII, XVIII or XIX shall apply to the District Authority with two copies of the site-plan showing the location of the premises proposed to be licensed for a certificate to the effect that there is no objection to the applicant receiving a license for the site proposed and the District Authority shall, if he sees no objection, grant such certificate to the applicant who shall forward it to the licensing authority with his application in Form IX.

(2)

Every certificate issued by the District Authority under sub-rule (1) shall be accompanied by a copy of the plan of the

proposed site duly endorsed by him under his official seal.

(3)

The Chief Controller or the Controller, as the case may be, may refer an application not accompanied by certificate granted under sub-rule (1) to the District Authority for his observations.

(4)

If the District Authority, either on a reference being made to him or otherwise, intimates, to the Chief Controller or the Controller, as the case may be, that any license which has been applied for should not, in his opinion, be granted, such license shall not be issued without the sanction of the Central Government.

(5)

The District Authority shall complete his inquiry for issuing NO OBJECTION CERTIFICATE (NOC) under sub-rule (1) and shall complete the action for issue or refusal of the NOC, as the case may be, as expeditiously as possible but not later than three months from the date of receipt of application by him.

145.

Particulars of license

-(1) Every license granted under these rules shall be held subject to the conditions specified therein and shall contain all the particulars which are contained in the Form specified under these rules.

(2)

One copy of the plan or plans for the licensed premises signed in token of approval by the licensing authority shall be attached to the license which shall form part of such license, and an identical copy shall be filed for record in the office of the licensing authority, except in the case of license in Form XVIII.

146.

Prior approval necessary for alterations in the licensed premises

-(1) No alteration shall be carried out in the licensed premises until a drawing or drawings showing such alteration has been approved in writing by the licensing authority.

(2)

A person wishing to carry out any alteration in the licensed premises shall submit to the licensing authority-

(i)

three copies of a properly drawn plan of the licensed premises showing in distinct colour or colours the proposed alteration and the reasons therefor;

(ii)

a fee of rupees four hundred for scrutiny of the proposed alteration.

(3)

If the licensing authority, after scrutiny of the plan showing the proposed alteration and after making such enquiries as he deems fit, is satisfied that the proposed alteration may be carried out, he shall return to the licensee one copy of the plan signed by him and conveying his sanction subject to such condition or conditions as he may specify.

(4)

The holder of the license shall apply to the licensing authority for the amendment of the license as soon as the sanctioned alteration has been carried out.

147.

Amendment of license

-(1) Any license granted under these rules may be amended by the authority empowered to grant such a license.

(2)

The fee for amendment of a license shall be rupees five hundred plus the amount, if any, by which the fee that would have been payable if the license had originally been issued in the amended form exceeds the fee originally paid for the license.

(3)

A licensee who desires to have his license amended shall submit to the licensing authority-

(i)

an application duly filled in and signed in Form VII, if the license has been granted for transport of petroleum in bulk by road, in Form VIII, if the license has been granted for refueller, in Form IX, if the license is granted to import and store petroleum, and in Form X, if the license is granted to decant kerosene (Petroleum Class B) from mechanically propelled

vehicles in containers;

(ii)

the license sought to be amended together with the approved plans attached to it;

(iii)

where any alteration in the licensed premises has been carried out three copies of the properly drawn plan shown in the alteration sanctioned under rule 146 by the licensing authority;

(iv)

fee for the amendment of the license as specified in sub-rule (2);

(v)

a certificate of testing of the tank or tanks, if required under rule 126;

(vi)

a certificate of safety, if required under rule 130.

148.

Renewal of license

-(1) A license may be renewed by the authority empowered to grant such a license:

Provided that a license which has been granted by the Chief Controller may be renewed without alteration by a Controller duly authorised by the Chief Controller.

(2)

Every license granted under these rules, other than a license in Form III or Form XVII may be renewable for three calendar years where there has been no contravention of the Act or of the rules framed thereunder or of any conditions of the license so renewed.

(3)

Where a license which has been renewed for more than one year, is surrendered before its expiry, the renewal fee paid for unexpired portion of the license shall be refunded to the licensee provided that no refund of renewal fee shall be made for any calendar year during which-

(a)

the licensing authority receives the renewed license for surrender, or

(b)

any petroleum is received or stored on the authority of the license.

(4)

Every application under sub-rule (2) shall be made in Form VII, Form VIII, Form IX or Form X, as the case may be, and shall be accompanied by the license which is to be renewed together with approved plans attached to the license, wherever applicable and the renewal fee paid in the manner specified in rule 13.

(5)

Every application for the renewal of license shall be made so as to reach the licensing authority at least thirty days before the date on which it expires, and if the application is so made, the license shall be deemed to be in force until such date as the licensing authority renews the license or until an intimation that the renewal of the license is refused, has been communicated to the applicant.

(6)

Where the renewal of a license is refused, the fee paid for the renewal shall be refunded to the licensee after deducting therefrom the proportionate fee for the period beginning from the date from which the license was to be renewed up to the date on which renewal thereof is refused.

(7)

The same fee shall be charged for the renewal of license for each calendar year as for the grant thereof:

Provided that-

(i)

if the application with accompaniments required under sub-rule (4) is not received within the time specified in sub-rule (5), the license shall be renewed only on payment of a fee amounting to twice the fee ordinarily payable;

(ii)

if such an application with accompaniments is received by the licensing authority after the date of expiry but not later than 30 days from the date of expiry, the license may, without prejudice to any other action that may be taken in this

behalf, be renewed on payment of twice the fee ordinarily payable:

Provided further that in case of an application for the renewal of a license for a period of more than one calendar year at a time, the fee prescribed under clause (i) or clause (ii) of the first proviso, if payable, shall be paid only for the first calendar year of renewal.

(8)

No license shall be renewed if the application for renewal is received by the licensing authority after thirty days of the date of its expiry.

149.

Refusal of no objection certificate

.-A district authority refusing to grant a no objection certificate under rule 144 shall record, in writing, the reasons for such refusal and shall furnish to the applicant a copy of such order:

Provided that before refusing to grant a no objection certificate, the applicant shall be given a reasonable opportunity of being heard.

150.

Cancellation of no objection certificate

.- (1) A no objection certificate

granted under rule 144 shall be liable to be cancelled by the District Authority or the State Government, if the District Authority or the State Government is satisfied that the licensee has ceased to have any right to use the site for storing petroleum:

Provided that before cancelling a no objection certificate, the licensee shall be given a reasonable opportunity of being heard.

(2)

A District Authority or a State Government cancelling a no objection certificate shall record, in writing, the reasons for such cancellation and shall immediately furnish to the licensee and to the licensing authority concerned, a copy of the order cancelling the no objection certificate.

151.

Refusal of license

.-A licensing authority refusing to grant, amend, renew or transfer a license, shall record his reason for such refusal in writing.

152.

Suspension and cancellation of license

.- (1) Every license granted under these rules shall-

(i)

stand cancelled, if the licensee ceases to have any right to the site for storing petroleum;

(ii)

stand cancelled, if the no objection certificate is cancelled by the District Authority or the State Government in accordance with sub-rule (1) of rule 150;

(iii)

be liable to be suspended or cancelled by an order of the licensing authority for any contravention of the Act or of any rule thereunder or of any condition contained in such license, or by order of the Central Government, if it is satisfied that there are sufficient grounds for doing so:

Provided that-

(a)

before suspending or cancelling a license under this rule, the holder of the license shall be given an opportunity of being heard;

(b)

the maximum period of suspension shall not exceed three months; and

(c)

the suspension of a license shall not debar the holder of the license from applying for its renewal in accordance with the provisions of rule 148.

(2)

Notwithstanding anything contained in sub-rule (1), an opportunity of being heard may not be given to the holder of a license before his license is suspended or cancelled in cases-

(a)

where the license is suspended by a licensing authority as an interim measure for violation of any of the provisions of the Act or these rules, or of any conditions contained in such license and in his opinion such violation is likely to cause imminent danger to the public:

Provided that where a license is so suspended, the licensing authority shall give the holder of the license an opportunity of being heard before the order of suspension is confirmed; or

(b)

where the license is suspended or cancelled by the Central Government, if that Government considers that in the public interest or in the interest of the security of the State, such opportunity should not be given.

(3)

A licensing authority or the Central Government suspending or cancelling a license under sub-rule (1), shall record its reason for so doing in writing.

153.

Procedure on expiration, suspension or cancellation of license

-(1) A person licensed to store petroleum shall, on the expiration, suspension or cancellation of his license, forthwith give notice to the District Authority of the class and quantity of petroleum in his possession and shall comply with any directions which the District Authority may, on the recommendation of the Chief Controller, give in regard to its disposal.

(2)

The District Authority may grant for a term not exceeding three months from the date of expiration, suspension or cancellation, as the case may be, a temporary license for the storage of petroleum actually held at the time of the issue of the temporary license:

Provided that where the expired, suspended or cancelled license was granted by an authority, other than the District Authority, no temporary license shall be granted without the previous consent of such other authority.

(3)

The fee chargeable on a license granted under sub-rule (2) shall bear the same proportion to the fee charged on the expired or cancelled or suspended license as the period covered by the temporary license bears to a full year.

154.

Appeals

-(1) An appeal shall lie against any order refusing to grant, amend or renew a license cancelling or suspending a license to-

(i)

the Central Government, where the order is passed by the Chief Controller;

(ii)

the Chief Controller, where the order is passed by a Controller;

(iii)

the immediate official superior to the District Authority, where the order is passed by the District Authority;

(iv)

the immediate official superior to officer appointed under rule 33 in the case of vessels licensed for the carriage of petroleum in bulk.

(2)

An appeal against any order of the District Authority refusing to grant or cancelling a no objection certificate shall lie to the authority which is immediately superior to the said District Authority.

(3)

Every appeal shall be in writing and shall be accompanied by a copy of the order appealed against and shall be presented within sixty days of the order passed.

(4)

[The Appellate Authority shall dispose off the appeal within 60 days of the receipt of the appeal.]

[Inserted by G.S.R. 4(E), dated 4.1.2005 (w.e.f. 4.1.2005).]

155.

Supply of rules

.-With every license granted for the storage of petroleum, an extract of rules 3 to 12, rules 102 to 134, rules 146 to 148 and rules 151 to 159 shall be given free of charge to the licensee.

156.

Transfer of license for storage

.-(1) The holder of a license, for the storage of petroleum may, at any time before the expiry of the license, apply to the licensing authority to transfer the license to another person.

(2)

Every application for the transfer of a license shall be accompanied by-

(i)

a letter signed by the holder of the license indicating the full name and address of the person to whom he wishes to transfer the license and give complete possession of the licensed premises;

(ii)

the license sought to be transferred together with the approved plan or plans attached to it;

(iii)

an application in Form IX duly filled in and signed by the person to whom the license is sought to be transferred;

(iv)

a fee of rupees five hundred paid in the manner specified in rule 13.

(3)

The licensing authority on receipt of the documents and fee required under sub-rule (2) shall, if he approves the transfer, enter upon the license, under his signature, an endorsement to the effect that the license has been transferred to the person named.

(4)

The person to whom the license is so transferred shall enjoy the same power and be subject to the same obligations under the license as the original licensee.

157.

Procedure on death or disability of licensee

.-(1) If a licensee dies or becomes insolvent or mentally incapable or is otherwise disabled, the person carrying on the business of such licensee shall not be liable to any penalty or confiscation under the Act or these rules of exercising the powers granted to the licensee during such time as may reasonably be required to allow him to make an application for a new license in his own name for the unexpired portion of the original license in respect of the year in which the licensee dies or becomes insolvent or mentally incapable or is otherwise disabled:

Provided that nothing in this sub-rule shall be deemed to authorise the exercise of any power under this sub-rule by any person after the expiry of the period of the license.

(2)

An application for a new license for the unexpired portion of the original license shall be accompanied by a no objection certificate issued by the District Authority in favour of the person applying for such license.

(3)

A fee of rupees two hundred shall be charged for a new license for the unexpired portion of the original license granted to any person applying for it under this rule.

158.

Loss of license

.-Where a license granted under these rules is lost or accidentally destroyed, a duplicate may be granted on submission of a copy of plan or plans identical with those attached to the license and on payment of a fee of rupees two hundred.

159.

Production of license on demand

.-(1) Every person holding or acting under a license granted under these rules shall produce it, or an authenticated copy of it, at the place to which the license applies, when called upon to do so by any Inspector.

(2)

Copies of any license may, for the purpose of this rule, be authenticated by the authority which granted the license-

(a)

on payment of a fee of rupees fifty for each authenticated copy; and

(b)

on the submission of a copy or copies of the plans identical with the approved plan or plans attached to the license.

160.

Procedure on reports of infringement

.-The District Authority shall inform the Chief Controller of the action taken by him on any reports of infringements of the Act or of these rules which the Chief Controller may make to him.

161.

Executive control over authorities

.-Every authority other than the Central Government, acting under this Chapter, shall perform its duties subject to the control of the Central Government:

Provided that nothing in this rule shall be deemed to affect the powers of executive control of the Chief Controller over the officer subordinate to him.

Chapter VIII

Refining Of Petroleum

162.

Approval of refinery

.- (1) No person shall refine, crack, reform or blend petroleum unless the project report with specifications and plans showing the general arrangements of tanks, stills, furnaces, electrical installations, pump houses, arrangement for drainage treatment and disposal of effluents, arrangement for fighting fire, fencing gates and all plants and buildings at the place where it is proposed to refine, crack, reform or blend petroleum (hereinafter in this Chapter referred to as the refinery) has been approved by the Chief Controller.

(2)

The design and layout of the various blocks/facilities/process units in new crude oil refineries shall be as per design philosophy given in OISD Standard-118. This will apply to new crude oil refineries/gas processing installations approved by the Chief Controller after publication of this rule.

(3)

Any person desiring to refine, crack, reform or blend petroleum shall submit to the Chief Controller an application along with-

(i)

a copy of the project report and specifications and plans referred to in sub-rule (1) in triplicate; and

(ii)

a scrutiny fee of rupees five thousand paid in the manner specified in rule 13.

(4)

The Chief Controller on receiving the project report with specifications and plans may require submission of such further particulars as he may specify after satisfying himself that petroleum can be so refined, cracked, reformed or blended, shall return to the applicant one set of the specifications and plans signed by him and conveying his sanction subject to such conditions as he may specify.

163.

Retention of plans and specifications

.-A copy each of the approved plans and specifications and containing any alterations sanctioned under rule 164 from time to time shall be kept at the refinery.

164.

Alterations

.- (1) No alterations in refinery involving the general arrangements or the design of tanks, stills, furnaces, plants, pump-houses, electric installation or fire-fighting facilities shall be carried out without the previous sanction in writing of the Chief Controller.

(2)

The occupier of a refinery wishing to carry out any of the alterations referred to in sub-rule (1) shall submit to the Chief Controller an application alongwith-

(i) specifications and plans, in triplicate, showing proposed alterations together with reasons therefor, and

(ii) a scrutiny fee of rupees one thousand paid in the manner prescribed in rule 13.

(3) The Chief Controller on receiving the specifications and plans for the alterations and reasons therefor, may require submission of such further particulars as he may specify and after satisfying himself that the proposed alterations can be carried out, return to the applicant one copy of the specifications and plans signed by him and conveying his approval subject to such conditions as he may prescribe.

165.

Use of fire-proof materials

.-All buildings and facilities in which petroleum is handled shall be built of fire-proof materials.

166.

Situations of storage tanks

.-No storage tanks for petroleum shall be situated nearer than 90 metres to any still, boiler or furnace:

Provided that this rule shall not apply to a storage tank containing petroleum Class C for use as a fuel for a boiler and such a storage tank shall not be larger than is necessary to conserve 24 hours fuel for the fire which it services.

167.

Situation of storage tanks and facilities for liquefied petroleum gases

.-No storage tank or filling facility for liquefied petroleum gases shall be nearer than 90 metres to any still, boiler or furnace or nearer than 30 metres to any storage tank, pump-house or any facility for the blending or filling of petroleum or to any protected work.

168.

Situation of flare

.-No flare shall be situated nearer than 90 metres to any tank, still, pump-house or any facility for the refining, cracking, reforming, blending, storage or handling of petroleum or liquefied petroleum gas, other than knockout drum and condensate recovery pump attached to such flare.

169.

Drainage

.- (1) Adequate arrangements shall be made to ensure that effluents and drainage passing from the refinery does not cause pollution of rivers, irrigation channels, water reservoirs or foreshore and does not harmfully affect animal or vegetable life in any way.

(2)

Effluent drainage from pump-houses and all other points where oil may be entrained shall be passed through an efficient oil interceptor system of adequate size.

(3)

All chemical waste shall be rendered harmless before they leave the refinery area.

(4)

The whole of the sewerage shall be independent of other drainage systems.

(5)

All drains shall have adequate capacity to prevent any flooding or backing-up and be of such construction as to prevent leakage from them to the surrounding grounds.

(6)

Drains for carrying waste chemicals shall be of a type which is not affected by the chemicals in question.

(7)

Trash racks shall be fitted to the drains where there is a possibility of rubbish being carried forward and forming a plug.

(8)

Manholes shall be provided in closed drains where there is an abrupt change of directions and also at reasonable intervals in straight sections to permit rodding.

(9)

When vents are provided to release gases separated from contaminated effluents in closed drains, they shall be sited

where they are unlikely to cause danger or annoyance.

(10)

All drains shall be fitted with fire traps/water seals at suitable points to prevent the passage of flame.

(11)

Where gas traps are provided in the drains they shall be constructed on the upstream side of the oil interceptors and such gas traps shall be fitted with vents to liberate the gas at such a height that danger or annoyance is not caused.

170.

Fire and smoking

-(1) No fire furnace, source of heat or light capable of igniting inflammable vapours shall be allowed except in the firing space of stills and boilers.

(2)

No smoking shall be allowed except in spaces or buildings specially approved for the purpose by the Chief Controller.

171.

Permits to carry out maintenance and repair work

-(1) No maintenance or repair work and no entry into confined spaces including a closed drain or manhole shall be permitted except under and in accordance with the conditions of a written permit as per OISD Standard-105 issued by a competent person authorised by the occupier of the refinery.

(2)

The competent person referred to in sub-rule (1) shall, before issuing the permit, satisfy himself by inspecting and testing, whenever necessary, that the conditions of the vessel, site or equipment are entirely safe for the work which is to be undertaken and shall specify on the permit the conditions under which the work can be carried out safely.

(3)

Permits for carrying out maintenance or repair work shall be issued for limited and stated period during which known conditions will remain safe and such permits shall not be renewed without re-inspection and re-testing of the vessel, site or equipment.

(4)

All gas tests for the purpose of issuing a permit shall be carried out by suitably trained persons by an instrument which is calibrated and checked at such intervals as are recommended in this behalf by the manufacturers of such instruments in the manual of instructions pertaining thereto.

(5)

In the case of vessels which had contained products blended with leaded fluid, the regulations laid down by the suppliers of the fluid shall be fully observed.

172.

Fire control

-(1) Every crude oil refinery shall be fully protected against fire by a well organised and trained fire fighting service with necessary materials and fixed, mobile and portable equipments for fighting fires in line with the Oil Industry Safety Directorate's Standard-116. This will apply to new crude oil refineries/gas processing installation approved by the Chief Controller after publication of this rule.

(2)

An adequate supply of water shall be available at all strategic points in the refinery by means of an independent ring main or grid provided with isolating valves. The main shall be kept constantly pressurised by two or more boosting pumps of adequate capacity preferably working automatically as any significant loss of pressure in the main occurs. At least one of the boosting pumps shall be independent of the normal power supply.

(3)

All mains shall be fitted with hydrants at convenient places not more than thirty metres apart in hazardous areas and not more than 45 metres apart in non-hazardous areas. Such hydrants shall be of design suitable for operating conditions and for connecting mobile pumps.

(4)

Static water supply of adequate capacity shall be provided where mains water supply may be subject to interference.

(5)

All refinery personnel shall be practiced in the use of first-aid, fire-fighting appliances and selected refinery personnel

shall be trained in all aspects of fire-fighting.

(6)

The Chief Controller may relax any of the provisions of sub-rules (1) to (5) or require additional fire-fighting provisions to be made if he deems such relaxation or additional fire-fighting provisions necessary in respect of any class of refinery.

173.

Removal of petroleum

.-All petroleum as it leaves the stills with the exception of such quantities as may be pumped direct to service tanks for fuel, shall at once be pumped out into the refinery storage tanks and shall not be stored in the immediate neighbourhood of stills and boilers:

Provided that the Chief Controller may permit petroleum to be disposed of otherwise.

174.

Prevention of danger from static electricity

.-Adequate provision shall be made to prevent accumulation of dangerous static charge of electricity.

175.

Warning notices

.- (1) Warning notices regarding prevention of unauthorised persons, naked lights, smoking and other hazards shall be displayed prominently at strategic locations in the refinery.

(2)

No fireworks of any kind shall be carried out within a radius of one kilometre from the refinery except with the prior permission of District Magistrate.

176.

Marking of pipelines and cables

.- (1) All above-ground pipelines and cables shall be identified by taping, stenciling, colouring distinctively or by any other suitable methods.

(2)

All overhead pipelines and cables crossing roads shall be adequately protected against accidental damage.

(3)

Pipelines and valves at loading and discharging berths shall be prominently marked to identify the product.

(4)

The route of all underground cables shall be marked by prominent markers. At least two such markers shall be visible from any point on the route of the cable.

(5)

The route of all underground pipelines shall be marked by prominent markers or by any other effective means to prevent accidental damage to the pipelines.

177.

Inspections

.-All plants, instruments and equipments including fire-fighting equipments shall be inspected and tested at intervals, the frequency depending on practical or other relevant factors, and records of all such inspections shall be maintained.

178.

Safe operations

.- (1) All operators employed in a refinery shall be adequately trained in the safe operation of plants and equipments.

(2)

Written procedures shall be established for operators to start up, shut down and gas-free plants or sections of plants safely and to take safe action under emergency conditions.

(3)

Checks shall be made at all stages of the operations by supervisors to ensure that vessels and equipments are properly isolated or connected up, as required, and to ensure that safety facilities are commissioned as the operation proceeds.

179.

Report of fire

.-The occurrence of any fire in refinery shall be reported immediately by the person in-charge of the refinery for the time being to the Chief Controller and to the nearest police station.

180.

Closing of refinery

.-If refinery is closed down, the area within the fence surrounding it shall be cleared of all petroleum having flash point below 93 degree C as soon as possible.

Chapter IX

Tetra Ethyl Lead Mixtures

181.

Additions of Tetra Ethyl Lead Mixture

.-Tetra Ethyl Lead shall not be blended with petroleum except in an equipment approved in writing by the Chief Controller and in such proportions and under such conditions as may from time to time be determined by him.

182.

Additions of Tetra Ethyl Lead Mixture

.-Tetra Ethyl Lead shall not be blended except in an equipment approved in writing by the Chief Controller and in quantities not exceeding the limits specified in the relevant Indian Standards Specifications.

183.

Prescription of special conditions

.-The Chief Controller may, from time to time, by a written order prescribe special conditions which shall be observed during mixing of petroleum with ethyl fluid, handling of leaded petroleum or cleaning or repair of storage tanks which have contained leaded petroleum.

184.

Colouration of leaded petroleum

.-Every mixture of petroleum and Tetra Ethyl Lead shall be distinctively coloured before being supplied to the public.

185.

Marking of receptacles

.-All receptacles other than tank containing a mixture of petroleum and Tetra Ethyl Lead shall, except when they are in possession of the Defence Forces of the Union, bear a warning in the following terms, namely:-

"Warning"

This spirit contains lead and shall be used as a motor fuel only

Chapter X

Testing Of Petroleum

186.

Drawing of sample

.- (1) In all cases, the sampling officer shall personally superintend the drawing of the sample and the sample shall be drawn in the presence of at least one witness. Where the sample is drawn from an original unopened receptacle containing petroleum otherwise than in bulk the opening shall be sufficient to admit of the sample being rapidly transferred from the receptacle.

(2)

Two bottles, each of a capacity of 1 litre, shall be filled to nine-tenths of their capacity with the sample and corked. The corks shall be driven home and cut-off level with the neck, and melted sealing wax shall be worked into the corks and the bottles shall be efficiently sealed.

(3)

In the case of petroleum imported into India the bottles containing the samples shall, after being sealed, be labelled with the name of the consignee, particulars of the ship or vehicle by which it is imported and such other distinguishing marks as may be necessary.

187.

Forwarding and retention of samples

.-One of the bottles referred to in sub-rule (2) of rule 186 shall be preserved for reference in case of need and the other shall be forwarded to the testing officer.

188.

Procedure of delivery of samples

.- (1) When the master of, or the agent for, a ship or the agent of the importer has made the declaration required under

rule 17 or rule 26, the sampling officer shall obtain samples of all the petroleum which is intended to land at the port or place of import. If the importer so desires, the sampling officer shall also take samples of all the petroleum which is intended to land at any other port or place of import in India:

Provided that no sample need be taken of petroleum if it is declared to be the petroleum Class A.

(2)

The master of ship or the person for the time being in-charge of the vehicle by which petroleum is imported shall deliver to the sampling officer, without charge, samples of every variety of petroleum comprised in the petroleum of which samples are to be taken under sub-rule (1). Such samples shall, if the sampling officer so requires, be taken from the particular receptacles indicated by him:

Provided that when the petroleum is in cases, samples shall be taken as the landing proceeds.

189.

Selection of samples from imported cargo

.-The minimum number of

samples to be selected from each brand or quality contained in the cargo to be imported shall be as follows:

(i)

in cases-one sample for every 10,000 cases or part thereof;

(ii)

in casks or drums, declared to be uniform quality-one sample for every 600 kilolitres or part thereof;

(iii)

in bulk or in tanks-one sample from each tank or tank compartment.

190.

Standard test apparatus

.-The standard test apparatus shall-

(a)

agree in every respect with the Indian Standard Specification No. IS-1448 (Part I): (P 20) or (P 21) as applicable and for the unit being in force; and

(b)

have been tested and certified by an officer appointed by the Central Government under sub-section (1) of section 15 of the Act.

191.

Certification of apparatus

.- (1) When any apparatus for determining the flash point of petroleum is submitted to the officer appointed under sub-section (1) of section 15 of the Act for comparison with the standard test apparatus, the officer shall examine the apparatus including the thermometers and the barometers or aneroid.

(2)

No certificate shall be granted under section 16 of the Act if the apparatus, any thermometer or barometer is in any respect outside the tolerances laid down or variations permitted under the Indian Standard Specification No. IS-1448 (Part I): (P 20) or (P 21), as applicable, and for the time being in force.

(3)

A certificate in Form IV shall be granted in respect of any apparatus which has been found to agree with the standard test apparatus within the limits specified in IS-1448 (Part I): (P 20) or (P 21), as applicable and for the time being in force.

(4)

A certificate granted under this rule shall be valid for a period of three years.

192.

Register of certificates

.-A register of all certificates granted under rule 191 shall be maintained in Form V by the officer appointed under sub-section (1) of section 15 of the Act.

193.

Method of test

.- (1) The testing officer shall test the samples in the manner laid down in the Indian Standard Specification No. IS-1448

(Part I): (P 20) or (P 21), as applicable, and for the time being in force.

(2)

In all cases at least three samples shall be separately tested, the average of the three readings being corrected for the thermometer correction, if any, and for the barometric correction in case of dispute.

(3)

If the average flash point is not lower than 230C, the whole of the petroleum represented by the samples shall be deemed to be petroleum Class B or petroleum Class C according to the average flash point determined by the test.

(4)

If the petroleum to be tested is viscous or solid or contains sediments or thickening ingredients, such petroleum shall be tested in accordance with the methods specified in the Fifth Schedule.

194.

Procedure when tests show want of uniformity

-(1) If the testing officer after testing samples taken from an imported cargo, considers further testing necessary to satisfy himself that none of the petroleum is petroleum Class A, he shall report to the Commissioner of Customs accordingly.

(2)

On receipt of a report under sub-rule (1)-

(a)

When the consignment is imported in cases or casks or drums, the Commissioner of Customs shall cause the petroleum in question to be landed and stacked in lots of not more than 1,500 cases or casks or drums each, or to be discharged into boats each containing not more than 1,500 cases, casks or drums, and the sampling officer shall select and deliver to the testing officer one sample from each lot.

(b)

When the consignment is imported in bulk, the sampling officer shall forward a second sample and Commissioner of Customs may, until the receipt of the testing officer's further report, prevent the landing of any portion of the contents of the tank in question or may permit it to be landed as provided under rule 21.

(c)

If the petroleum has already been landed and stored under rule 21-

(i)

if it is otherwise than in bulk, it shall be divided into lots, and samples of each lot shall be selected as provided in clause

(a);

(ii)

if it is in bulk, samples shall be drawn from each separate storage tank containing the petroleum.

195.

Certificate of tests

-(1) The testing officer shall, as soon as practicable, and ordinarily within twenty-four hours after receipt of samples make out a certificate in Form VI and shall forward it in the case of samples, of petroleum taken on board a ship or a vehicle by which petroleum is imported to the Commissioner of Customs and in the case of other samples to the officer submitting the sample.

(2)

The testing officer shall, at the request of any person concerned, furnish him with a certified copy of the certificate in Form VI on payment of a fee of rupees two hundred.

196.

Fee for inspection and comparison

-(1) The fee for each inspection of the standard test apparatus shall be rupees one hundred.

(2)

The fee for comparing a privately owned test apparatus with the standard test apparatus shall be as follows:-

(in Rupees)

Test apparatus

500

Barometer

200

Thermometer

100

197.

Fee for testing

-(1) The fee for testing each sample of petroleum shall be rupees five hundred:

Provided that the aggregate fees chargeable under this sub-rule shall not, in the case of any single consignment of petroleum in any one ship, other vessel, train or place, exceed rupees one thousand.

(2)

The fee for re-testing each sample under section 20 of the Act shall be rupees one thousand. It shall be refunded if the original test is proved to be erroneous.

198.

Power to enter, inspect, search and seize

-(1) Any officer, specified in column (1) of the table below, may within the jurisdiction specified in the corresponding entry in column 2 of the said table:

(a)

enter, inspect and search any place where he has reason to believe that any petroleum is being imported, transported, stored, produced, refined or blended or is under transport and inspect all receptacles, plants and appliances used in connection therewith in order to ascertain if they are in accordance with provisions of the Act and of these rules;

(b)

search for petroleum therein;

(c)

take samples for testing of any petroleum found therein and make payments by cash for value of samples taken; and

(d)

seize, detain and remove any petroleum or any material suspected to be petroleum or any equipment or appliances used therein together with connected documents thereof in respect of which he has reasons to believe that any of the provisions of the Act or of these rules have been contravened.

TABLE

Designation of the Officer

Limit of Jurisdiction

(1)

(2)

Chief Controller & Controller

Whole of India

All District Magistrates

Their respective Districts

All Magistrates subordinate to District Magistrate

Their respective Jurisdiction

Police Officer not below the

The area over which their authority extends

(2)

Whenever any officer other than the Chief Controller, seizes, detains or removes any petroleum or any material connected therewith or any connected documents thereof under this rule, he shall forthwith report the fact by telegram to the Chief Controller and the Controller having jurisdiction over the place where seizure, etc"> (2) Whenever any officer other than the Chief Controller, seizes, detains or removes any petroleum or any material connected therewith or any connected documents thereof under this rule, he shall forthwith report the fact by telegram to the Chief Controller and the Controller having jurisdiction over the place where seizure, etc., has taken place and whenever any officer not being the district authority seizes, detains or removes any petroleum or any material connected therewith or any connected documents thereof under this rule, he shall intimate the facts of the case to the Chief Controller and the Controller having jurisdiction.

(3)

Whenever any samples are taken in accordance with this rule, they shall be tested in accordance with the relevant provisions of Chapter X of these rules.

(4)

Whenever any petroleum is seized under this rule, it shall be stored, under adequate guard until examination by the Chief Controller or the Controller and receipt of instructions from him as to its disposal.

(5)

Whenever searches are made under this rule the same shall be carried out in accordance with the provisions of the Code of Criminal Procedure, 1973 (2 of 1974). All officers of the police and district authorities shall assist the Chief Controller in the execution of the Act and rules.

(6)

Whenever any person by himself or any person in his employment voluntarily obstructs or offers any resistance to or otherwise interferes with or refuses or fails to give or wilfully gives false or misleading information to the officer duly appointed under this rule who is acting in accordance with his duty thereunder such person shall be deemed to have committed an offence under the Act.

199.

Destruction of petroleum

.-The Chief Controller or Controller may destroy any petroleum or any material or equipment connected in respect of which the Chief Controller or Controller has reason to believe that any of the provisions of the Act or of these rules have been contravened or which in his opinion is no longer fit for storage, transport or use. The petroleum shall be destroyed at the expenses of the licensee or the occupier of the premises, as the case may be.

Chapter XI

Notice Of Accident

200.

Notice of accident

.-(1) The notice of an accident required to be given under section 27 of the Act shall be given forthwith-

(a)

to the Chief Controller by telephone/fax and also by telegram [telegraphic address-"Explosives Nagpur" followed within 24 hours by a letter giving particulars of the occurrence; and

(b)

to the officer-in-charge of the nearest police station by the quickest means of communication.

(2)

Pending the visit of the Chief Controller or his representative, or until instruction is received from the Chief Controller that he does not wish any further investigation or inquiry to be made, all wreckage and debris shall be left untouched except in so far as its removal may be necessary for the rescue of persons injured and recovery of the bodies of any persons killed by the accident or in the case of Railways for the restoration through communication.

Chapter XII

Exemption

201.

Power to exempt

.-The Central Government may, on the recommendation of the Chief Controller, in exceptional cases, by order exempt any class or classes of petroleum from all or any of the provisions of these rules, on such conditions, if any, as may be specified in the order.

202.

Repeal and saving

.-(1) The Petroleum Rules, 1976, are hereby repealed.

(2)

Notwithstanding such repeal-

(i)

all licenses or duplicates granted or renewed under the said rules and all fees imposed or levied shall be deemed to have been granted, renewed or imposed or levied, as the case may be, under the corresponding provisions of these rules, and

(ii)

all approvals given and all powers conferred by or under any notification or rule shall, so far as they are consistent with the Act and these rules, be deemed to have been given or conferred by or under these rules.

FIRST SCHEDULE

Article

Form of Licence

Purpose for which Granted

Authority empowered to grant licence

Fee

1.

III

To carry petroleum in bulk by water

An Officer appointed by the Central Govt.

For ships or other Vessels not exceeding 100 tonnes gross tonnage

Rs.

5,000 for period of one year or part thereof from the date of issue

For every additional 50 tonnes gross tonnage or fraction thereof

Rs.

1,000

2.

XI

To carry petroleum by land on mechanically propelled vehicles

Controller

Rs.

500 for every Calendar year or part thereof

3.

XII

To import and store petroleum Class A in quantity not exceeding 300 litres

District Authority

Rs.

200 for every Calendar year or part thereof.

4.

XIII

To import and store petroleum Class B otherwise than in bulk in quantity not exceeding 25,000 litres

District Authority

Rs.

20 for every 1000 litres or part thereof for a calendar year.

5.

XIV

To store petroleum in tank or tanks, in connection with pump outfit for fueling motor conveyances.

Controller

For each class of petroleum Rs. 1000 for the first 50 KL plus Rs. 15 for every additional KL or part thereof, for every calendar year subject to a maximum of Rs. 15,000 per calendar year or part thereof.

6.

XV

To import and store petroleum in an installation

Chief Controller or a Controller authorized in this behalf by the Chief Controller

For each class of petroleum Rs. 1000 for the first 50 KL plus Rs. 15 for every additional KL or part thereof, for every calendar year subject to a maximum of Rs. 15,000 per calendar year or part thereof.

7.

XVI

To import and store other wise than in bulk

- (a) Petroleum Class A in quantities exceeding 300 litres
- (b) Petroleum Class B in quantities exceeding 25000 litres
- (c) Petroleum Class C in quantities exceeding 45000 litres or
- (d) partly one class and partly two classes of petroleum

Controller

For each class of petroleum Rs. 1000 for the first 50 KL plus Rs. 15 for every additional KL or part thereof, for every calendar year subject to a maximum of Rs. 15,000 per calendar year or part thereof.

8.

XVII

To store petroleum Class A temporarily in quantities not exceeding 50000 litres for fuelling of aircrafts in connection with crop spraying work only.

Controller

For each class of petroleum Rs. 1000 for the first 50 KI plus Rs. 15 for every additional KL or part thereof, for every calendar year subject to a maximum of Rs. 15,000 per calendar year or part thereof.

9.

Special Form

To import and store petroleum class not provided for in Articles 3,4,5,6 and 7

Controller

For each class of petroleum Rs. 1000 for the first 50 KI plus Rs. 15 for every additional KL or part thereof, for every calendar year subject to a maximum of Rs. 15,000 per calendar year or part thereof.

10.

XVIII

To decant kerosene

(petroleum class B) from mechanically propelled vehicle in containers)

Controller

Rs.

200 for every Calendar year or part thereof.

11.

XIX

To transport petroleum Class A/B in bulk on land for on site refuelling of aircrafts, heavy vehicles/machinery and stationery equipments by a mechanically propelled vehicle Viz, Refueller

Controller

Rs.

500 for every Calendar year or part thereof.

SECOND SCHEDULE

FORM I

(See rules 17 and 26)

Declaration to be made by the Master or agent of ship carrying petroleum by sea before entering port or by the importer or his agent before importing petroleum by land

Name of ship.....

Particulars of the carriage

Name of Petroleum

Total quantity in the ship or carriage

Quantity of petroleum to be landed in India

Remarks

Name of port or Place of import

Petroleum Class A which can be used in an internal combustion engine

Other Petroleum Class A

Petroleum Class B

Petroleum Class C

.....
Signature of Master or agent of the ship

FORM II

(See rules 19 and 26)

Certificate of Storage Accommodation

I here by declare that I propose to store the following consignment of petroleum arriving per(name of ship or particulars of carriage) in(name of port or place of Import) on or about.....(date, month, year) at the storage tanks or shed, particulars of which are given in item (i) and (ii) of col. (1) of the statement below and I certify that the capacity as shown as available and shown as available in item (iii) of the said column are duly licensed for the storage of petroleum in question.

.....
Signature of importer or his agent

Dated the.....

Statement

Description of Import and storage capacity

Petroleum Class A

Petroleum Class B

Petroleum Class C

(1)

(2)

(3)

(4)

A.

(i) Total licensed capacity of storage tanks.

(ii) Total capacity available in storage tanks.

(iii) Capacity to be utilized by present consignment.

B.

(i) Total licensed capacity of storage sheds.

(ii) Total capacity available in storage sheds.

(iii) Capacity to be utilized by present consignment.

FORM III

(See rule 33 and Art. I of the First Schedule)

Licence for the carriage of Petroleum in bulk by water

Licence No.

Fee Rs.

The vessel described below is hereby licensed for the carriage of Petroleum in bulk by water under rule 33 of Petroleum rules 2002 in the vessel described below subject to the provisions of Petroleum Act, 1934 and the rule made thereunder and to the further conditions of this licence.

The licence shall remain in force till the day of two thousand*

Licensing Authority

Description of the licensed vessel

Name of vessel

Official number

Gross tonnage

Name and address of owners

The licence is liable to be cancelled if the licensed vessel when inspected is not found to be conforming to the descriptions and conditions attached hereto and contravention of any rules and conditions under which this licence is granted is also punishable for the first offence with simple imprisonment which may extend to one month or with fine which may extend to one thousand rupees, or with both and for every such subsequent offence with simple imprisonment which may extends to three months, or with fine which may extend to five thousand rupees, or with both.

Conditions

The Petroleum shall be Stored only in -

(i)
the following** part of the vessel

(ii)
the following manner** that is to say

*One year from the date of issue

** The parts of the vessel and the manner of storage to be specified in details by the licensing authority in consultation with the Chief Controller of Explosives.

FORM IV

(See rule 191)

Certificate of Apparatus

..... Apparatus

Marked No

Maker's Name.....

Slide No.....

Thermometer No.Oil Cup
No.....

Water Bath Cup No.....

The above apparatus including the thermometres been submitted for verification with the Standard Test Apparatus was compared by me on and found to agree with it within the prescribed limits.

The following corrections are necessary to the thermometer and barometer or aneroid readings:

Thermometer No.

Barometer or Aneroid No.

This certificate is valid for a period of three years from the

Date

Reference

Signature and designation of the Officer

appointed under Section 15 (1) Of the Petroleum Act, 1934

FORM V

(See rule 192)

Register of Certificate of Apparatus

Serial No.

Designation of officer by whom the apparatus has been tested

Place at which the apparatus is intended to be used

Number and date engraved on the apparatus

Contents of certificate

Date on which certificate will cease to be valid

FORM VI

(See rule 195)

Certificate of Tests of Petroleum

Owner

Marks.....

Test (1).....

(2)

(3)

.....
Average Thermometer

Correction No.....

The sample is Petroleum and (in the case of petroleum Class B) has a flash point of

Testing Officer

Place.....

Date.....

FORM VII

[See rules 143, 147 and 148]

Application for the grant/amendment/renewal/transfer of licence to transport petroleum Class a and Class b in bulk on land by mechanically propelled vehicles

(Documents listed below must be submitted with this application)

Part A ? To be filled in and signed by the applicant

1. Applicant's name and full postal address

2. Particulars of the vehicle in which Petroleum is proposed to be transported

(i)

Make and Model

(ii)

Engine Number

(iii)

Chassis Number

(iv)

Registered Number.....

(v)

ULW and RLW

(vi)

Date up to which the vehicle is registered

(vii)

Name and full postal address of the registered owner.....

(viii)

Number of compartments and certified capacity in kilolitres of each compartment

.....

Compartment No.

1

2

3

4

5

6

7

Total Capacity in Kilolitres

Capacity in kilolitres

(ix)

Class or Classes of petroleum proposed to be transported in the vehicle described above

(x)

Number and date of approval of the design drawing of the vehicle by the Chief Controller

3. Does the tank vehicle described above fully conform to the requirements laid down in third Schedule to the Petroleum Rules 2002 and are the design drawings approved by the Chief Controller ?

4. Full Postal Address of the Place where the vehicle will be normally stationed.

I/We declare that the particulars given above have been checked up by me/us and are correct. I/We undertake of transport petroleum in the tank vehicle/trailer, particulars of which are given above, in accordance with the provisions of the petroleum Act, 1934, and the rules framed there under and any other law or rules for the time being in force. I/We understand that any contravention of the said Act and the Rules framed thereunder is punishable for the first offence with simple imprisonment which may extend to one month or with fine which may extend to one thousand rupees or with both and for every subsequent offence with simple imprisonment which may extend to three months or with fine which may extend to five thousand rupees or with both.

Date

Place

.....

Signature of the applicant.

Part-B To be filled in and signed by the recognized engineer

I certify that the tank vehicle/trailer, the particulars of which are given in Part A of this form has been examined and tested by me and found to be fully conforming to particulars shown in approved drawing No. date complying with the requirements laid down in the Third Schedule to the Petroleum Rules, 2001.

Date

Place

Name

Recognized Qualification

.....

Full Postal Address

.....

Signature

Documents required to be submitted with this Application

1. Two copies of drawing approved under sub-rule (3) of rule 63.
2. Expired licence if the vehicle was previously licensed.
3. Required amount of fee paid in the manner specified in rule 13.

FORM VIII

(See rules 143, 147 and 148)

Application for a grant/amendment/renewal of a licence to transport petroleum class a/b in bulk on land for fueling of aircraft, heavy vehicles/ machineries and stationery equipment by a mechanically propelled vehicle viz. refueller

Documents listed below must be submitted with this application

Part-A To be filled in and signed by the applicant

1. Applicant's Name and full postal address.....
2. Particulars of the vehicle in which..... petroleum is proposed to be transported for on-site fuelling of aircraft, heavy vehicles/machineries and stationery equipment.

(i)

Make and Model

(ii)

Engine Number

(iii)

Chassis Number

(iv)

Registered Number.....

(v)

ULW and RLW.....

(vi)

Date up to which the vehicle is registered

(vii)

Name and full postal address of the registered owner

(viii)

Number of compartments and certified capacity in kilolitres of each compartment

Compartment No.

1
2
3
4
5
6
7

Total Capacity in Kilolitres

Capacity in kilolitres

(ix)

Class or Classes of petroleum proposed to be transported in the vehicle described above.

(x)

Number and date of approval of the design drawing of the vehicle by the Chief Controller.

3. Does the tank vehicle described above fully conform to the requirements laid down in third Schedule to the Petroleum Rules 2002 and the design drawings approved by the Chief Controller.

4. Full Postal Address of the place where the vehicle will be normally stationed.

5. Full Postal Address and license number of the installation where the vehicle shall be loaded.

In case of service station, number and date of the letter under which the specifically prepared loading area attached to the service station has been approved.

6. Name and full postal address of users and of the place where the vehicle normally will be transporting petroleum Class A/B for the purpose of the site refueling of aircraft's, heavy vehicles/machineries, stationery/equipment. Particulars of heavy vehicles which are proposed to be refueled by the vehicle.

I/We declare that the particulars given above have been checked up by me/us and are correct. I/We undertake of transport petroleum by the vehicle, particulars of which are given above, in accordance with the provisions of the petroleum Act, 1934 and the rules framed thereunder and any other law or rules for the time being in force. I/We understand that any contravention of the said Act and the Rules framed thereunder is punishable for the first offence with simple imprisonment which may extend to one month or with fine which may extend to one thousand rupees or with both and for every subsequent offence with simple imprisonment which may extend to three months or with fine which may extend to five thousand rupees or with both.

Date :

Place :

.....

Signature of the applicant

Part II ? To be filled in duly signed by the recognized engineer

I certify that the vehicle, the particulars of which are given in Part A of this form, has been examined and tested by me and found to be fully conforming to the particulars shown in approved drawing No dated complying with the requirements laid down in the Third Schedule to the Petroleum Rules. 2002.

Name.....

Recognized Qualification

Full Postal address.....

.....

Signature

Place

Date

Documents required to be submitted with this application

1. Four copies of drawing approved under sub-rule 3 of rule 63.

2. Required amount of licence fee to be paid in the manner specified in rule 13.

3. Original licence (only in case of renewal/amendment).

4. Four copies of site plan showing area of operations (only in case vehicle is used for on-site fuelling of the heavy

vehicle/machineries and stationery equipment).

5. List of heavy vehicles/machineries and stationery equipment's whose tanks require filling/replacement.

6. Four copies of the plans of the premises approved for loading the vehicles under rule 76(1) authorised carrying capacity.

Compartment No.

1

2

3

4

5

6

7

Total Capacity in Kilolitres

Capacity in kilolitress

Space for Endorsement of Renewals

(The licence shall be renewable without any concession in fee for the maximum period upto three years)

Date of renewal

Date of Expiry

Signature and office stamp of Licensing authority

This licence is liable to be cancelled if the licensed vehicle is not found conforming to the specifications given in the Third Schedule or for the contravention of any of the rules and conditions under which this licence is granted and the holder of this licence is also punishable for the first offence with simple imprisonment which may extend to one month or with fine which may extend to one thousand rupees, or with both and for every subsequent offence with simple imprisonment which may extend to three months or with fine which may extend to five thousand rupees, or with both.

FORM IX

(See rules 143, 147,148 and 156)

Application for a grant/amendment/renewal/transfer of a licence to import and store petroleum

Documents listed below must be enclosed with this application, if it is for the grant of a licence in Forms XIV, XV, XVI or in Special Form)

The replies to be given in this Column

1. Applicant's Name

Applicant's calling

Applicant's full Postal Address

2. Situation of the premises where Petroleum is to be stored

State

District

Town and village

Police Station

Nearest railway station

3. Quantity (in litres) of petroleum proposed to be imported and stored :

(i) Petroleum Class A

(a) In bulk

(b) Not in bulk

(c) Total

(ii) Petroleum Class B

(a) In bulk

(b) Not in bulk

(c) Total

(iii) Petroleum Class C

(a) In bulk (b) Not in bulk

(c) Total

Total of all classes of Petroleum

4. Quantity in litres of petroleum already stored in the premises:

(i) Petroleum Class A

(a) In bulk

(b) Not in bulk

(c) Total

(ii) Petroleum Class B

(a) In bulk

(b) Not in bulk

(c) Total

(iii) Petroleum Class C

(a) In bulk

(b) Not in bulk

(c) Total

Total of all classes of Petroleum

5. Number of licence held for the premises and the Full name of the holder of the licence

I hereby declare that the statements made above have been checked up by me and are true and I undertake to abide by the terms and conditions of the licence which will be granted to me.

Date of application.....

.....

Signature and designation of the applicant.

Notes.

1. Where the application is made on behalf of a company, the name and address of the company and the name of the manager or agent should be given and the application should be signed by him. Every change in the name of the manager or agent shall be forthwith intimated to, and his specimen signature filed with, the licensing authority.

2. "In bulk" means in tanks or receptacles exceeding 1,000 litres in capacity "Not in bulk" means in approved containers not exceeding 1,000 litres in capacity.

Documents required to be submitted with this application for a Licence in Forms XIV, XV, XVI or in special Forms

(i)

Four copies of specifications and plans approved under sub-rule (5) of rule 131 or sub-rule (3) of rule 147, as the case may be. (Not required for renewal and transfer or a licence without amendment)

(ii)

Licence together with approved plan and specifications attached there to. (Not required for the first grant of licence)

(iii)

"No Objection Certificate" from the District Authority. (Not required for renewal, transfer and amendment of a licence without any change in the site of the licensed premises).

(iv)

Requisite amount of fees for the grant, amendment, or transfer of a licence paid in the manner specific in Rule 13.

(v)

A certificate of tank testing if required under Rule 126.

(vi)

A certificate of safety if required under Rule 130.

FORM X

[See rules 143, 147, and 148]

Application for a grant/amendment/renewal of a licence to decant kerosene (petroleum class B) from mechanically-propelled vehicles in containers

Replies to be given in this Column

1. Applicant's Name

Applicant's calling

Applicant's fullPostal Address

2. Particulars of the vehicle in which kerosene (petroleum Class B) is to be transported.

1. Registration No.

2. Licence No. under the Petroleum Rules, 2002

3. Validity of the Licence

4. Name and address of licensee:

3. Area of operation for which licence is required:

State (1)

State (2)

District/City/Town/Village/Street/Road/Police Station

4. Location of premises where kerosene container is to be stored:

Municipal Corporation/Panchayat No.

Name and address of the occupant:

5. Has the applicant been appointed agent dealer of oil company.

If, yes, please give name of the Oil company and reference no. and date of appointment.

I hereby declare that the particulars have been checked up by me and are true and I undertake to abide by the terms and conditions of the licence which will be granted to me.

Date of application.....

.....

Signature of the applicant.

Notes:-

1. When the application is made on behalf of the company, the name of the manager or agent should be given and the application should be signed by him. Every change in the name of the manager or agent shall be forth with intimated to, and his specimen signature filed with, the licensing authority.

2. Application shall be made in respect of not more than two areas of operation and decantation of kerosene will be done in due area at a time.

FORM XI

(See Art. 2 of the First Schedule)

Licence to transport petroleum Class A or petroleum Class B in bulk on land by mechanically propelled vehicles

Licence No.

Fee Rs.

Licence is hereby granted to to transport Petroleum in bulk on land by the vehicle as described below subject to the provisions of Petroleum Act, 1934 and the rules made thereunder and to the further conditions of this licence.

The Licence shall remain valid up to the *..... day of 20.....

Date of issue.....

.....

Controller

Description of the Vehicle

Make and Model Engine Number

.....

Chassis Number Registration

Number.....

Name of the Registered Owner.....

Class(es) of petroleum authorized to be carried in vehicle authorised carrying capacity of the tank and compartments.

Compartment No.

1

2

3

4

5

6

7

Total Capacity in Kilolitres

Capacity in kilolitress

* One year from the date of issue.

Space for endorsement of renewals

(The licence shall be renewable without any concession in fee for three years in the absence of contravention of the

provisions of the Petroleum Act, 1934, or the rules formed thereunder or of the conditions of this licence)

Date of renewal

Date of Expiry

Signature and office stamp of Licensing authority

This licence is liable to be cancelled if the licensed vehicle is not found conforming to the specifications given in the Third Schedule or for the contravention of any of the rules and conditions under which this licence is granted and the holder of this licence is also punishable for the first offence with simple imprisonment which may extend to one month or with fine which may extend to one thousand rupees, or with both and for every subsequent offence with simple imprisonment which may extend to three months; or with fine which may extend to five thousand rupees, or with both.

Conditions

1. The licence or its authenticated copy shall at all times be kept in the licensed vehicle and produced on demand by an inspector.

2. Only responsible persons who are conversant with the conditions of this licence shall be employed for driving the licensed vehicle or attending to it.

3. The licensed vehicle shall be constantly attended to by a responsible person and by at least two persons while it is transporting petroleum exceeding 5 kilolitres or towing another vehicle:

Provided that the licensed vehicle may, if its tanks and compartments are empty, be left unattended in a place approved for the purpose in writing, by the Chief Controller.

4. The licensed vehicle shall at all times carry--

a) a portable fire extinguisher of capacity not less than 9 litres and suitable for extinguishing oil fires. The extinguisher shall be kept unlocked at an easily accessible position which shall be away from the discharge faucets of the vehicle.

b) A separate oil tight and electrically continuous hose for each class of petroleum it is carrying, the hoses shall have at each end oil-tight coupling to match the discharge faucet of the licensed vehicle and the inlet pipe into which the petroleum carried in the vehicles is to be unloaded.

c) a strong and flexible cable for electrical bonding; the cable shall be at least 5 metres long and shall have at each end a suitable clamp or clip.

5. The licensed vehicle shall not be loaded or unloaded except in a place approved for the purpose, in writing, by the Chief Controller: Provided that the licensed vehicle may not be unloaded at any other place with all due precautions and under adequate supervision if such unloading is necessitated by an accident or breakdown.

6. Petroleum carried in the licensed vehicle shall not be directly transferred in to any container or into the fuel tank of any motor conveyance or an internal combustion engine.

7. The licensed vehicle shall not be loaded if any tank or compartment, pipe valve, emergency discharge control or any safety fitting becomes leaky, defective or otherwise insecure until necessary repairs have been carried out satisfactorily, and in the event of any leak in the tanks or compartments, until the leak is thoroughly repaired and all the tanks or compartments pass the test specified in clause 5 of the Third Schedule to the petroleum Rules.

8. Before petroleum is loaded into or unloaded from the licensed vehicle---

a) its engine shall be stopped and the battery shall be isolated by a proper switch or otherwise;

b) its wheels shall be secured by brakes or by scotching and in the case of animal drawn vehicles, animals shall be unhitched and removed;

c) its chassis shall be electrically bonded by a cable with the pipe into or from which it is to be unloaded or loaded;

d) the correct filling or discharge hose shall be selected and connected by oil-tight coupling at both ends;

e) a responsible person shall be in attendance and remain so until loading or unloading is over and the tanks and compartments have been sealed.

9. Except when called upon the traffic signals or required by an Inspector or a Sampling Officer, the licensed vehicle shall not stop on any road, congested area or a place which is not a place approved in writing, under these rules for loading, unloading or stabling of such vehicles.

10. No smoking and no fire or artificial light or any article capable of igniting inflammable vapour shall be allowed on the licensed vehicle.

11. The licensed vehicle shall not be used for carrying passenger or any article other than petroleum.

12. The licensed vehicle shall not be allowed to be repaired by welding, soldering, brazing, or hot riveting until its tanks, compartments, pipes and valves have been thoroughly cleaned and examined by a competent person and certified by

him in writing to be free from inflammable vapour or oil.

13. No alteration in the licensed vehicle or its safety fittings shall be carried out without the previous sanction in writing of the licensing authority. Such alterations so sanctioned shall be endorsed on this licence by an amendment.

14. Every facility shall be given at all reasonable time to any inspector or sampling officer for ascertaining that the rules and the conditions of this licence are dully observed or for drawing samples.

15. Any accident, fire or explosion occurring in the licensed vehicle, which is attended with loss of human life or serious injury to person or property shall be immediately reported to the nearest Magistrate or to the officer-in-charge of the nearest police station having jurisdiction and by telephone/fax and also by telegram to the Chief Controller or Explosives (Telegraphic address "EXPLOSIVES, NAGPUR").

Additional conditions for the carriage of Petroleum Class A along with any other class of petroleum in the same vehicle covered by this licence.

(a)

Two capital letters "ML" each not less than 10 cm. square shall be printed in a conspicuous colour on each side and the rear of the licensed vehicle.

(b)

The filling pipe, discharge faucet and the vent pipe of the one compartment shall not be interconnected by manifolding or otherwise with the filling pipe, discharge faucet or vent pipe of any other compartment.

(c)

A metal band not less than 2.5 cm wide, coloured red and bearing embossed or printed words "MOTOR SPIRIT" shall be securely attached to fill the pipe and discharge faucet of each compartment carrying petroleum Class A. A similar metal band coloured blue and grey and bearing embossed or printed words describing the class of petroleum shall be securely attached to fill the pipe and discharge faucet of each compartment carrying such other class of petroleum.

(d)

Separate hoses for each calls of petroleum shall at all times be carried in the licensed vehicle. Hoses for each calls or petroleum shall have securely attached to it distinctively coloured and marked identification bands as prescribed under additional conditions No. (c) for filling pipe and discharge faucet.

(e)

Petroleum carried in the licensed vehicle shall not be unloaded except into the underground tanks of a service station.

Space For Endorsement of Alterations

(See condition 13)

Serial Number

Description of alteration

Date of sanctioning alteration

Signature of licensing authority

FORM XII

(See Art. 3 of the First Schedule)

Licence to import and store petroleum Class A in quantity not exceeding 300 litres in a storage shed or approved bin

Licence No.

Fee Rs.

Licence is hereby granted to valid only for the importation and storage oflitres of Petroleum in the premises described below subject to the provisions of Petroleum Act, 1934 and the ruleS made thereunder and to the further conditionS of this licence.

The Licence shall remain in force up to the 31st day of December 20.....

The 20.....

District Authority.

Description and location of the licensed premises

The licensed premises consist of Storage Shed

An approved bin of type approved by the Chief Controller and is situated at

House Number/Name of Street/Village or Town/Police Station/District.....

Space for Endorsement of Renewals

(This licence shall be renewable without any concession in fee for three years in the absence of contravention of the

provisions of the Petroleum Act, 1934 or of the rules framed thereunder or of the conditions of this licence)

Date of renewal

Date of Expiry of license

Signature and office stamp of licensing authority

This licence is liable to be cancelled if the licensed premises are not found conforming to the description and conditions attached hereto and contravention of any of the rules and conditions under which this licence is granted and the holder of this licence is also punishable for the first offence with simple imprisonment which may extend to one month or with fine which may extend to one thousand rupees, or with both and for every subsequent offence with simple imprisonment which may extend to three months or with fine which may extend to five thousand rupees, or with both.

Conditions

1. Petroleum Class A shall be stored only:-

(i)

in a storage shed constructed of suitable non-combustible materials on private ground, the doors and windows may be of wood; or

(ii)

in a property ventilated iron bin of a design approved by the Chief Controller and placed on private ground in the open air.

2. The storage shed shall be adequately ventilated near the ground level and also near the roof. The ventilators shall be provided with two layers of noncorroding metal wire gauze having not less than 11 meshes per linear centimeter.

3. The storage shed shall not from part, or be attached to, any building in which any person resides or works or where persons assemble for any purpose unless it is separated therefrom by a substantial roof and partition -wall of masonry construction having no openings therein.

4. The storage shed if in any building, shall not be situated under any staircase or under any other means of exit likely to be required to be used for escape in case of fire.

5. Any two storage shed or bins or other storage premises not more than six metres apart shall be deemed to one storage shed.

6. No alterations shall be carried out in the storage shed or bin without the previous sanction in writing of the licensing authority.

7. If the licensing authority calls upon the holder of a licence, by a notice in writing to execute any repairs to the storage shed, which are, in the opinion of such authority necessary for the safety of the shed, the holder of the licence shall execute the repairs within such period as may be fixed by the notice.

8. All empty receptacles which have contained petroleum Class A shall except when they are opened for the purpose of cleaning them and rendering them free from petroleum vapour be kept securely closed unless they have been thoroughly cleaned and freed from petroleum vapour.

9. No receptacles shall be repaired on the premises and no person shall repair or cause to be repaired any receptacle in which to his knowledge, any petroleum Class A is or has been kept until he has taken all reasonable precautions to ensure that the receptacle has been rendered free from such petroleum and any inflammable vapour.

10. Adequate precautions shall be taken at all times for the prevention of accident by fire or explosion.

11. Every care shall be taken to prevent any petroleum Class A escaping into any drain, sewer harbour, river or watercourse or a public road.

12. Adequate precautions shall be taken to prevent unauthorized persons having access to a petroleum Class A kept and to the vessel which contains or has contained such petroleum.

13. The licensee shall keep daily records and accounts of all receipts and issues of petroleum in such form as the licensing authority may from time to time prescribe and shall exhibit his stock and records to an inspector or sampling officer on demand.

14. Any accident, fire or explosion occurring in the licensed premises, which is attended with loss of human life or serious injury to person or property shall be immediately reported to the nearest Magistrate or to the officer-in-charge of the nearest police station and to the Chief Controller of Explosives Nagpur, immediately by telephone/fax and also by telegram or telephone where such means of communication are available. [Telegraphic address: 'EXPLOSIVES, NAGPUR']

15. Free access to the licensed premises shall be given at all reasonable times to any inspector or sampling officer and

every facility shall be afforded to such officer for ascertaining that rules and the conditions of this licence are duly observed.

FORM XIII

(See Art. 4 of the First Schedule)

Licence to import and store petroleum Class B otherwise than in bulk in quantity not exceeding 25,000 litres

Licence No.

Fee Rs.

Licence is hereby granted to valid only for the importation and storage of litres of Petroleum in the premises described below subject to the provisions of Petroleum Act, 1934 and the rules made thereunder and to the further condition of this licence.

The Licence shall remain force up to the 31st day of 20.....

The 20.....

District Authority

Description and location of the licensed premises

This licensed premises, consist of storage shed and is situated at

(House No. or Plot No.)

(Name of Street)

(Town or village)

(Police Station)

(District)

Space for Endorsement of Renewals

(This licence shall be renewable without any concession in fee for three years in the absence of contravention of the provisions of the Petroleum Act, 1934 or of the rules framed thereunder or any of the conditions of this licence)

Date of renewal

Date of Expiry of license

Signature and office stamp of licensing authority

This licence is liable to be cancelled if the licensed premises are not found conforming to the description and conditions attached hereto and contravention of any of the rules and conditions under which this licence is granted and the holder of this licence is also punishable for the first offence with simple imprisonment which may extend to one month or with fine which may extend to one thousand rupees, or with both and for every subsequent offence with simple imprisonment which may extend to three months; or with fine which may extend to five thousand rupees, or with both.

Conditions

1. Petroleum shall be stored in the licensed storage shed which shall be constructed of suitable non-combustible material but the beams, rafters, columns, doors and windows may be of wood. The floor of the storage shed shall be suitably finished to form a sump or enclosure not more than thirty centimetres deep and capable of receiving and retaining, in case of any accident or emergency, a volume not less than one half of the quantity allowed under the licence.
2. The storage shed shall not from part of, or be attached to any building in which any person resides or works or where persons assemble for any purpose unless it is separated therefrom by a substantial floor or partition - which is constructed of unflammable material and has no opening in it.
3. The storage shed if in any building, shall not be situated under any staircase or under any other means of exit likely to be required to be used for escape in case of fire.
4. No alteration shall be carried out in the storage shed or bin without the previous sanction in writing of the licensing authority.
5. If the licensing authority calls upon the holder of a licence, by a notice in writing to execute any repairs to the storage shed, which are, in the opinion of such authority necessary for the safety of the shed, the holder of the licence shall execute the repairs within such period not being less than one month from the date of receipt of the notice, as may be fixed by the notice.
6. Any two storage sheds not more than three metres apart shall be deemed to one storage shed.
7. Petroleum Class B shall be packed in air-tight tins or drums of approved type or in other receptacles not easily broken.

8. The drum or other receptacles containing petroleum shall only be opened in the licensed premises and for the time necessary for drawing off the petroleum and during such drawing off every reasonable precaution shall be adopted for preventing the escape of petroleum or the vapour therefrom.
9. Adequate precautions shall be taken to prevent unauthorized persons having access to a petroleum kept and to any receptacles which contains or has contained such petroleum.
10. Adequate precautions shall be taken at all times for the prevention of accident by fire or explosion.
11. Every care shall be taken to prevent any petroleum escaping into any drain, sewer harbour, river or watercourse or a public road.
12. The licensee shall keep daily records and accounts of all receipts and issues of petroleum in such form as the licensing authority may from time to time prescribe and shall exhibit his stock and records to an inspector or sampling officer on demand.
13. Any accident, fire or explosion occurring in the licensed premises, which is attended with loss of human life or serious injury to person or property shall be immediately reported to the nearest Magistrate or to the officer-in-charge of the nearest police station and by telephone/fax and also by telegram to the Chief Controller of Explosives (Telegraphic address "EXPLOSIVES, NAGPUR").
14. Free access to the licensed premises shall be given at all reasonable times to any inspector or sampling officer and every facility shall be afforded to such officer for ascertaining that rules and the conditions of this licence are duly observed.

Comments

As per the Rules 2(vii),(xii) and (xxii), Sch. 1 and the forms of licence contained therein, the holder of licence in Form XI can store petroleum Class B in different containers each of which would not exceed 1,000 litres in capacity and subject to a total of 25,000 litres. In case the licensee stores it in a tank in excess of 1,000 litres, then it would be a case of storage of petroleum in bulk and for such storage licence is required to be obtained in Form XIII and the authority empowered to grant such licence is the Chief Controller or a Controller of Explosives authorised in this behalf by the Chief Controller.

So when a person does not possess the licence in Form XIII, is not entitled to store the high-speed diesel in an underground tank and sale from the same unit.

The Act or the Rules do not prohibit storage of high-speed diesel in quantity more than, 1,000 litres in an underground tank if they possess a licence in Form XIII from the Chief Controller; Durg Oil Company v. State of Uttar Pradesh, (1998) 6 SCC 299.

FORM XIV

(See Article 5 of the First Schedule)

Licence to store petroleum in tank or tanks in connection with pump outfit for fuelling motor conveyances

Licence No.

Fee Rs.

Licence is hereby granted tovalid only for the storage ofKilolitres of Petroleum Class A andKilolitres of Petroleum Class B/C in tank(s) in the premises described below and shown on the plan No. dated.....hereto attached subject to the provisions of Petroleum Act, 1934 and the rule made thereunder and to the further conditions of this licence.

The licence shall remain in force up to the 31st day of December, 20.....

The 20.....

Controller

Description and location of the licensed premises

This licensed premises, the boundaries of which are shown in the attached plan, are situated at and consist of

(a)

.....	number(s)	underground	gas	tanks	of
capacity.....kilolitres	respectively	of	petroleum	Class A	connected with
.....	number(s)	electrically/manually operated	dispensing pump(s).		

(b)

.....	number(s)	underground	gas	tight	tanks	of
-------	-----------	-------------	-----	-------	-------	----

capacity.....kilolitres each respectively of petroleum Class B/C connected with
number(s) electrically/manually operated dispensing pumps(s).

(c)

A sales room/kiosk.

(d)

Servicing facilities consisting of.

Space for Endorsement of Renewals

(This licence shall be renewable without any concession in fee for three years in the absence of contravention of the provisions of the Petroleum Act, 1934 or of the rules framed thereunder or of the conditions of this licence)

Date of renewal

Date of Expiry of license

Signature and office stamp of licensing authority

This licence is liable to be cancelled if the licensed premises are not found conforming to the description given or the approved plan attached hereto or to the conditions under which this licence is granted and the holder of this licence is also punishable for the first offence with simple imprisonment which may extend to one month or with fine which may extend to one thousand rupees, or with both and for every subsequent offence with simple imprisonment which may extend to three months; or with fine which may extend to five thousand rupees, or with both.

Conditions

1. The Petroleum shall be stored only in one or more underground gastight tanks of capacity and in the position shown in the approved plan attached hereto.
2. Every tank shall be outside any building and placed in a masonry or concrete pit and packed around with sand, earth or clay so that no air space is left between the tank and the masonry or concrete pit and the tank is not visible, such a masonry or concrete pit shall not be obligatory if the tank is a welded one and tested up to pressure of 0.25 kg per square centimeter and is buried and is on a private, leased or rented land and no part of the tank is less than 1.5 metres from any point of the marked boundary of the premises in the approved plan attached hereto.
3. The space over the buried tank(s) shall not be used for any purpose other than
4. There shall be no openings in any tank other than those necessary for the introduction or removal of the petroleum or for ventilating or dipping the tank. The filling and dipping pipes shall be carried down nearly to the bottom of the tank.
5. Every tank shall be fitted with an independent vent pipe leading into the open air. The vent pipe shall be securely supported and shall not be less than 4 metres in height and four metres from any adjoining land or property or from the nearest opening of the sales room/kiosk or any other facility in which sources of fire are likely to be present. Vent pipe of any tank shall not be interconnected with the vent pipe of another tank. The open end of every vent pipe shall be covered with two layers of non-corrodible metal wire gauze having not less than 11 meshes per liner centimeter and shall be further protected from rain by hood or by suitably bending it downward.
6. No alteration of the position of a pump or tank and replacement of a tank shall be effected except with the previous sanction in writing of the licensing authority. All alterations sanctioned under this condition shall be shown on an amended plan to be attached to this licence.
7. If the licensing authority calls upon the holder of a licence, by a notice in writing to execute any repairs to the storage shed, which are, in the opinion of such authority necessary for the safety of the premises, the holder of the licence shall execute the repairs within such period not being less than one month from the date of receipt of the notice, as may be fixed by the notice.
8. Every tank before being repaired or exhumed, shall be cleared of all petroleum and of all flammable vapours, when a tank in position is opened for cleaning or repairs, no electric or other lamps, electric cable or electric fans and no articles, appliances or equipment capable of igniting flammable vapour shall be brought near the manhole of the tank until the tank has been certified in writing to be 'gas-free' by a competent person. Where the tank has been so certified as "gasfree" the certificate shall be preserved by the licensee for a period of not less than three months.
9. The petroleum shall enter a tank through close coupled electrically continuous and sound hose.
10. The underground tank or tanks shall not be filled between the hours of sunset and sunrise except in a manner and under conditions specially endorsed on this licence by the licensing authority.
11. No artificial light capable of igniting flammable vapour shall at any time be present in the immediate vicinity of the tank lorry/wagon during the transfer of the petroleum to the tank and no person engaged in such transfer shall smoke.

When the underground tank is filled with petroleum from barrels, no such light and no smoking shall be allowed within a distance of 9 metres from barrels.

12. No petroleum shall be removed from a tank except by means of the pump or pumps at the positions marked on the plan hereto attached. Every pump shall together with its connections and fittings be so constructed and maintained as to be gas and petroleum tight. The pipe connection between the tank and a pump shall be placed underground.

13. For the purpose of charging the tanks of motor vehicles the petroleum shall only be supplied by being -

(a)

pumped through strong metal piping by means of approved pumps into above ground measuring tanks of a capacity not exceeding 150 litres, fixed in approved positions, and run thence through sound hose fitted with a secure self-closing cock and nozzle, into the tanks of motor vehicles, or

(b)

pumped through strong metal piping by means of approved pumps into an above ground service tank of approved capacity, fixed in an approved position, and run thence through strong metal piping into measuring tanks of a capacity not exceeding 150 litres, fixed in approved positions, and run hence through sound hose fitted with a secure self-closing cock and nozzle, into the tanks of motor vehicles, or

(c)

pumped by means of approved measuring pumps, fixed in approved positions, through sound hose fitted with a secure tap and nozzle, into the tanks of motor vehicles.

14. Petroleum may be supplied to a motor vehicle between the hours of sunset and sunrise from the pump provided that -

(i)

the pump and the vehicle are adequately illuminated by electric light or failing this by some other form of lighting, and

(ii)

no light capable of igniting flammable vapour is situated or brought within the extent of hazardous area as specified in part B of Fourth Schedule to the Petroleum Rules, 2002.

15. (a) Petroleum shall not be placed in any motor vehicle while the engine is running and, where the vehicle is licensed for the conveyance of more than six passengers on hire, while any passenger remains in the vehicle;

(b)

person in and engaged in connection with any motor vehicle shall not be permitted to smoke while it is being refueled.

16. Petroleum shall not be filled from the tank or the pump into a container or receptacle other than those securely clamped or fitted to a motor vehicle. The restriction imposed by this condition shall not apply.-

(i)

when it is absolutely necessary for the purpose of condition of this licence to clear a tank, or

(ii)

for testing the accuracy of the pump's discharge by means of a standard capacity measure, or

(iii)

to the filling of an approved container of capacity not exceeding 25 litres when such filling is absolutely necessary for replenishing the fuel tank of a motor vehicle which has run dry and the motor vehicle cannot be brought into the pump.

(iv)

to the filling of Petroleum class B in an approved containers of capacity not exceeding 200 litres and no vehicle with its engine running shall be allowed within 4.5 metres of the container and the dispensing pump.

17. (a) This licence shall be held to cover the use of portable kerb side pump outfit for a period of not more than one month in the place of the licensed permanent outfit in the event of the latter being out of order, provided notice in writing is given to the licensing authority before the portable pump is taken into use and the conditions of this licence which apply to a portable pump are observed. No petroleum shall be allowed above ground (except that actually in the pump) in any case where the underground tanks can be used in connection with the portable pump by making a temporary connection from the portable pump to the underground tank.

(b)

In case where portable pumps are used not more than 400 litres of petroleum in reserve shall be kept within 6 metres of the pump. The petroleum so kept shall be in approved containers and none of it shall be kept outside the licensed premises.

18. Every person managing or employed on or in connection with the licensed premises shall abstain from any act whatsoever which tends to cause fire or explosion and which is not reasonably necessary and to the best of his ability shall prevent any other person from doing such act.

19. Every care shall be taken to prevent any petroleum escaping into any drain, sewer or public road.

20. The licensee shall provide for each pump, whether kerb side or portable, a minimum of two tins or drums of dry sand and two portable foam type or dry chemical type fire-extinguishers which shall be kept ready at convenient location for immediate use in the event of any fire.

21. In premises where auto LPG or CNG dispensing facilities are installed, the requirements of Static and Mobile Pressure Vessels(Unfired) Rules 1981, or Gas Cylinder Rules 1981, as the case may be, and condition of the respective licences granted under those Rules for the above facilities shall also be complied with.

22. Any accident, fire or explosion occurring in the licensed premises, which is attended with loss of life or serious injury to person or property shall be immediately reported to the nearest Magistrate or to the officer-in-charge of the nearest police station and by telephone/fax and also by telegram to the Chief Controller or Explosives (Telegraphic address "EXPLOSIVES, NAGPUR").

23. Free access to the licenced premises shall be given at all reasonable times to any inspector or sampling officer and every facility shall be afforded to such officer for ascertaining that rules and the conditions of this licence are duly observed.

FORM XV

(See Art. 6 of the First Schedule)

Licence to Import and Store Petroleum in an Installation

Licence No.

Fee Rs.

Licence is hereby granted tovalid only for the importation and storage of petroleum of the class and in quantities as herein specified and storage thereof in the place described below and shown on the approved plan No. dated.....

Attached hereto subject to the provisions of Petroleum Act, 1934 and the rules made thereunder and to the further conditions of this licence.

The licence shall remain force up to the 31st day of December, 20.....

Description of petroleum

Quantity Licensed in Kilolitres

Petroleum Class A, in bulk

Petroleum Class A, otherwise than in bulk

Petroleum Class B, in bulk

Petroleum Class B, otherwise than in bulk

Petroleum Class C, in bulk

Petroleum Class C, otherwise than in bulk

Total

The 20

Chief Controller

Description and location of the licensed premises

This licensed premises, the lay-out boundaries and other particulars of which are shown in the attached approved plan are situated at

.....
And consists of

.....
.....
Space for Endorsement of Renewals

(This licence shall be renewable without any concession in fee for three years in the absence of contravention of the provisions of the Petroleum Act, 1934 or of the rules framed thereunder or any of the conditions of this licence.

Date of renewal

Date of Expiry of license

Signature and office stamp of licensing authority

This licence is liable to be cancelled if the licensed premises are not found conforming to the description and conditions attached hereto and contravention of any of the rules and conditions under which this licence is granted and the holder of this licence is also punishable for the first offence with simple imprisonment which may extend to one month or with fine which may extend to one thousand rupees, or with both and for every subsequent offence with simple imprisonment which may extend to three months; or with fine which may extend to five thousand rupees, or with both.

Conditions

1. The licensed premises shall not without permission in writing from the Chief Controller, be used for any purpose other than the storage and distribution of petroleum and purposes directly connected therewith.

2. The Petroleum shall be kept only in the storage tanks and storage filling sheds or other approved places within the installation specified for the purpose on the plan attached hereto.

3. (i) The tank or tanks shall be supported on well-designed foundations and shall be either buried underground or installed in the open and surrounded by wall or embankment not more than 2 metres high and made of earth, steel, concrete or solid masonry capable of withstanding fully hydrostatic load. Earth wall of over 1m. high shall have not less than 0.6m wide flat section on top :

Provided that a wall or embankment higher than 2m may be allowed by the licensing authority where there are special circumstances which, in his opinion warrant such increase.

(ii)

The ground within the enclosure shall not be lower than the level of the ground outside the enclosure and shall be finished to form a slope of not less than half a percent from the tank towards the drain or sump. Provided that nothing in this clause shall apply in the case of an enclosure which is connected to an efficient oil interceptor of sample capacity through an underground drainage system having proper slope.

(iii)

The drainage from the enclosure shall be controlled by a valve which shall be accessible under fire conditions and be capable of being operated from outside the enclosure. All surface water drainage from the enclosure shall be passed through an efficient oil interceptor.

(iv)

Where two or more tanks are installed in one enclosure the total capacity of the tanks in the enclosure shall not exceed 60,000 kilolitres in the case of conventional fixed -roof and 1,20,000 kilolitres in the case of floating roof tank or those of special design (where there is a combinations of fixed and floating roof tanks in the same enclosure then the total capacity of fixed-roof tanks and floating roof tanks shall not exceed 60,000 kilolitres). Such an enclosure shall be sub-divided by masonry channels of ample dimensions or by intermediate wall of not less than 0.6 m in height to prevent spills from one tank endangering any other tank in the same enclosure.

Explanation - for the purpose of this clause, a group of small tanks each not exceeding 9m in diameter and in all not exceeding 5,000 kilolitres in capacity shall be treated as one tank.

(v)

(a)

Where petroleum Class A or petroleum Class B is stored in the enclosure or petroleum Class C is stored along with petroleum Class A or Class B, the capacity of the enclosure shall be hundred percent of capacity of the largest tank in the enclosure after deducting the volume up to the height of the enclosure wall, of all other tanks in the same enclosure.

(b)

Where petroleum Class C is only stored in the enclosure the height of the enclosure wall shall be not less than one metre.

(vi)

Except for necessary pipes and valves and approved electric lights, the space within and enclosure and not occupied by tank or tanks shall be kept entirely clear and unoccupied.

4. All tanks shall be fitted with vent pipes leading into the open air, the open end being covered with two layers of fine copper or other non corrodible metal wire gauze of not less than 11 meshes per linear centimeter and fitted with a hood or the tank shall be fitted with an approved relief valve or other approved means of preventing dangerous internal or external pressures. The vent pipe and the relief valve of one tank shall not be interconnected with those of any other tank.

5. Cast-iron valves are not permitted on any tank and all valves in an installation must be permanently marked in a manner clearly indicating the direction of opening and shutting the valve.

6. Pumps shall be of a type and placed only in the position shown on the plan attached thereto and they shall together with all connections and fittings be so constructed and maintained as to prevent leakage of petroleum.

7. Storage or filling sheds for containers shall be constructed of suitable unflammable material. The shed shall rest foundation walls and shall be surrounded by a wall or embankment of substantial construction so as to form a sump or enclosure not less than 0.25m and not more than 1m deep. The sump or enclosure thus formed shall be of sufficient capacity to contain without leakage not less than one-fourth of the maximum quantity of petroleum likely to be present in the shed at any one time. The sumps and enclosures must be kept clean and free from any accumulation of inflammable liquids.

8. Every enclosed shed for the storage or filling of petroleum Class A and Class B otherwise than in bulk shall be adequately ventilated near the ground level immediately above the walls constructed to prevent leakage of petroleum and also near or in the roof.

9. (i) Tank vehicles shall be filled, discharged or stabled only in the positions approved for the purpose and shown on the plan attached hereto. An extract of rules 62 to 86 printed in bold letters in the local language and in Hindi and English shall be prominently displayed at each such position.

(ii)

A tank vehicle which does not fully comply with the requirement laid down in Part IV of chapter III of these rules shall not be loaded, unloaded or stabled within the licensed premises.

10. Every facility for the storage, loading, unloading or pumping of petroleum shall at all times maintain from any other facility, building, boundary fencing or protected works the distances specified in the Tables 1, 2 and 3

(a)

Table 1 and Table 2 in the case of installation where the total quantity of petroleum Class A and petroleum Class B stored above ground in bulk exceeds 5,000 kilolitres or where the diameter of any tank for the storage of such petroleum exceeds 9 metres or

(b)

Table 3 in the case of installation where only petroleum Class C is stored or where the total quantity of petroleum Class A and petroleum Class B stored above ground in the bulk does not exceed 5,000 kilolitres and the diameter of any tank for storing petroleum Class A or petroleum Class B does not exceed 9 metres.

The layouts of all new grass root refineries/installations approved subsequent to the publication of this rule, shall conform to the oil Industry Safety Director's Standard 118, as amended from time to time. This shall not apply to refineries/installations existing and/or under construction before the publication of the original OISD standard-118. Notwithstanding anything herein to the contrary when petroleum is stored in an installation at or near wells, pumping stations, petro-chemical plants or refineries, the concessional distances given in the attached Table 2 shall not apply and no storage tank, the capacity of which exceeds 250 kilolitres and no petroleum storage or filling sheds/area shall be placed nearer than 90 metres to any boiler, furnace or fire. In such an installation all tanks shall be situated in a compact area (a) under a single control, (b) enclosed or capable of being enclosed by one continuous fence and (c) on which there shall be no protected works.

TABLE 1

[See condition 10 (a) of Licence Form XV]

Distance to be observed around facilities in an installation where total quantity of petroleum Class A and petroleum Class B stored above ground in bulk exceeds 5000 kilolitres, or where the diameter of any such tank for the storage of petroleum exceeds 9 metres:

1. In this table :-

"D" means diameter of large tank.

"d" means diameter of small tank.

"x" means any distance suitable for constructional or operational convenience.

2. Where alternative distances are specified, minimum there of may be observed.

3. All distances shall be measured between the points in the perimeter of each facility except in the case of tank vehicle loading/unloading area where the distance shall be measured from the centre of each bay for such loading/unloading.

To From

Storage tank for petroleum Class A

Storage tank for petroleum Class B

Storage tank for petroleum Class C

Storage/filling shed for petroleum Class A or Class B

Storage/filling shed for petroleum Class c

Tank vehicle loading/unload ing area for petroleum Class A or Class B

Tank vehicle loading/unload ing area for petroleum Class

Flame proof electric pump

Non-flame proof electric pump

Office building work shops, stores amenities, fire station, etc., within installation

Boundary fencing around installation

1

2

3

4

5

6

7

8

9

10

11

1.

Storage tank for Petroleum Class A

0.5D or d or 15m

0.5D or d or 15m

6m

15m

15m

15m

15m

8m

15m

15m

20m

2.

Storage tank for petroleum Class B

0.5D or d or 15m

0.5D or d or 15m

6m

15m

15m

15m

15m

8m

15m

15m

15m

3.

Storage tank for petroleum Class C

6m

6m

X

15m

X

8m

X

X

X

8m

4.5m

4.

Storage/filling shed for Petroleum Class A or Class B

15m

15m

15m

X

8m

15m

15m

8m

15m

15m

15m

5.

Storage/filling shed for petroleum Class C

15m

15m

X

8m

X

8m

X

X

X

8m

4.5m

6.

Tank vehicle loading/unloading area for petroleum Class A or Class B

15m

15m

8m

15m

8m

X

X
8m
15m
15m
15m
7.
Tank vehicle loading/unloading area for petroleum Class C
15m
15m
X
15m
X
X
X
X
X
8m
3m
8.
Flame proof electric pump
8m
8m
X
8m
X
8m
X
X
8m
8m
3m
9.
Non flame proof electric pump
15m
15m
X
15m
X
15m
X
8m
X
3m
X
10.
Office building, workshops, stores, amenities, fire station, etc., within installation
15m
15m
8m
15m
8m

15m
8m
8m
3m
X
X
11.
Boundary fencing around installation
20m
15m
4.5m
15m
4.5m
15m
3m
3m
X
X
X

TABLE 2

(See condition 10(b) of licence Form XV)

Inter Distance Between Storage Tanks

Item

Floating Roof

Fixed Roof tanks (Class A&B petroleum)

Class C

All tanks with diametres Upto 50 metres

$(D+d)/4$

$(D+d)/4$

$((D+d)/6$

All tanks with diametres Upto 50 metres

$(D+d)/4$

$(D+d)/3$

$(D+d)/4$

Notes :-

1. This table is applicable for installations where aggregate storage capacity of class A and class B petroleum stored above grade exceeds 5000 kilolitres or where the diameter of any such tank for the storage of petroleum exceeds 9 m.

2. Distance given are shell to shell in the same dyke.

3. Notation :

D-diameter of larger tank in metres

d-diameter of smaller tank in metres

4. If the inter distance (for class A and B) calculated as above are less than 15m, then minimum of 15 m or 0.5 D or d shall be followed.

5. Interdistance between class A/B storage tanks and class C storage tanks shall not be less than 6 metres.

TABLE 3

[See condition 10 (b) of Licence Form XV]

Distances to be observed around facilities in an installation where :-

(i)

Only petroleum Class C is stored ;

(ii)

Total quantity of petroleum Class A and petroleum Class B stored above ground in bulk does not exceeds 5,000

kilolitres;

(iii)

The diameter of any tank for storing petroleum Class A or Class B does not exceed 9 metres.

1. In this table "D" means diameter of larger tank and "x" means any distance suitable for constructional or operational convenience.

2. Where alternatives distances are specified, minimum there of may be observed. All alternative distances shall be measured between the nearest points in the perimeter of each facility except in the case of tank vehicle loading/unloading area where the distance shall be measured from the centre of each bay for such loading/unloading.

To

From

Storage tank for petroleum Class A

Storage tank for petroleum Class B

Storage tank for petroleum Class C

Storage/ filling shed for petroleum Class A

Storage / filling shed for petroleum Class B

Storage / filling shed for petroleum Class C

Tank vehicle loading/unloading area for petroleum Class A

Tank vehicle loading /

unloading area for petroleum Class B

Tank vehicle loading /

unloading area for petroleum Class C

Flame proof electric pump

Non flame proof electric pump

Office building stores amenities Station etc. within installation

Boundary fencing around installation

1

2

3

4

5

6

7

8

9

10

11

12

13

1.

Storage tank for Petroleum Class A

0.5D or 6m

0.5D

0.5D

9m

9m

9m

15m

15m

15m

3m

15m

15m

15m

2.

Storage tank for Petroleum Class B

0.5D or 6m

0.5D

0.5D

9m

0.5D

0.5D

9m

4.5m

4.5m

3m

4.5m

D min

D min

3.

Storage tank for Petroleum Class C

0.5D or 6m

0.5D

x

9m

0.5D

x

9m

4.5m

x

x

x

0.5D min 3m

0.5 D min 3m

4.

Storage / filling shed for petroleum Class A

9m

9m

9m

x

4.5m

6m

9m

9m

9m

9m

9m

9m

9m

5.

Storage/filling shed for Petroleum Class B

9m

0.5D

0.5D

4.5m

x

1.5m

9m

4.5m

4.5m

1.5m

4.5m

4.5m

4.5m

6.

Storage/filling shed for Petroleum Class C

9m

0.5m

x

6m

1.5m

x

9m

4.5m

x

x

x

3m

3m

7.

Tank vehicle loading / unloading area for Petroleum Class A

15m

9m

9m

9m

9m

9m

9m

x

9m

9m

3m

9m

9m

9m

8.

Tank vehicle loading / unloading area for Petroleum Class B

15m

4.5m

4.5m

9m

4.5m

4.5m

9m

x

4.5m

1.5m

4.5m

4.5m

4.5m

9.

Tank vehicle loading / unloading area for Petroleum Class C

15m

4.5m

x

9m

4.5m

x

9m

4.5m

x

x

x

3m

3m

10.

Flame Proof Electric pump

3m

3m

x

3m

1.5m

x

3m

1.5m

x

x

3m

x

x

11.

Non Flame proof electric pump

15m

4.5m

x

9m

4.5m

x

9m

4.5m

x

3m

x

x

x

12.

Office building Workshop, stores amenities, fire station etc. within installation

15m

D min 4.5m

0.5D min 3m

9m

4.5m

3m

9m

4.5m

3m

x

x

x

x

13.

Boundary fencing around installation

15m

D min 4.5m

0.5 D min 3m

9m

4.5m

3m

9m

4.5m

3m

x

x

x

x

11. The distances specified in condition 10 may be reduced by the licensing authority in cases where special precautions are taken and where there are special circumstances which, in his opinion, warrant such reduction.

12. No alteration shall be carried out in the installation without the previous sanction in writing of the licensing authority. Such alterations so sanctioned shall be shown on an amended plan to be attached to this licence.

13. If the licensing authority calls upon the holder of a licence, by a notice in writing to execute any repairs to the storage shed, which are, in the opinion of such authority necessary for the safety of the premises, the holder of the licence shall execute the repairs within such period not being less than one month from the date of receipt of the notice, as may be fixed by the notice.

14. The responsible agent or supervisor referred to in rule 118 shall not allow any person to enter a tank, which has contained petroleum unless-

(a)

such person wear an approved breathing apparatus of a description approved by the Chief Controller, or

(b)

(i)

the responsible agent or supervisor has certified in writing in prescribed proforma given in OISD standard 105, as the result of an examination of the tank by him self or by some other competent person that the atmosphere in the tank is fit for the person to enter, and

(ii)

atleast one person wear an approved breathing apparatus of a pattern approved by the Chief Controller shall have been kept ready for instant use at the manhole of the tank which is being cleaned or repaired.

The certificate referred to in sub-clause (i) of clause (b) of this condition shall be preserved in the licensed premises for a period of three months.

15. No work involving the use of fire, welding or hot reveting, shall be performed in or on any tank or within the safety distance required to be observed from such tanks by building and boundary until the tank has been certified in prescribed proforma given in OISD Standard 105 in the manner laid down in clause (b) of condition 14 to be free from petroleum vapour. When any water is pumped into or withdrawn from the tank no further work of above description shall be done until the tank has been retested and a fresh certificate issued. When a tank is opened for cleaning and repairs, no lamp of any description either ordinary or electric, electric torches, electric cables or fans other than of a flameproof or intrinsically safe type approved by the Chief Controller shall be brought near tank.

16. No person shall repair or cause to be repaired any receptacle or pipe in which to his knowledge, any petroleum is or has been kept until he has taken all reasonable precautions to ensure that the receptacles or pipe has been rendered free from petroleum and any inflammable vapour:

Provided that this condition shall not be deemed to prohibit the usual soldering operations connected with the filling and dispatching of receptacles containing petroleum Class B or petroleum Class C.

17. All empty receptacles which have contained petroleum Class A shall except when they are opened for the purpose of cleaning them and rendering them free from petroleum vapour, be kept securely closed unless they have been thoroughly cleaned and freed from petroleum and inflammable vapours.

18. a) Adequate precautions shall be taken at all times for the prevention of accident by fire or explosion.

(b)

Wherever so specified by the Chief Controller, storage tanks shall be fitted with approved fire foam and/or water sprinkler attachments which shall be maintained in proper order at all times.

19. Every care shall be taken to prevent any petroleum escaping into any drain, sewer, harbor, river or watercourse or a public road and enclosures or sumps must not be permanently connected with any drain or sewer.

20. The licensee shall keep daily records and accounts of all receipts and issues of petroleum in such form as the licensing authority may from time to time prescribe and shall exhibit his stock and records to an inspector or sampling officer on demand.

21. Any accident fire or explosion occurring in the licensed premises, which is attended with loss of human life or serious injury to person or property shall be immediately reported to the nearest Magistrate or to the officer-in-charge of the nearest police station and by telephone/fax and also by telegram to the Chief Controller of Explosives (Telegraphic address "EXPLOSIVES, NAGPUR").

22. Free access to the licensed premises shall be given at all reasonable times to any inspector or sampling officer and every facility shall be afford to such officer for ascertaining that rules and the conditions of this licence are duly observed.

FORM XVI

(See Art. 7 of the First Schedule)

Licence to import and store otherwise than in bulk petroleum Class A in quantities exceeding 300 litres or petroleum Class B, in quantities exceeding 25,000 litres or petroleum Class C in quantities exceeding 45,000 litres or petroleum Class A, together with any other class of petroleum in quantities exceeding 300 litres in all

Licence No.

Fee Rs.....

Licence is hereby granted tofor the importation of petroleum of the classes and the quantities as herein specified and storage thereof in the place described below and shown in the approved plan No. dated..... attached hereto subjectto the provisions of Petroleum Act, 1934 and the rules made thereunder and to the further condition of this licence.

The Licence shall remain force up to the 31st day of December, 20.....

Description of petroleum

Petroleum Class A

Litres

Petroleum Class B

Litres

Petroleum Class C

Litres

The 20.....

Controller

Circle

Description and location of the licensed premises

This licensed premises, the lay-out boundaries and other particulars of which are shown in the attached approved plan are situated at

.....
.....

Space for Endorsement of renewals

(This licence shall be renewable without any concession in fee for three years in the absence of contravention of the provisions of the Petroleum Act, 1934 or of the rules framed thereunder or any of the conditions of this licence)

Date of renewal

Date of Expiry of license

Signature and office stamp of licensing authority

This licence is liable to be cancelled if the licensed premises are not found conforming to the description and conditions attached hereto and contravention of any of the rules and conditions under which this licence is granted and the holder of this licence is also punishable for the first offence with simple imprisonment which may extend to one month or with fine which may extend to one thousand rupees, or with both and for every subsequent offence with simple imprisonment which may extend to three months; or with fine which may extend to five thousand rupees, or with both.

Conditions

1. The licensed premises shall not, without permission in writing from the chief Controller, be used for any purposes other than storage and distribution of petroleum & purposes directly connected therewith.
2. The petroleum shall be stored only in the storage shed which shall be constructed of suitable non-combustible materials, provided that when no petroleum Class A is stored, the beams, rafters, columns, windows and doors may be of wood. one or more underground gaslight tanks of capacity and in the position shown in the approved plan attached hereto.
3. The storage shed shall rest on foundation walls and shall be surrounded by a wall or embankment of substantial construction or the walls and floor shall be suitably finished to form a sump not more than 30 cm deep. A combination of these methods is permissible. The enclosure or sump thus formed shall be of sufficient capacity to contain not less than one half of the total quantity of petroleum for which the licence is granted and be so constructed and maintained as to prevent escape therefrom of any petroleum in the form of liquid whether under the action of fire or otherwise. The sump and enclosure must be kept clean and free from any accumulation of inflammable liquids.
4. The storage shed if used for the storage of petroleum Class A shall be adequately ventilated near the ground level immediately above any walls constructed to form the sumps specified in condition 3 and also near the roof. The ventilators shall be covered with two layers of fine copper or other noncorrodible metal wire gauge of mesh not less than 11 meshes per linear cm.
5. If the licensing authority calls upon the holder of a licence, by a notice in writing to execute any repairs to the storage shed, which are, in the opinion of such authority necessary for the safety of the premises, the holder of the licence shall execute the repairs within such period not being less than one month from the date of receipt of the notice, as may be fixed by the notice.
6. No alteration shall be carried out in the licensed premises without the previous sanction in writing of the licensing authority. All alterations shall be shown on an amended plan to be attached to this licence.
7. The following distances shall be kept clear at all times from any storage shed to protected works:

Licensed capacity of storage shed of all classes of petroleum stored in the shed

Total Distances to be observed from storage shed for

Petroleum

Petroleum

Petroleum

Class A

Class B

Class C

Not exceeding 2,500 litres

6m

Not Applicable

Not Applicable

Exceeding 2,500 litres but not exceeding 25,000 litres

7.5m

"

"

Exceeding 25,000 litres but not exceeding 50,000 litres

9m

3m

"

Exceeding 50,000 litres but not exceeding 1,00,000 litres

12m

4.5m

3m

Exceeding 1,00,000 litres

15m

6m

3m

Where more than one class of petroleum is stored together, the entire quantity of petroleum shall for the purpose of this condition deemed to be of the most flammable class thereof.

8. The distances specified in condition 7 may be reduced by the licensing authority where screen walls are provided or other special precautions taken or where there are special circumstances, in his opinion, warrant the reduction.

9. Drums of other receptacles containing petroleum shall only be opened in the licensed premises and for the time necessary for drawing off the petroleum and during such drawing off every reasonable precautions shall be adopted for preventing the escape of petroleum or the vapour therefrom.

10. All empty receptacles which have contained petroleum Class A shall except when they are opened for the purpose of cleaning them and rendering them free from petroleum vapour be kept securely closed unless they have been thoroughly cleaned and freed from petroleum vapour.

11. No person shall repair or cause to be repaired any receptacle in which to his knowledge, any petroleum is or has been kept until he has taken all reasonable precautions to ensure that the receptacle has been rendered free from such petroleum and any inflammable vapour Provided that this condition shall not be deemed to prohibit the usual soldering operations connected with the filling and dispatching of petroleum receptacles when such operations are conducted in and approved place outside the storage shed.

12. Adequate precautions shall be taken at all times for the prevention of accident by fire or explosion. An adequate supply of dry sand together with necessary implement for the convenient application or an adequate member of portable fire-extinguishers suitable for fighting oil fires shall always be kept in easily accessible places immediately outside the storage shed.

13. Every care shall be taken to prevent any petroleum escaping into any drain, sewer, harbour, river or watercourse or a public road.

14. Adequate precautions shall be taken to prevent unauthorized persons having access to a petroleum kept and to any receptacles which contains or has contained such petroleum.

15. The licensee shall keep daily records and accounts of all receipts and issues of petroleum in such form as the licensing authority may from time to time prescribe and shall exhibit his stock and records to an inspector or sampling officer on demand.

16. Any accident, fire or explosion occurring in the licensed premises, which is attended with loss of human life or serious injury to person or property shall be immediately reported to the nearest Magistrate or to the officer-in-charge of the nearest police station and by telephone/fax and also by telegram to the Chief Controller of Explosives (Telegraphic address "EXPLOSIVES, NAGPUR").

17. Free access to the licensed premises shall be given at all reasonable times to any inspector or sampling officer and every facility shall be afforded to such officer for ascertaining that rules and the conditions of this license are duly

observed.

FORM XVII

(See Art. 8 of the First Schedule)

Licence to store petroleum Class A and Class B temporarily in quantities not exceeding 50,000 litres for refueling of aircraft's in connection with crop spraying and fighting forest fire only

Licence No.

Fee Rs.

Licence is hereby granted to valid only for the storage of Kls petroleum Class A at..... subject to the provisions of Petroleum Act, 1934 and the rules made thereunder and to the further condition of this licence.

The licence shall remain valid till

Dated

Controller

Circle

Conditions

1. The licensed premises shall not be used any purpose other than storage and distribution of petroleum & purposes directly connected therewith.
2. The Petroleum shall be stored only in open bounded enclosures observing the required safety distance vide condition (3).
3. The following distances shall be kept clear at all times from any storage shed to protected works. In case of storage for fighting forest fire the storage premises shall be sufficiently away from the forest area so that petroleum products, stored in the premises, under no circumstances, can be affected by the forest fire.

Licensed capacity (Litres of petroleum)

Distance to be kept clear at all times

Not exceeding 2,500 litres

12 metres

Exceeding 2,500 litres but not exceeding 25,000 litres

15 metres

Exceeding 25,000 litres but not exceeding 50,000 litres

15 metres

4. The capacity of the bounded enclosure should be 5 percent more than the maximum quantity of petroleum likely to be stored in the enclosure.
5. The petroleum shall be stored in barrels of a type approved by the Chief Controller.
6. The safety zone required vide condition 3 shall be surrounded by a rope or other suitable fencing.
7. No smoking sign in English and local language shall be prominently displayed on all the four sides of the fenced area.
8. The storage area shall be constantly guarded by providing guard in adequate strength. Guard's shelter, if required, shall be provided just outside the fenced area.
9. The containers containing petroleum shall be covered by a tarpaulin.
10. Any petroleum remaining surplus after the completion of crop spraying operation shall be returned to the depot or stored in premises duly licensed under the Petroleum Rules 2002.
11. Drums or receptacles containing petroleum shall be opened only for the time necessary for drawing off petroleum and during such drawing off every reasonable precautions shall be adopted for preventing the escape of petroleum or the vapour there from.
12. All empty receptacles which have contained petroleum except when they are opened for the purpose of cleaning them and rendering them free from petroleum vapour be kept securely closed unless they have been thoroughly cleaned and freed from petroleum inflammable vapours.
13. No person shall repair or cause to be repaired any container in which to his knowledge, any petroleum is or has been kept until he has taken all reasonable precautions to ensure that the container has been rendered free from such petroleum and any inflammable vapour.
14. Adequate precautions shall be taken at all times for the prevention of accident by fire or explosion. An adequate supply of dry sand together with necessary implements for its convenient application or an adequate number of portable

fire-extinguishers suitable for fighting petroleum fires shall always be kept in easily accessible places immediately outside the bounded enclosure.

15. Every care shall be taken to prevent any petroleum escaping into any drain, sewer harbor, river or watercourse or a public road.

16. Adequate precautions shall be taken to prevent unauthorized persons having access to a petroleum and to any container which contains or has contained petroleum.

17. The licensee shall keep daily records and accounts of all receipts and issues of petroleum and present the same to Inspector or sampling officer on demand.

18. Any accident, fire or explosion occurring in the licensed premises, shall be immediately reported to the nearest Magistrate or to the officer-in-charge of the nearest police station and to the licensing authority.

19. Free access to the licensed premises shall be given at all reasonable times to any inspector or sampling officer and every facility shall be afforded to such officer for ascertaining that rules and the conditions of this licence are duly observed.

FORM XVIII

(See Art. 10 of the First Schedule)

Licence to Decant Kerosene (Petroleum Class B) From Mechanically-Propelled Vehicle in Containers

Licence No.

Fee Rs.....

Licence is hereby granted toAgent/Dealer of.....to deliver kerosene (Petroleum Class B) from the tank vehicle into containers subject to the provisions of Petroleum Act, 1934 and the rule made thereunder and to the further conditions of this licence.

The licence shall remain force up to the 31st day of December, 20.....

The area of operation of the tank vehicle is :--

1.

2.

The 20

Controller of Explosives

Space for Endorsement/Renewals

(This licence shall be renewable without any concession in fee for three years in the absence of contravention of the provisions of the Petroleum Act, 1934 or of the rules framed thereunder or any of the conditions of this licence)

Date of renewal

Date of Expiry of license

Signature and office stamp of licensing authority

This licence is liable to be cancelled if the premises are not found conforming to the conditions attached thereto and for contravention of any of the rules and conditions under which this licence is granted and the holder of this licence is also punishable for the first offence with simple imprisonment which may extend to one month or with fine which may extend to one thousand rupees, or with both and for every subsequent offence with simple imprisonment which may extend to three months; or with fine which may extend to five thousand rupees, or with both.

Conditions

1. The licence or its authenticated copy shall at all times be kept available on tank vehicle and produced on demand by an Inspector.

2. The tank vehicle decanting kerosene shall have a valid licence in Form XI under Petroleum Rules, 2002 and the licence or its authenticated copy shall be kept in the licensed vehicle and produced on demand by an Inspector.

3. Not more than two tank vehicle load of kerosene per day will be taken by the licensee for the purpose of decanting into barrels, delivery of kerosene to a retail dealer will be given only once during a day and record to this effect will be maintained by the licensee.

4. Not more than 2,500 litres of kerosene shall be decanted into containers at any one place. Not more than 2,500 kilolitres of kerosene will be delivered to retail dealer at any one time and none of it will be delivered in a receptacle exceeding one thousand litres capacity.

5. The licensee or his authorised representative shall personally supervise decanting kerosene into containers and take all adequate precautions against fire and explosion.

6. 'No Smoking' boards in vernacular and English shall be displayed near the premises where kerosene is being decanted.
7. The decanting hose should be sound, and electrically continuous and shall be provided with suitable reducer for filling containers. Such reducer shall have suitable valve so as to enable the licensee or his representative to stop unloading in case of emergency.
8. The licensee or his authorised representative shall ensure before decanting kerosene from the tank vehicle that the containers are non-leaky.
9. The licensee shall ensure that the containers are not splash filled and the reducer has its open end used for delivery extended right up to the bottom of the container.
10. All precautions to ensure that static electric charge does not accumulate during decanting operation shall be taken.
11. No decanting shall be carried out from the hours of sunset to sunrise.
12. The licensee should ensure that no person shall smoke and there is no matches, fires, light or articles or substances capable of causing ignition of petroleum in the vicinity of the place of decantation.
13. The licensee shall ensure that no unauthorized person is permitted in the vicinity of the place of decantation.
14. The licensee shall not decant kerosene at a time when abnormal conditions prevail in that area.
15. No sale of kerosene by the shop-keeper will be permitted during decantation of kerosene.
16. The licensee or his representative should be fully conversant with rules 72 to 80, 82 and 84 of the Petroleum Rules, 2002 and an extract of the above mentioned rules should be prominently displayed at conspicuous place where the decanting into barrels will be done.
17. At least two buckets of dry sand and two dry chemicals or foam type fire extinguishers should be kept available during decanting operation.
18. The tank vehicles shall not decant kerosene into containers to any licence holder under the rules unless approval is obtained from the licensing authority.
19. Any accident, fire or explosion occurring in the licensed premises, which is attended with loss of life or serious injury to person or property shall be immediately reported to the nearest Magistrate or to the officer-in-charge of the nearest police station and by telephone/fax and also by telegram to the Chief Controller or Explosives (Telegraphic address "EXPLOSIVES, NAGPUR").

Licence

FORM XIX

(See Article 11 of the First Schedule of the Petroleum Rules, 2001)

Licence to transport petroleum class A/B in bulk on land by Mechanically propelled vehicles viz., refueller

(a)

Petroleum Class A or B for Refueller of Aircrafts

Or

(b)

Petroleum Class A or B for on site refuelling of Vehicles/Machineries/Stationery Equipments.

Licence No.

Fee Rs.

Licence is hereby granted to to transport petroleum Class A/B in bulk on land for on site fuelling of the Aircrafts/ heavy vehicles/Machineries/Stationery Equipments by the refueller as described below subject to the provisions of Petroleum Act, 1934 and the rules made thereunder and to the further condition of this licence.

The licence shall remain valid up to the 31st day of December 20.....

Date of issue

Controller

Circle

Description

1. The vehicle is loaded in the specially prepared area described in approved plan No. dated attached hereto or in the storage premises licensed in form XV or special form.
2. The area of operation and the equipments to be filled.....
3. The refueller conforms to the approved drawing no. dated.....attached hereto and to the further particulars given below: Make and Model Engine NumberChassis Number

.....

Registered Number.....

Name of the Registered Owner.....

Conditions

1. The licence or its authenticated copy shall at all times be kept in the licensed vehicle and produced on demand by an Inspector.
2. Only responsible persons who are conversant with the conditions of this licence shall be employed for driving the licensed vehicle or attending to it.
3. The licensed vehicle shall be attended to by a responsible person during its filling, transport and onsite refueling of the tank of Aircraft, heavy vehicles/machineries and stationery equipment:
Provided that the licensed vehicle may, if its tanks and compartments are empty, be left unattended to in a place approved for the purpose in writing, by the Chief Controller.
4. The licensed vehicle shall conform to the design and construction requirements laid down in Third Schedule.
5. The licensed vehicle shall at all times carry---
 - (a)
A portable fire extinguisher of capacity not less than 9 litres and suitable for extinguishing oil fires. The extinguishers shall be kept unlocked at an easily accessible position which shall be away from the discharge faucets of the vehicles.
 - (b)
An electrically continuous hose having oil-tight coupling to match the discharge faucet of the licensed vehicle;
 - (c)
A strong and flexible cable for electrical bonding. The cable shall be at least 5 metres long and shall have at each end a suitable clamp or clip.
6. The licensed vehicle shall be loaded at a storage premises licensed in special form or form XV having tank lorry loading facilities. The vehicle if licensed for petroleum B can be loaded at a specially prepared area attached to a service station licensed in form XIV. This area shall have rigid pipeline drawn from the underground tank in service station, delivery pump and vehicle parking space and shall be segregated by a fencing of least 1.8m high. The parking space and filling a point shall observe at least 4.5m clearance all round within the fencing.
7. The licensed vehicle shall not be loaded if any tank or compartment, pipe valve, emergency discharge control or any safety insecure until necessary repairs have been carried out satisfactory, and in the event of any leak in the tanks or compartments, until the leak is thoroughly repaired and all the tanks and compartments pass the test specified in clause 5 of the Third Schedule to the petroleum Rules.
8. Before petroleum is loaded into the licensed vehicle into the specially prepared area mentioned in conditions;-
 - (a)
its engine shall be stopped and the battery shall be isolated by a proper switch or otherwise;
 - (b)
its wheels shall be secured by brakes or by scotching and in the case of animal drawn vehicles, animals shall be unhitched and removed; its chassis shall be electrically bonded by a cable with the pipe into or from which it is to be unloaded or loaded;
 - (c)
the correct filling or discharge hose shall be selected and connected by oil-tight coupling at both ends;
 - (d)
a responsible person shall be in attendance and remain so until loading or unloading is over and the tanks and compartments have been sealed.
9. Except when called upon the traffic signals or required by an Inspector or a Sampling Officer, the licensed vehicle shall not stop on any road, congested area or a place which is not a place approved in writing, under these rules for loading, unloading or stabling of such vehicles.
10. No smoking and no fire or artificial light or any article capable of igniting inflammable vapour shall be allowed on the licensed vehicle.
11. The licensed vehicle shall not be used for carrying passengers or for any other purpose except transport of petroleum Class A/B and refueling the Aircrafts/Heavy vehicles/Machineries/Stationery Equipments. Particulars of the area of the operation shall be intimated.

12. Vehicle shall observe minimum 9 metres clearance from any protected works all-round during refueling the tanks of Aircraft, heavy vehicles/machineries and stationery equipments as the case may be. Unauthorized person shall not be permitted within this safety zone during refueling. No smoking board in vernacular and English shall be displayed prominently near the premises of refueling the tanks of Aircraft, heavy vehicles/machineries and stationery equipments. No person shall smoke or carry matches, fire, lights, articles or substance capable of causing ignition of petroleum in the vicinity of refueling.

13. Before petroleum is unloaded from the licensed vehicle:

(a)

its wheels shall be secured by brakes or by scotching.

(b)

its chassis shall be electrically bonded by a cable with the Aircraft, heavy vehicles/ machineries and stationery equipments, as the case may be.

14. Petroleum shall be unloaded only through the pump, viz. Motoring devices mounted on the vehicle.

15. The refueling operation shall be undertaken in the presence of authorised responsible persons of licensee and he will ensure that the tank being refueled is not leaky and is in sound condition.

16. No refueling shall be undertaken during the period of sunset and sunrise without specific approval in writing from the licensing authorities and also when abnormal atmosphere condition prevails in the area.

17. At least two buckets of dry sand and two dry chemicals or foam type fireextinguishers should be kept available during refueling operations.

18. The licensed vehicle shall not be allowed to be repaired by welding, soldering, brazing, or hot riveting until its tanks, compartments, pipes and valves have been thoroughly cleaned and examined by a competent person and certified by him in writing to be free from inflammable vapour or oil.

19. No alteration in the licensed vehicle or its safety fittings shall be carried out without the previous sanction in writing of the licensing authority. Such alternations so sanctioned shall be endorsed on this licence by an amendment.

20. Every facility shall be given at all reasonable time to any Inspector or sampling officer for ascertaining that the rules and the conditions of this licence are dully observed or for drawing samples.

21. Any accident, fire or explosion occurring in the licensed vehicle, which is attended with loss of human life or serious injury to person or property shall be immediately reported to the nearest Magistrate or to the officer-incharge of the nearest police station having jurisdiction and by telephone/fax and also by telegram to the Chief Controller or Explosives (Telegraphic address "EXPLOSIVES, NAGPUR").

Space for Endorsement/Renewals

(See condition 19)

Sl. No.

Description of Alteration

Date of sanctioning

Signature of the licensing authority

FORM XX

[See rules 2(v) and 130]

A. Qualification and Experience of competent person

Sl. No.

Rule under which Competency is recognized

Qualification and other requirements

Experience for the purpose

1.

Rules 126 and 130

1. Degree in any branch of Engineering from a recognized university or equivalent professional qualifications installations.

Minimum experience of 10 years in testing fabrication or installation of petroleum tanks and operation and maintenance of petroleum storage installations.

2. Physically fit and mentally sound for carrying out tests and examinations.

2.

Part B of Forms VII and VIII

-Do-

Minimum experience of 10 years in testing and fabrication or mounting of petroleum transport tanks and operation and maintenance of petroleum tank vehicles.

B. Application for recognition as competent person under Rules 126, 130 or Part of Forms VII and VIII

1. Name

2. Date of birth

3. If employed or member in any organization, the name of the organization of the applicant

4. Educational qualification (copies of testimonials to be attached)

5. Particulars of professional experience in chronological order.

Name of the Period of Organisation

Period of service

Designation

Area of responsibilities

6. Membership, if any, of professional bodies.

7. Purpose for which competency certificate is sought (specify the rules)

8. Whether the applicant has been declared as competent person under any statute (if so details)

9. Any other relevant information

10. Declaration by the applicant.

I hereby declare that the information furnished above is true. I undertake -----

(a)

that in the event of my leaving the aforesaid organization, I will promptly inform the Chief Controller.

(b)

to fulfil and abide by all the conditions stipulated in the certificate of competency and instructions issued by the Chief Controller from time to time.

Place.....

Date.....

.....

Signature of applicant

I _____ certify that Shri _____ Whose particulars are furnished above, is in our employment and nominate him on behalf of the organization for the purpose of being declared as a competent person under the rules. I also undertake that I will notify the Chief Controller in case the competent person leaves our employment.

Place.....

Date.....

Signature

Name and Designation

Telephone No.

Fax No.

Official Seal

THIRD SCHEDULE

(See rules 63 and 77)

Design and Construction of Tank Vehicles for Transporting Petroleum in Bulk

1.

Basic design of tank vehicle:

(1)

Tank vehicles for the transportation of petroleum in bulk shall be designed and constructed according to sound engineering practice to ensure correct structural relationship between the tank the propulsion equipment and supporting members, ruggedness, safe-road performance and breaking power.

(2)

In the case of an articulated vehicle, the weight at the ground of the carrying axles of the tank shall not exceed 60 percent of the designed gross laden weight.

(3)

The maximum width of any tank shall be less than the overall width of the vehicle on which it is mounted or by which it is being towed.

2. Material construction of tank:

(1)

The tank shall be constructed of iron or steel having the following physical requirements and thickness of metal or of any other material approved by the Chief Controller.

a) Physical requirements:

Yield Point, minimum

_____ 1700 kg/cm²

Ultimate strength minimum

_____ 3100 kg/cm²

Minimum elongation on standard 5 cm gauge length.

_____ 20 percent

B. Thickness of metal

(a)

Minimum thickness of tank ends, partitions, baffles and stiffeners shall not be less than 2mm for having volume capacity up to 21 litres per centimetre 2.7mm for tanks having volume capacity exceeding 21 litres per centimetre:

Provided that the thickness of tank ends shall in no case be less than the thickness of the tank as specified in clause (b)

(b)

The thickness of the tank shell shall be related to the volume capacity of the tank expressed in litres per centimeter and the distance between partitions, baffles or other stiffeners as well as to the radius of shell curvature as specified in the table below :-

Distance between attachment of Partition, baffle and stiffeners

Upto 90 cm

Above 90 cm upto 135 cm

Above 135 cm

1

2

3

I.

Minimum thickness for tanks having shell radius up to 175 cm and volume capacity-

(i) upto 21 litres per centimetre

2.0mm

2.0mm

2.0mm

(ii) above 21 up to 27 litres per centimetre

2.0mm

2.5mm

2.5mm

(iii) above 27 litres per centimetre

2.5mm

2.5mm

2.5mm

II.

Minimum thickness for tanks having shell radius exceeding 175 cm but not exceeding 225 cm and volume capacity-

(i) upto 21 litres per centimetres

2.0mm

2.0mm

2.5mm

(ii) above 21 up to 27 litres per centimetre

2.5mm

2.5mm

2.5mm

(iii) above 27 litres per centimetre

2.5mm

2.5mm

3.5mm

III.

Minimum thickness for tanks having shell radius exceeding 225 cm and volume capacity-

(i) upto 21 litres per centimetre

2.5mm

2.5mm

2.5mm

(ii) above 21 up to 27 litres per centimetre

2.5mm

3.5mm

(iii) above 27 litres per centimetre

2.5mm

2.5mm

3.5mm

IV.

Minimum thickness for tanks having shell radius exceeding 310 cm and volume capacity-

(i) upto 21 litres per centimetres

2.5mm

3.5mm

3.5mm

(ii) above 21 up to 27 litres per centimetre

3.5mm

3.5mm

3.5mm

(iii) above 27 litres per centimetre

3.5mm

3.5mm

3.5mm

Note: If the tank has other than circular cross-section, the radius for the purpose of this table shall be the maximum for that portion of the cross-section under consideration.

3. Joints

All joints to tank, its shell, heads, partitions, baffles and stiffeners shall be welded in accordance with recognized good practice and the efficiency of any joint shall not be less than 85 percent of the adjacent metal so joined.

4. Division of tank into compartment:

(1)

Unless expressly permitted in writing by the Chief Controller, a tank having a net capacity exceeding 5 kilolitres shall be divided into compartments by oiltight partitions and no compartment shall have net capacity exceeding 5 kilolitres.

(2)

Every partition shall be either dished, corrugated, reinforced or rolled. Flat partition without reinforcement shall not be allowed.

5. Testing of tank :

(1)

Every compartment of a tank shall be tested by a responsible competent person by hydrostatic pressure of not less than

0.316 kg/cm², The pressure shall be maintained for a period of not less than one hour and shall be gauged at the top of the compartment. The compartment under test shall not show any leakage or drop of pressure during the test.

(2)

Two adjoining compartments of a tank shall not be tested or filled with water simultaneously.

6. Anchoring of tank :

(1)

The tank shall be securely anchored to the vehicle in a manner that will not-

(i)

introduce undue concentration of stresses;

(ii)

impair the stability and performance of the vehicle; and

(iii)

allow any movement between the tank and the vehicle due to starting, stopping and turning.

(2)

All stops and anchors used to anchor a tank to the vehicle shall be so installed as to be readily accessible for inspection and maintenance.

7. Discharge faucet :

Each compartment of a tank shall be fitted with a discharge faucet which shall be substantially made and so attached. The discharge end of the faucet shall be threaded or so designed as to permit the hose being tightly coupled to it.

8. Emergency discharge control :

(1)

The outlet of each compartment of the tank shall have an efficient and reliable shut-off valve located inside the shell or in a sump forming an integral part of the shell.

(2)

The operating mechanism for the shut-off valve shall be provided with a secondary control in an easily accessible position but remote from all fill openings and discharge faucets.

(3)

The secondary control required by sub-paragraph (2) shall be provided with a fusible section which will permit the shut-off valve to close automatically in the event of a fire.

(4)

A shear section which will break under strain shall be provided between the internal shut-off valve and the discharge faucet. The shear section shall be located as close as possible to the internal shut-off valve.

9. Normal venting

(1)

Every compartment shall be fitted with an independent vacuum and pressure operated vent with a minimum effective opening being covered with two layers of non corroding metal wire gauge having not less than 11 meshes per centimetre.

(2)

The vent shall be so arranged as to limit the pressure within the compartment to 0.21 kg/cm² and the vacuum to 5 centimetres water gauge.

10. Emergency venting for fire exposure:

(1)

In addition to normal venting required by para 9, every compartment of a tank shall be fitted with an emergency venting facility which shall be of the fusible type so as to provide a minimum fire-venting opening having a net area in square centimetres equal to 8 plus 4.3 times the gross capacity of the compartment in kilolitres.

(2)

The emergency vent shall be so designed as to prevent loss of liquid through the vent in the case of vehicle upset except in the case of pressure rise when in the upset position.

(3)

Fusible vents shall be actuated by elements which will operate at a temperature not exceeding 930C.

11. Top-filling Pipe :-

(1)

The inner end of the filling pipe shall be fitted with a proper type of splash deflector and the outer end threaded or so designed as to ensure leak proof connection with the filling hose.

(2)

Top filling pipe, if provided, shall be carried down early to the bottom of the tank.

(3)

The outer end of the filling pipe shall be fitted with an oil-tight locker cap.

12. Tank-gauging arrangements :

(1)

Each compartment shall be fitted with a dip pipe or any approved tank gauging device.

(2)

The dip pipe, if provided, shall be carried up to the bottom of the tank and all opening in the dip pipe, except the capped top opening shall be covered with two layers of wire gauges having not less than 11 meshes per cm.

(3)

The dip pipe shall be fitted with an oil tight locker cap.

13. Tank overturn protection :

(1)

All tank top fittings shall be protected from damage in the event of overturning of the vehicle chassis on which it is mounted.

(2)

Where protection to tank top fitting are provided by enclosing them within the contour of the shell or with in a rigid coming welded to the tank shell, the area enclosed by such protection shall be adequately drained and provided with plug or cut outs to enable the section to be gas freed completely before repair.

14. Marking :

Every tank vehicle used for the transportation of petroleum shall, whether loaded or empty be conspicuously marked on each side and rear thereof in letters at least 7cm high on a background of sharply contrasting colours with the words "Flammable" and the common name of the flammable liquid being transported e.g. "MOTOR SPIRIT", "KEROSENE", etc.

FOURTH SCHEDULE

[See Rule 105]

A Extent of hazardous area in Refineries/Processing/Plants/Major installations conforming to condition 10(a) of licence Form XV

Sl. No.

Description of the facility

Location of the facility

Products handled/stored in the facility

Characteristics of the facility

Extent of area

Classification of area

(Division)

(1)

(2)

(3)

(4)

(5)

(6)

(7)

1.

Plant, Equipment Process Vessels

Open Air

Inflammable liquid above its flash-point or inflammable vapour or gas heavier than air

Releases inflammable products under ABNORMAL conditions or requires to be opened up for maintenance due to ABNORMAL conditions

(i) Pits, sumps, trenches below the floor or ground level within hazardous area (any zone).

(ii) Area above the ground level extending vertically 8 metres above the source of hazards and horizontally 16 metres in all directions from such source. Beyond 8 metres from the source of hazard in the horizontal plane, the vertical extent of the hazardous area may be reduced to 8 metres above the ground level.

1

(iii) Where large release of volatile products may occur, the area in the horizontal plane beyond 16 metres up to 32 metres from the source of hazard, extending vertically up to 60cm. above the ground level in all directions.

2

(Additional)

1.1

Plant, Equipment Process Vessels

Open Air

Inflammable liquid above its flash-point or inflammable vapour or gas heavier than air

Releases inflammable products under NORMAL conditions or Normally requires frequent opening up for maintenance

(i) Pits, sumps, trenches below the floor or ground level within hazardous area (any zone).

1

(ii) Area above the ground level extending vertically 8 metres above the source of hazards and horizontally 16 metres in all directions from such source. Beyond 8 metres from the source of hazard in the horizontal plane, the vertical extent of the hazardous area may be reduced to 8 metres above the ground level.

1

(iii) Where large release of volatile products may occur, the area in the horizontal plane up to 16 metres beyond the hazardous area zone 1, extending vertically upto 60 cm. above the ground level, in all directions.

1

(Additional)

1.2

Plant, Equipment Process Vessels

Well-ventilated sheds

Inflammable liquid above its flash point or inflammable vapour or gas heavier than air

Releases inflammable products under ABNORMAL conditions or requires to be opened up for maintenance due for maintenance under ABNORMAL conditions

(i) Pits, sumps, trenches below the floor or ground level within hazardous area (any zone).

(ii) Area above the ground level extending vertically 8 metres above the source of hazards and horizontally 16 metres in all directions from such source. Beyond 8 metres from the source of hazard in the horizontal plane, the vertical extent of the hazardous area may be reduced to 8 metres above the ground level.

1

(iii) Where large release of volatile products may occur, the area in the horizontal plane beyond 16 metres up to 32 metres from the source of hazard, extending vertically up to 60 cm. above the ground level in all directions.

2

(Additional)

1.3

Release inflammable products under NORMAL conditions or normally requires frequent opening for maintenance

(i) Pits, sumps, trenches below the floor or ground level within hazardous area (zone).

(ii) Area above the ground level extending vertically 8 metres above the source of hazards and horizontally 16 metres in all directions from such source. Beyond 8 metres from the source of hazard in the horizontal plane, the vertical extent of the hazardous area may be reduced to 8 metres above the ground level.

1

(iii) Where large release of volatile products may occur, the area in the horizontal plane upto 16 metres beyond the hazardous area zone 1, extending vertically up to 60 cm. above the ground level in all directions.

1

(Additional)

1.4

Plant, Equipment Process Vessels

Well-ventilated sheds

Lighter than air, inflammable gases

Releases inflammable products under ABNORMAL conditions or requires to be opened up for maintenance under ABNORMAL conditions

(a) Within the shed-

(i) Entire shed above the level of the lowest opening in the side wall.

2

(ii) Area above the ground level or a level 4.5 metres below the source of hazards, whichever is higher, extending vertically upto the level of the lowest opening in the side wall of the shed and horizontally 4.5 metres from such source in all directions.

(b) Outside the shed-

Area above the roof of the shed extending vertically 8 metres above each opening in the roof and horizontally 4.5 metres from such source in all directions.

2

1.5

Plant, Equipment Process Vessels

Inadequately ventilated sheds

Lighter than air, inflammable gases

Releases inflammable products under ABNORMAL conditions or requires to be opened up for maintenance ABNORMAL conditions

(a) Within the shed-

(i) Entire shed above the level of the lowest opening in the side wall.

(ii) Area above the ground level or a level 4.5 metres below the source of hazards, whichever is higher, extending vertically upto the level of the lowest opening in the side wall of the shed and horizontally 4.5 metres from such source in all directions.

2

(b) Outside the shed-

Area above the lowest in the side walls of shed extending vertically 4.5 metres above the roof and horizontally 3 metres from the side wall.

(2)

1.6

Plant, Equipment Process Vessels

Inadequately ventilated sheds

Inflammable liquids above its flash-point or inflammable vapour or gas heavier than air

Releases inflammable products under ABNORMAL conditions or requires to be opened up for maintenance ABNORMAL conditions

(a) Within the shed-

(i) Entire area within shed including pits, sumps and trenches.

1

(b) Outside the shed-

Area extending vertically 3 metres above roof and horizontally 3 metres beyond shed or 16 metres from the source of hazard, whichever is farthest. Beyond 3 metres from the shed or 8 metres from the source of hazard, whichever is farthest, in the horizontal plane, the vertical extent of the hazardous area may be reduced to 8 metres above the ground level.

2

Pits, sumps, trenches below the ground level within zone 2 area (zone). Where large release of inflammable products occur.

1

Area within 16 cm.

of the zone area extending vertically up to 60 cm. above the ground level.

2

(Additional)

Releases inflammable vapours under NORMAL conditions or normally requires an opening frequently for maintenance

(i) Entire shed

1

(ii) Taking the top most opening in the shed as the source of hazard, the area extending vertically 8 metres above such source and horizontally 16 metres in all directions from the source. Beyond 8 metres from the source of hazard in the horizontal plane, the vertical extent of the hazardous area may be reduced to 8 metres above the ground level.

1

(iii) Pits, sumps, trenches, within hazardous area.

1

(iv) Where large release of volatile products may occur, the area within 16 metres of the zone I area extending vertically up to 60 cm. above the ground level.

1

(Additional)

1.7

Enclosed premises with purging system. Air intake of fresh of the air purging system not less than 1.5 metres above the hazardous area (any zone)

Within a hazardous area (any zone)

No flammable products handled in the enclosed premises

In case of failure of the purging system, electric supply is automatically cut off or a warning is automatically given to a person in attendance

Entire enclosed premises.

Safe

1.8

Enclosed premises without purging system, electric

Within a hazardous area (any zone)

No flammable products handled in the enclosed premises

In case of failure of the purging system, electric supply is automatically cut off or a warning is automatically given to a person in attendance

(a) Entire shed,

(b) Outside the shed:

in the case of inadequately ventilated shed

As specified for inadequately ventilated sheds

1.9

Pipeline with well maintained valves, metres, fittings

Well-ventilated situations or in a pit outside hazardous area (any zone)

Any inflammable liquid above its flash point or any inflammable vapour or gas

Releases inflammable products under ABNORMAL conditions or requires to be opened up for maintenance due to ABNORMAL conditions

(i) Pits below or within 3 metres of the facility.

(i) Area within 3 metres of pipeline fittings, valves, metres, in all directions.

1

2

1.10

Tanks, above ground

(floating roof)

Open air

Any inflammable liquid above its flash points

Releases inflammable products under ABNORMAL conditions or requires to be opened up for maintenance due to ABNORMAL conditions

(i) Above the floating roof, within the shell.

(ii) Within 3 metres of the shell.

(iii) Space within the tank enclosure up to top level of the enclosure wall.

1

2

2

1.11

Tanks, above ground

(cone roof)

Open air

Any inflammable liquid above its flash points

-ditto-

(i) Within 1.5 metres of the vent openings.

(ii) Within 3 metres of the tank shell, ends or roof of the tank.

(iii) Space within tank enclosure up to top level of the enclosure wall.

1

2

2

1.12

Pumps, withdrawals fittings.

(i) In an open enclosure

(ii) In a platform in the open or in a shed without walls

(iii) Within a well ventilated pump house

Inflammable liquids or gases

-ditto-

-ditto-

-ditto-

-ditto-

-ditto-

Entire Enclosure

Within 1.5 metres of the edge of the platform in all directions extending vertically from the ground level up to 1.5 metres above the top of pumps/withdrawal fittings.

1

2

(i) Pits, sumps, trenches below the floor or ground level within hazardous area (any zone).

(ii) Area above the ground level extending vertically 8 metres above the source of hazards and horizontally 16 metres in all directions from such source. Beyond 8 metres from the source of hazard in the horizontal plane, the vertical extent of the hazardous area maybe reduced to 8 metres above the ground level.

1

(iii) Where large release of volatile products may occur, the area in the horizontal plane beyond 16 metres upto 32 metres from the source of hazard, extending vertically up to 90 metres above the ground level.

1

(Additional)

B. Extent of hazardous area in installation conforming to condition 10(a) of licence in form xv and storage sheds

Location

Classification of the area

Extent of classified area

(1)

(2)

(3)

(4)

1.

Tanks above ground:

(a) shell, ends or roof and enclosed area

2

Within 3 metres from shell, ends or roof of tank area inside the enclosure up to top level of enclosure wall.

(b) Vent

(c) Floating roof

1

1

Within 1.5 metres of open end of vent extending in all directions.

Above the roof and within the shell.

2.

Tanks underground fill pipe

1

Any pit, box or space below grade level, any part of which is within zone 1 or zone 2 area.

2

Up to 45 cms. above grades level within a horizontal radius of 3 metres from a loose fill connection and within a horizontal radius of 1.5 metres from a tight fill connection.

Vent, discharging upward

1

2

Within 90 cms. or of open end of vent extending in all directions.

Area between 90 cms. and 1.5 metres or of open end of vertical directions.

3.

Pits sumps (below grade level):

(a) Without mechanical ventilation

(b) With mechanical ventilation

(c) Containing valves, filling piping and not within zone 1 or 2 area

1

2

2

Entire area within pit/sump if any part is within zone 1 or 2 area.

Entire area within pit/sump if any part is within zone 1 or 2 area.

Entire pit/sumps.

4.

Pumps, bleeders withdrawal fitting, metres and similar devices:

(a) Indoor

1

2

Pits sumps or trenches below floor level within zone 2 area.

Within 1.5 metres of any edge of such devices extending in all directions. Also 90 cms. above grade level or floor level exceeding up to 7.5 metres horizontally from any edge of such devices.

(b) Outdoor

1

2

Pits, sumps or trenches below platform or ground level within zone 2 area.

Within 90 cms. of any edge of such devices, extending in all directions. Also 45 cms. above grade level within 3 metres horizontally from any edge or such devices.

5.

Tank vehicle:

1

Pits, sumps or trenches within zone 2 area.

(a) Bottom loading or unloading

2

Within 90 cms. of point of connection extending in all directions. Also up to 45 cms. above grade level within a horizontal radius of 3 metres from any point of connection.

(b) Loading from top with atmospheric venting

1

2

Within 90 cms. of open end of vent extending in all directions.

Area between 90 cms. and 1.5 metres from open end of vent extending in all directions. Area within 90 cms. of the edge of dome extending in all directions.

(c) Loading from top with vapour recovery

2

Within 90 cms. of point of connection of fill pipe and vapour recovery pipe, extending in all directions.

6.

Container filling:

1

Pits, sumps or trenches within zone 1 or 2 area.

(a) Outer or in a shed opening

1

Within 90 cms. of vent and fill without wall of the container extending in all directions.

2

Area between 90 cms. and 1.5 metres from fill/vent opening of the container extending in all directions.

Also up to 45 cms. above floor/or grade level within a horizontal radius of 3 metres from vent/fill opening or within the filling enclosure, whichever is higher.

(b) Indoor in a storage/filling shed well ventilated near roof and floor level and situated in open area

1

Whole of the interior of the shed.

1

Pits, sumps, trenches within zone 1 or 2 area.

2

Area within the cone formed by joining the top vent level of the shed to a point 2.5 metres outside the shed extending in all directions.

7.

Storage and repair garages for tank vehicles

1

2

All sumps or spaces below floor level.

Area above 45 cms.

above floor or grade level of entire storage/repair garages.

8.

Drainage, ditches, separators compounding basin

1

2

Area up to 45 cms.

above ditch, separators or basin.

Also up to 45 cms.

above grade level within 4.5 metres horizontally from any edge.

9.

Container storage

3

As in 6(b)

10.

Garages for ordinary vehicles, ordinary office, rest room

If there is any opening to these rooms within the extent of an indoor or outdoor classified area, the facility shall be classified as if the wall, curb or partition separating the classified area did not exist.

C. Extent of hazardous area in service station

Location of hazard

Classification of the area

Extent of hazardous area

(1)

(2)

(3)

(4)

1.

Underground tank:

(a) Filling point

1

Any pit, sump, box or space grade level, any part of which is within zone 1 or zone 2 hazardous area.

Upto 45 cms. above grade level within horizontal radius of 3 metres from the filling point.

(b) Vent

1

Within 90 cms.

of open end of vent extending in all directions.

2

Area between 90 cms.

and 1.5 metres of open end of vent extending in all directions.

2.

Dispensing pump or unit:

(a) Pits /Sumps

1

Any pit, sump or box below grade level any part of which is within zone 1 or zone 2 hazardous area.

(b) Pump cabinet or dispenser enclosure

1

The area 1.2 metres vertically above the base within the cabinet enclosure and 45 cms. horizontally in all directions.

(c) Outdoor

2

The area between 45 cms. and 6 metres of the cabinet/enclosure extending 45 cms. vertically above the grade level.

(d) Indoor with mechanical ventilation

2

Ditto

(e) Indoor with normal (gravity) ventilation

2

The area 45 cms.

and 7.5 metres of the cabinet/ enclosure extending 45 cms. vertically above the grade level.

3.

Remote pumps (Outdoor)

1

Any pit, box or space below grade level of any part within a horizontal distance of 3 metres from the edge of the pump.

2

Within 90 cms.

of any edge of pumps, extending in all directions. Also up to 45 cms. above floor or grade level within 7.5 metres horizontally from any edge of pump.

4.

Remote pumps (Indoor)

1

Entire area within a pit.

2

Within 1.5 metres of any edge of pump, extending in all directions. Also upto 90 cms. Above floor or grade level within 7.5 metres horizontally from any edge of pump.

5.

Lubrication /service room

1

Entire area within a pit.

2

Area up to 45 cros.

above floor or grade level within entire lubrication/service room.

6.

Storage bin or enclosure for Class A or Class B Petroleum

1

Entire bin or enclosure

7.

Sales, storage and rest room ordinary

If there is any opening to these rooms within the extent of a zone 1 or zone 2 area the entire room shall be classified as zone 1.

FIFTH SCHEDULE

(See rule 193)

Methods of testing viscous or solid Forms of Petroleum

If the sample of petroleum to be tested is viscous or solid or contains sediments or thickening ingredients, such petroleum shall be tested in the ABEL apparatus in the following manner :-

The solid mixture must be cut into cylinders 38.1mm in diameter by means of a cork borer or other similar cutter having the correct internal diameter. These cylinders are to be placed in the petroleum cup of the testing apparatus in a vertical position in such number as will completely fill the cup. The cylinders must be in contact with one another but must not be so tightly packed and so be deformed in shape.

Five or six of the cylinders in the centre of the cup must be shortened to 127 mm to allow space for the thermometer bulb.

The petroleum which is viscous or contains sediments or thickening ingredient shall be filled in the petroleum cup of the testing apparatus in a vertical position so that it completely fills the cup.

The air bath of the testing apparatus must be filled to a depth of 38.1mm with water.

The water bath must then be raised to, and maintained at temperature of about 800F.

The cup must then be placed in the air bath, and temperature of the sample must be allowed to rise until the thermometer in the oil -cup show 750F then test flame must be applied.

If no flash is obtained, this temperature must be maintained constant in the oil-cup for one hour at the expiration of which time the test flame must again be applied.

If a flash is obtained, the solid mixture will be subject to the provisions of the Petroleum Act, 1934.

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